

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Reserve Forces and Militia Act, 1898	61 & 62 Vict. c. 9.
Reserve Forces Act, 1899	62 & 63 Vict. c. 40.
Reserve Forces Act, 1906	6 Edw. 7. c. 11.
Territorial & Reserve Forces Act, 1907	7 Edw. 7. c. 9.
Air Force (Constitution) Act, 1917	7 & 8 Geo. 5. c. 51.
Auxiliary Air Force and Air Force Reserve Act, 1924	14 & 15 Geo. 5. c. 15.
Air Force Reserve (Pilots and Observers) Act, 1934	24 & 25 Geo. 5. c. 5.
Military and Air Forces (Prolongation of Service) Act, 1939	2 & 3 Geo. 6. c. 90.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Recall of Army and Air Force Pensioners Act, 1948	12 & 13 Geo. 6. c. 8.
India (Consequential Provision) Act, 1949	12, 13 & 14 Geo. 6. c. 92.
Auxiliary and Reserve Forces Act, 1949	12, 13 & 14 Geo. 6. c. 96.

CHAPTER 34

Housing (Scotland) Act, 1950

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An Act to consolidate the Housing (Scotland) Acts, 1925 to 1949, and certain other enactments relating to housing in Scotland. [26th October 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LOCAL AUTHORITIES FOR PURPOSES OF THIS ACT

1. For the purposes of this Act the local authority shall be—
 - (a) in the case of a burgh, the town council, and
 - (b) in the case of a county, the county council ;
 and the district of the local authority shall be the burgh or the county (excluding all burghs therein), as the case may be.

Local
authorities
for purposes of
this Act.

Power of local
authority
to appoint
committees.

2. A local authority may appoint a committee consisting of so many persons as they may think fit, for any purposes of this Act which in the opinion of the local authority would be better regulated and managed by means of a committee:

Provided that a committee so appointed shall consist as to a majority of its members of members of the appointing local authority, shall in no case be authorised to raise any money by rate or loan, and shall be subject to any regulations and restrictions which may be imposed by the appointing local authority.

PART II

PROVISIONS FOR SECURING THE REPAIR, MAINTENANCE AND SANITARY CONDITION OF HOUSES

Obligations as to repair of houses

Conditions
to be implied
on letting
houses for
human
habitation.

3.—(1) In any contract for letting for human habitation a house at a rent not exceeding twenty-six pounds there shall, notwithstanding any stipulation to the contrary, be implied a condition that the house is at the commencement of the tenancy, and an undertaking that the house will be kept by the landlord during the tenancy, in all respects reasonably fit for human habitation:

Provided that the condition and the undertaking aforesaid shall not be implied when a house is let for a period of not less than three years upon the terms that it will be put by the lessee into a condition in all respects reasonably fit for human habitation, and the lease is not determinable at the option of either party before the expiration of three years.

(2) The landlord, or any person authorised by him in writing, may at reasonable times of the day, on giving twenty-four hours' notice in writing to the tenant or occupier, enter any premises to which this section applies for the purpose of viewing the state and condition thereof.

(3) In this section the expression "landlord" means any person who lets to a tenant for human habitation any house under any contract referred to in this section, and includes his successors in title; and the expression "house" includes part of a house.

(4) This section shall apply whether the contract was entered into before or after the commencement of this Act:

Provided that in the case of a house the rent whereof exceeds sixteen pounds this section shall not apply if the contract was entered into before the thirty-first day of July, nineteen hundred and twenty-three.

4.—(1) Notwithstanding any agreement to the contrary, where under any contract of employment of a workman employed in agriculture the provision of a house, or part of a house, for the occupation of the workman forms part of the remuneration of the workman, and the provisions of the foregoing section are inapplicable by reason only of the house or part of the house not being let to the workman, there shall be implied as part of the contract of employment the like condition and undertaking as would be implied under those provisions if the house or part of the house were so let, and those provisions shall apply accordingly as if incorporated in this section, with the substitution of "employer" for "landlord" and such other modifications as may be necessary:

PART II
—cont.

Application
of s. 3 to
houses
occupied by
workmen
engaged in
agriculture.

Provided that this section shall not affect the obligation of any person other than the employer to repair a house to which this section applies or any remedy for enforcing any such obligation.

(2) This section shall apply whether the contract of employment was entered into before or after the commencement of this Act.

5.—(1) Without prejudice to the provisions of the Public Health (Scotland) Act, 1897, relating to sewers and drains, every local authority being a county council shall require the owner of every occupied house or part of a house occupied by a separate family within their district to provide for each such house or part of a house a sufficient watercloset wherever it is reasonably practicable so to do, and, where that is not so practicable, a sufficient earthcloset; and if the owner fails to carry out such requirement within three months after intimation thereof, the local authority may themselves execute the necessary work, and the expenses incurred by them in so doing may be recovered by them from the owner.

Duty of county
councils to
require
provision of
waterclosets or
earthclosets.

(2) Any watercloset provided under this section shall, where it is reasonably practicable, be provided inside the house or part thereof for which it is provided, or, where that is not reasonably practicable, in a position readily accessible therefrom.

(3) Any question which may arise under this section as to what is reasonably practicable shall be determined summarily by the sheriff who shall have regard to all the circumstances of the case, including the expense involved, and his decision shall be final.

(4) The provisions of subsection (4) of section eight of this Act (which relate to the recovery of certain expenses by instalments) shall apply to the recovery of expenses incurred by a local authority in themselves executing works under this section in like manner as they apply to the recovery of expenses incurred under subsection (1) of the said section eight.

PART II
—cont.

(5) In this section the expression “owner” has the like meaning as in the Public Health (Scotland) Act, 1897, and for the purposes of this section a landholder shall be deemed to be the owner of any house on his holding in respect of which he would, on the termination of his tenancy, be entitled to compensation under the Small Landholders (Scotland) Acts, 1886 to 1931, as for an improvement.

Duty of local authority in regard to inspection of houses

Duty of local authority to inspect their district and to keep records.

6. It shall be the duty of every local authority to cause an inspection of their district to be made from time to time with a view to ascertaining whether any house therein is unfit for human habitation, and for that purpose it shall be the duty of the local authority, and of every officer of the local authority, to comply with such regulations and to keep such records as the Secretary of State may prescribe.

Repair, demolition and closing of insanitary houses

Power of local authority to order execution of works on insanitary house.

7.—(1) Where a local authority, on consideration of an official representation or a report by their sanitary inspector or other information in their possession, are satisfied that any house is in any respect unfit for human habitation but is capable at a reasonable expense of being rendered fit for human habitation, they shall serve upon the person having control of the house a notice requiring him, within such reasonable time, not being less than twenty-one days, as may be specified in the notice, to execute the works specified in the notice and stating that, in the opinion of the authority, those works will render the house fit for human habitation.

(2) In determining for the purposes of this Part of this Act whether a house can be rendered fit for human habitation at a reasonable expense, regard shall be had to the estimated cost of the works necessary to render it so fit and the value which it is estimated that the house will have when the works are completed.

(3) For the purposes of this Part of this Act the person who for the time being is entitled to receive, or would, if the same were let, be entitled to receive, the rent of the house, including a trustee, tutor, curator, factor or agent, shall be deemed to be the person having control of the house; and a landholder shall be deemed to be the owner and the person having control of any house on his holding in respect of which he would, on the termination of his tenancy, be entitled to compensation under the Small Landholders (Scotland) Acts, 1886 to 1931, as for an improvement.

Enforcement of notice requiring execution of works.

8.—(1) If a notice under the last foregoing section requiring the person having control of a house to execute works is not complied with, then, after the expiration of the time specified in the notice or, if an appeal has been made against the notice and

the sheriff upon that appeal has confirmed the notice with or without variation, after the expiration of twenty-one days from the determination of the appeal or of such longer period as the sheriff in determining the appeal may fix, the local authority may themselves do the work required to be done by the notice or by the notice as varied by the sheriff, as the case may be.

(2) In addition the local authority may execute any further works which are found to be necessary for the purpose of rendering the house fit for human habitation, but which could not reasonably have been ascertained to be required at the examination prior to the service of the aforesaid notice. Any question as to whether further works are necessary or could not have been reasonably ascertained as aforesaid shall be determined by the sheriff, whose decision shall be final.

(3) Any expenses incurred by the local authority under this section, together with interest, at such rate as the Secretary of State may, with the approval of the Treasury, from time to time by order fix, from the date when a demand for the expenses is served until payment, may, subject as hereinafter provided, be recovered by the authority from the person having control of the house or, if he receives the rent of the house as trustee, tutor, curator, factor or agent for some other person, then either from him or from that other person, or in part from him and as to the remainder from that other person:

Provided that if the person having control of the house proves—

- (i) that he is receiving the rent merely as trustee, tutor, curator, factor or agent for some other person; and
- (ii) that he has not, and since the date of the service on him of the demand has not had, in his hands on behalf of that other person sufficient money to discharge the whole demand of the authority,

his liability shall be limited to the total amount of the money which he has, or has had, in his hands as aforesaid.

(4) The local authority may by order declare any such expenses to be payable by weekly, monthly, half-yearly or annual instalments within a period not exceeding thirty years with interest, at such rate as the Secretary of State may, with the approval of the Treasury, from time to time by order fix, from the date of the service of the demand until the whole amount is paid, and any such instalments and interest, or any part thereof, may be recovered from any owner or occupier of the house, and, if recovered from an occupier, may be deducted by him from the rent of the house.

(5) No action taken under this or the last foregoing section shall prejudice or affect any other powers of the local authority or any remedy available to the tenant of a house against his landlord, either at common law or otherwise.

PART II
—cont.

Power of local
authority
to order
demolition or
closing of
insanitary
house.

9.—(1) Where a local authority, on consideration of an official representation or a report by their sanitary inspector or other information in their possession, are satisfied that any house is unfit for human habitation and is not capable at a reasonable expense of being rendered so fit, they shall serve upon the person having the control of the house and also upon any other person who is an owner thereof notice of the time (being some time not less than twenty-one days after the service of the notice) and place at which the condition of the house and any offer with respect to the carrying out of works, or the future use of the house, which he may wish to submit will be considered by them; and every person upon whom such a notice is served and any other person who is the holder of a heritable security over the house shall be entitled to be heard when the matter is so taken into consideration.

(2) The local authority may, if, after consultation with any owner or holder of a heritable security, they think fit so to do, accept an undertaking from him, either that he will within a specified period carry out such works as will in the opinion of the authority render the house fit for human habitation, or that it shall not be used for human habitation until the authority, on being satisfied that it has been rendered fit for that purpose, cancel the undertaking.

(3) Where, in pursuance of the last foregoing subsection, the local authority have accepted an undertaking that a house shall not be used for human habitation until the authority, on being satisfied that it has been rendered fit for that purpose, cancel the undertaking, and the house has not been so rendered fit to the satisfaction of the authority within a period of three years from the date of the acceptance of the undertaking, or from the first day of January, nineteen hundred and forty-nine, whichever is the later, the undertaking shall, if the authority so resolve, be deemed, for the purposes of the next following subsection, to have been broken, and the provisions of that subsection shall apply accordingly.

(4) If no such undertaking as is mentioned in subsection (2) of this section is accepted by the authority or if any such undertaking accepted by them is broken, the authority shall forthwith make a demolition order requiring that the house shall be vacated within a period to be specified in the order, not being less than twenty-eight days from the date on which the order becomes operative, and that it shall be demolished within three months after the expiration of that period or, if the house is not vacated before the expiration of that period, within three months after the date on which it is vacated, and shall serve

the order upon every person upon whom they would be required by subsection (1) of this section to serve a notice issued by them under that subsection:

PART II
—cont.

Provided that, where the house forms only part of a building, then, unless the building belongs wholly to the same owner and consists wholly of houses which are unfit for human habitation and are not capable at a reasonable expense of being rendered so fit, the authority, instead of making and serving a demolition order, shall make and serve a closing order prohibiting the use of the house for human habitation as from such date as may be specified in the order, not being less than twenty-eight days from the date on which the order becomes operative, so, however, that the authority shall at any time, on the application of the owner of the house, determine a closing order so made by them if they are satisfied that the house has been rendered fit for human habitation.

10. Where a local authority have served a notice under subsection (1) of section seven of this Act requiring the execution of works for the purpose of rendering a house fit for human habitation, any person on whom such a notice was served or any other person who is an owner of the house may apply in writing to the authority to substitute for the notice so served an order under subsection (4) of section nine of this Act, and where the authority are satisfied that it is reasonable to do so, having regard to the estimated cost of the foresaid works, the financial circumstances of the person at whose expense the works would have been carried out and the other circumstances of the case, including the need for housing accommodation in the area, the authority shall serve an order under the said subsection (4), and such order shall have effect notwithstanding that a notice has not been served with respect to the house under subsection (1) of the said section nine:

Substitution of
order under
s. 9 (4) for
notice under
s. 7 (1) in
certain cases.

Provided that a local authority shall not unreasonably refuse to substitute such an order as aforesaid for the notice so served, and if any question arises as to whether any such refusal has been unreasonable the question shall be determined by the sheriff.

11.—(1) The provisions of section nine of this Act with respect to the making of a closing order shall, subject to the necessary modifications, apply in relation to any underground room habitually used as a sleeping place which is for the purposes of this Part of this Act to be deemed to be a house unfit for human habitation.

Power to make
closing orders
with respect to
underground
rooms.

(2) A room habitually used as a sleeping place, the surface of the floor of which is more than three feet below the surface of the part of the street adjoining or nearest to the room, shall,

PART II
—cont.

for the purposes of this Part of this Act, be deemed to be a house unfit for human habitation, if the room either—

- (a) is not on an average at least seven feet in height from floor to ceiling ; or
- (b) does not comply with such regulations as the local authority may with the consent of the Secretary of State make for securing the proper ventilation and lighting of such rooms, and the protection thereof against dampness, effluvia or exhalation :

Provided that, if the local authority, after being required to do so by the Secretary of State, fail to make such regulations, or such regulations as the Secretary of State approves, the Secretary of State may himself make them, and the regulations so made shall have effect as if they had been made by the local authority with the consent of the Secretary of State.

Powers of local authority in relation to buildings consisting wholly of closed houses.

12.—(1) Where a building consists wholly of houses with respect to which closing orders have been made under this Part of this Act and such orders have not been determined, then,—

- (a) the local authority may, in the case of each of such houses, recall the closing order and shall have the like power to make a demolition order as they have under subsection (4) of section nine of this Act in the absence or on the breach of such an undertaking as is therein mentioned, and the provisions of this Part of this Act shall apply accordingly to any such demolition order ; or
- (b) the Secretary of State may, on the application of the local authority, make an order authorising them to acquire the land, and thereupon, subject to the provisions of this section, this Act shall apply as if the said land were land authorised to be acquired compulsorily by a compulsory purchase order under Part III of this Act.

(2) The compensation to be paid for land purchased compulsorily under this section shall be the value, at the time when the valuation is made, of the site as a cleared site available for development in accordance with the building regulations for the time being in force in the district, and, subject as aforesaid, shall be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919.

(3) Where a local authority acquire land by virtue of this section, the provisions of section thirty of this Act shall apply as if the land had been acquired in connection with a clearance area.

PART II
—cont.

13.—(1) Where apart from this section a local authority would be under a duty to make a demolition order under this Part of this Act with respect to a house in relation to which a building preservation order under section twenty-seven of the Town and Country Planning (Scotland) Act, 1947, is in force, they shall instead make a closing order prohibiting the use of the house for human habitation, and shall serve a copy of the order on the person having the control of the house and also on any other person who is an owner thereof.

Provisions as to houses subject to building preservation orders.

(2) Where a building preservation order under the said section twenty-seven takes effect in relation to a house to which a demolition order made under this Part of this Act by a local authority applies (whether or not that order has become operative), the local authority shall determine the demolition order and make a closing order prohibiting the use of the house for human habitation, and shall serve on every such person as aforesaid notice that the demolition order has been determined and a copy of the closing order.

(3) A local authority by whom a closing order is made under this section shall determine the order on being satisfied that the house to which it relates has been rendered fit for human habitation.

14.—(1) When a demolition order under this Part of this Act has become operative, the owner of the house to which it applies shall demolish the house within the time limited in that behalf by the order; and, if the house is not demolished within that time, the local authority may enter and demolish the house and sell the materials thereof.

Procedure where demolition order made.

(2) Any expenses incurred by the local authority under the foregoing subsection, after giving credit for any amount realised by the sale of materials, may be recovered by them from the owner of the house, and any surplus in the hands of the authority shall be paid by them to the owner of the house.

15. If any person—

- (a) knowing that a closing order under this Part of this Act has become operative and applies to any premises, uses those premises or permits those premises to be used for any purpose unless he shall previously have obtained the consent of the local authority to the purpose for which the premises are proposed to be used; or
- (b) knowing that an undertaking has been given under this Part of this Act that any premises shall not be used for human habitation, uses those premises for human habitation or permits them to be so used;

Penalty for use of premises in contravention of closing order or of an undertaking.

he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds and to a further fine of five pounds for every day or part of a day on which he so uses them or permits them to be so used after conviction.

PART II
—cont.

Appeals, and
date of
operation of
certain notices,
orders, etc.

16.—(1) Subject to the provisions of subsections (1), (2) and (4) of section one hundred and sixty-six of this Act (which relate to procedure in appeals to the sheriff), any person aggrieved by—

- (a) a notice under this Part of this Act requiring the execution of works ;
- (b) a demand for the recovery of expenses incurred by a local authority in executing works ;
- (c) an order made by a local authority with respect to any such expenses ;
- (d) a demolition order made under this Part of this Act ;
- (e) a closing order so made or a refusal to determine a closing order ;

may appeal to the sheriff by giving notice of appeal within twenty-one days after the date of the service of the notice, demand or order, or after the refusal, as the case may be ; and no proceedings shall be taken by the local authority to enforce any notice, demand or order whilst an appeal against it is pending :

Provided that—

- (i) on an appeal under paragraph (b) or paragraph (c) of this subsection, no question shall be raised which might have been raised on an appeal against the original notice requiring the execution of the works ;
 - (ii) no appeal shall lie under paragraph (d) or paragraph (e) of this subsection at the instance of a person who is in occupation of the premises to which the order relates under a lease or agreement, the unexpired term of which does not exceed six months ; and
 - (iii) a person who has been served with a notice under subsection (1) of section nine of this Act shall not be entitled to raise any question on an appeal under paragraph (d) or paragraph (e) of this subsection against a demolition order or a closing order, if the question is one which was not raised by him at the consideration of the matter by the local authority, and which, if it had then been raised, could have been dealt with by means of such an undertaking as is mentioned in subsection (2) of the said section nine.
- (2) Upon the hearing of an appeal under this section—
- (i) the sheriff may, if he thinks fit, accept from an appellant any such undertaking as might have been accepted by the local authority, and any undertaking so accepted shall have the like effect as if it had been given to and accepted by the authority under this Part of this Act ; and
 - (ii) where the sheriff allows an appeal against a notice requiring the execution of works to a house, he shall, if requested by the authority so to do, include in his

determination a finding whether the house can or cannot be rendered fit for human habitation at a reasonable expense.

PART II
—cont.

(3) Any notice, demand or order against which an appeal might be brought under this section shall, if no such appeal is brought, become operative on the expiration of the period of twenty-one days above-mentioned and shall be final and conclusive as to any matters which could have been raised on such an appeal, and any such notice, demand or order against which an appeal is brought shall, if and so far as it is confirmed by the sheriff, become operative as from the date of the determination of the appeal.

17.—(1) Where any person has appealed to the sheriff against a notice under this Part of this Act requiring the execution of works to a house, and the sheriff in allowing the appeal has found that the house cannot be rendered fit for human habitation at a reasonable expense, the local authority may purchase that house by agreement, or may, subject to the provisions of this section, be authorised by the Secretary of State to purchase it compulsorily; and, if they purchase the house compulsorily, they shall forthwith execute all such works as were specified in the notice against which the appeal was brought.

Power of local authority to acquire and execute works on certain houses.

(2) The provisions of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to the compulsory purchase of a house under the foregoing subsection as if that subsection had been in force immediately before the commencement of that Act.

(3) A local authority shall not be authorised to purchase a house compulsorily under subsection (1) of this section unless a compulsory purchase order authorising the purchase is made and submitted in accordance with the said Act of 1947 by the local authority to the Secretary of State within six months after the determination of the appeal; and if any person being an owner of, or the holder of a heritable security over, the house undertakes to carry out to the satisfaction of the Secretary of State, and within such period as the Secretary of State may fix, the works specified in the notice against which the appeal was brought, the Secretary of State shall not confirm the compulsory purchase order unless that person has failed to fulfil his undertaking.

(4) The compensation to be paid for any house purchased compulsorily under subsection (1) of this section shall be the value, at the time when the valuation is made, of the site as a cleared site available for development in accordance with the requirements of the building regulations for the time being in force in the district and, subject as aforesaid, shall be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919.

PART II
—cont.

Power of local
authority to
cleanse from
vermin house
to which
demolition
order applies.

18.—(1) If it appears to the local authority that a house to which a demolition order made under this Part of this Act applies requires to be cleansed from vermin, the authority may, at any time after the order is made, serve notice in writing on the owner or owners of the house that the authority intend to cleanse it before it is demolished.

(2) A local authority who have served a notice under the foregoing subsection may, at any time after the order has become operative in relation to the house and it has been vacated, enter and carry out such work as they may think requisite for the purpose of destroying or removing vermin, and the demolition of the house shall not be begun or continued by any owner after service of the notice on him until the authority have served on him a further notice authorising him to proceed with the demolition:

Provided that an owner upon whom a notice has been served under the foregoing subsection may, at any time after the house has been vacated, serve notice in writing on the authority requiring them to carry out the work within fourteen days from receipt of the notice served by him, and at the expiration of that period shall be at liberty to proceed with the demolition of the house whether the work has then been completed or not.

(3) Where a local authority serve a notice under subsection (1) of this section, subsection (1) of section fourteen of this Act shall have effect in relation to the house subject to the proviso that the local authority shall not be entitled to take action thereunder until the expiration of three months from the date on which the owner or owners become entitled by virtue of subsection (2) of this section to proceed with the demolition.

General

Provisions for
protection of
superiors of
lands and
owners of
houses.

19.—(1) If the superior of any lands and heritages gives notice to the local authority of his right of superiority the authority shall give to him notice of any proceedings taken by them in pursuance of this Part of this Act in relation to the lands and heritages.

(2) Nothing in this Part of this Act shall prejudice or interfere with the rights or remedies of any owner for the breach, non-observance or non-performance of any contract or obligation entered into by a tenant or lessee with reference to any house in respect of which an order is made, or a notice requiring the execution of works is served, by a local authority under this Part of this Act; and if any owner is obliged to take possession of any house in order to comply with any such order or notice, the taking possession shall not affect his right to avail himself of any such breach, non-observance or non-performance which may have occurred before he so took possession.

20.—(1) Where any owner has completed in respect of any house any works required to be executed by a notice of a local authority under this Part of this Act, he may apply to the local authority for a charging order.

PART II
—cont.

Power of local authority to make charging order in favour of owner on completion of works.

(2) An owner applying for a charging order under this section shall produce to the local authority the certificate of their surveyor or engineer that the works have been executed to his satisfaction, and also the accounts of and vouchers for the costs, charges and expenses of the works, and the local authority, when satisfied that the owner has duly executed such works and of the amount of such costs, charges and expenses, and of the expenses of obtaining the charging order which have been properly incurred, shall make an order providing and declaring that the house is thereby charged and burdened with an annuity to repay the amount.

(3) The annuity charged shall be a sum of six pounds for every one hundred pounds of the said amount and so in proportion for any less sum, and shall commence from the date of the order and be payable for a term of thirty years to the owner named in such order, his executors or assignees.

(4) Any person aggrieved by a charging order made under this section may appeal to the sheriff on giving notice of appeal within one month after notice of the order has been served on him.

21.—(1) A charging order shall be in such form as the Secretary of State may prescribe, and shall be recorded in the appropriate Register of Sasines.

Provisions as to charging orders.

(2) Every annuity constituted a charge by a charging order, duly recorded in the appropriate Register of Sasines, shall be a charge on the premises specified in the order, having priority over all existing and future estates, interests and incumbrances, with the exception of—

(a) feuduties and teinds; and

(b) any charges on the premises created or arising under any provision of the Public Health (Scotland) Act, 1897, or any Act amending that Act, or under any provision in any local Act authorising a charge for recovery of expenses incurred by a local authority; and

(c) any charge created under any Act authorising advances of public money;

and where more annuities than one are charged under this Part of this Act on any premises such annuities shall, as between themselves, take order and preference according to the respective dates of the charging orders being recorded in the appropriate Register of Sasines.

(3) A charging order, duly recorded in the appropriate Register of Sasines, shall be conclusive evidence that all notices, acts

PART II
—cont.

and proceedings by this Part of this Act directed with reference to or consequent on the obtaining of such an order or the making of such a charge, have been duly served, done and taken, and that the charge has been duly created, and that it is a valid charge on the premises declared to be subject thereto.

(4) Every annuity charged by any such charging order may be recovered by the person for the time being entitled to it by the same means and in the like manner in all respects as if it were a rentcharge secured upon the premises by absolute order made under and in terms of the Improvement of Land Act, 1864.

(5) A charging order and all sums payable thereunder may be from time to time transferred in like manner as a bond and disposition in security or rentcharge may be transferred.

(6) Any owner of or other person interested in premises on which an annuity has been charged by any such charging order shall at any time be at liberty to redeem the annuity on payment to the person entitled to the annuity of such sum as may be agreed upon or in default of agreement determined by the Secretary of State.

Power of local
authority
to make
charging order
in favour of
themselves.

22. Where under section five or section eight of this Act a local authority have themselves incurred expenses in the execution of works, it shall be competent for them to make a charging order in favour of themselves in respect of such expenses, and the provisions of sections twenty and twenty-one of this Act shall, subject to any necessary modifications, apply to a charging order so made in like manner as they apply to a charging order made under the said section twenty.

Prohibition of
back-to-back
houses.

23.—(1) Notwithstanding anything in any local Act or bye-laws in force in any district, it shall not be lawful to erect any back-to-back houses intended to be used as dwellings, and any such house shall for the purposes of this Act be deemed to be unfit for human habitation:

Provided that nothing in this section shall prevent the erection or use of a house containing several dwellings in which the dwellings are placed back-to-back if the medical officer of health for the district certifies that the several dwellings are so constructed and arranged as to secure effective ventilation of all habitable rooms in every dwelling.

(2) This section shall apply to any house commenced to be erected after the third day of December, nineteen hundred and nine, except that it shall not apply to houses abutting on any streets, the plans whereof were approved by the local authority before the first day of May, nineteen hundred and nine, in any district in which, on the third day of December, nineteen hundred and nine, any local Act or byelaws were in force permitting the erection of back-to-back houses.

24.—(1) In sections seven to eighteen of this Act references to a house include a reference to a hut, tent, caravan or other temporary or movable form of shelter which is used for human habitation and has been on the same site or on a site in the immediate vicinity for a period of two years next before action is taken under those sections.

PART II
—cont.
Application of certain provisions of Part II to temporary shelters and to premises occupied by agricultural workers.

(2) In the said sections seven to eighteen references to a house include also a reference to premises occupied by agricultural workers notwithstanding that such premises are used for sleeping purposes only.

PART III

PROVISIONS AS TO CLEARANCE AREAS

Clearance Areas

25.—(1) Where a local authority, on consideration of an official representation or other information in their possession, are satisfied as respects any area in their district that—

Power to declare an area to be a clearance area.

- (i) the houses in that area or the greater part of those houses are by reason of disrepair or sanitary defects unfit for human habitation, or are by reason of their bad arrangement or the narrowness or bad arrangement of the streets injurious or dangerous to the health of the inhabitants of the area ; and
- (ii) that the most satisfactory method of dealing with the foresaid conditions is the demolition of all the buildings in the area ;

the authority shall cause that area to be defined on a map and shall pass a resolution (in this Act referred to as a "clearance resolution") declaring the area so defined to be a clearance area, that is to say, an area all the buildings in which are to be demolished in accordance with the provisions hereinafter contained :

Provided that—

- (a) a clearance area shall not include the site of a building unless at least part of the building consists of houses which are unfit for human habitation or injurious or dangerous to health or of other premises which are injurious or dangerous to health ; and
- (b) before passing a clearance resolution, the authority shall satisfy themselves that accommodation available for the persons who will be displaced by the demolition of buildings in the area exists, or can be provided by the authority in advance of the displacements which will

PART III
—*cont.*

from time to time become necessary as the demolition proceeds, and that the resources of the authority are sufficient for the purpose of carrying the resolution into effect.

(2) A local authority shall forthwith transmit to the Secretary of State a copy of any resolution passed by them under this section, together with a statement of the number of persons who, on a day specified in the statement, being a day within two months immediately preceding the date of the resolution, were ordinarily occupying the buildings comprised in the clearance area.

(3) So soon as may be after a local authority have passed a clearance resolution, but subject always to the provisions of section forty-two of this Act, they shall proceed to secure the demolition of the buildings in the clearance area in one or other of the following ways, or partly in one of those ways and partly in the other of them, that is to say—

- (i) by ordering the demolition of buildings in the area ; or
- (ii) by purchasing land within the area and themselves undertaking, or otherwise securing, the demolition of the buildings.

**Clearance
orders.**

26.—(1) Where as respects any area declared by them to be a clearance area a local authority determine to order any buildings within the area to be demolished, they shall make and submit to the Secretary of State, for confirmation by him, an order (in this Act referred to as a “clearance order”) ordering the demolition of each of those buildings.

(2) The provisions of the First Schedule to this Act shall have effect with respect to the making, submission and confirmation of clearance orders, and the provisions of the Second Schedule to this Act shall have effect with respect to the validity and date of operation of such orders.

(3) When a clearance order has become operative, the owner of any building to which the order applies shall demolish that building before the expiration of three months from the date on which the building is required by the order to be vacated or, if it is not vacated until after that date, before the expiration of three months from the date on which it is vacated ; and, if the building is not demolished before the expiration of that period, the local authority may enter and demolish the building and sell the materials thereof.

(4) When a clearance order has become operative, no land to which the order applies shall be used for building purposes (which expression includes the erection or placing on the land of a hut, tent, caravan or other temporary or movable form of

shelter), or otherwise developed, except subject to such restrictions and conditions, if any, as the local authority may think fit to impose:

PART III
—*cont.*

Provided that an owner who is aggrieved by a restriction or condition so imposed on the use of his land (not being a restriction or condition relating exclusively to the erection or placing on the land of huts, tents, caravans, or other temporary or movable forms of shelter) may, at any time within three months after the restriction or condition is imposed, require the authority to purchase the land at a price to be assessed, failing agreement, as if it were compensation for a compulsory purchase by the Lands Tribunal in accordance with the provisions of section thirty-six of this Act.

(5) A person who commences, or causes to be commenced, any work in contravention of a restriction or condition imposed under the last foregoing subsection shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding two pounds and to a further fine not exceeding ten pounds in respect of each day during which the work exists in such a form and state as to contravene the restriction or condition after conviction.

(6) Any expenses reasonably and necessarily incurred by the authority under subsection (3) of this section, after giving credit for any amount realised by the sale of materials, may be recovered by them from the owner of the building, and any surplus in the hands of the authority shall be paid by them to the owner of the building:

Provided that, where the building belongs to more than one owner any sum recoverable or payable by the authority under this subsection shall be recoverable from or payable to the several owners in such proportions as the owners may agree or, failing agreement, as shall be determined by an arbiter nominated by the owners or, failing such nomination, nominated on the application of the authority or any of the owners by the sheriff.

(7) The provisions of section eighteen of this Act relating to the cleansing of houses from vermin shall have effect in relation to a building to which a clearance order applies as they have effect in relation to a house to which a demolition order made under Part II of this Act applies with the substitution for the reference to the date on which the demolition order is made of a reference to the date on which the clearance order is made, and for the reference to subsection (1) of section fourteen of this Act of a reference to subsection (3) of this section.

(8) In the provisions of this Part of this Act relating to buildings included in an area to which a clearance order applies references to a building shall include references to a hut, tent, caravan or other temporary or movable form of shelter which

PART III
—cont.

is used for human habitation and has been on the same site or a site in the immediate vicinity for a period of two years next before action is taken under those provisions.

Purchase by
a local authority
of land
surrounded by
or adjoining
clearance area.

27. Where as respects any area declared by them to be a clearance area a local authority determine to purchase any land comprised in the clearance area, they may purchase also any land which is surrounded by the clearance area and the acquisition of which is reasonably necessary for the purpose of securing an area of convenient shape and dimensions, and any adjoining land the acquisition of which is reasonably necessary for the satisfactory development or use of the clearance area.

Provisions
with respect to
property
belonging to a
local authority
within or
adjacent to a
clearance area.

28. Subject to the provisions of this section, a local authority may include in a clearance area any land belonging to them which they might have included in such an area if it had not belonged to them; and where any land belonging to a local authority is included in a clearance area, or where any land belonging to a local authority is surrounded by or adjoins a clearance area and might have been purchased by the authority under the last foregoing section had it not been previously acquired by them, the provisions of this Act shall apply in relation to any such land as if it had been purchased compulsorily by the authority as being land comprised in the clearance area or, as the case may be, as being land surrounded by or adjoining the clearance area:

Provided that the foregoing provisions of this section shall not apply in the case of any land being dwellings which were acquired by the local authority under any such Act or order as is mentioned in section one hundred and forty-four of this Act and in such circumstances that the provisions of paragraph 1 of the Fifth Schedule to the Housing (Scotland) Act, 1925, or, in the case of land acquired after the commencement of this Act, the provisions of paragraph 1 of the Twelfth Schedule to this Act, took effect in relation thereto.

Purchase of
land in or
adjoining a
clearance area.

29.—(1) Where a local authority have determined to purchase under this Part of this Act land comprised in, or surrounded by or adjoining, a clearance area, they may purchase the land by agreement or they may be authorised to purchase the land compulsorily by a compulsory purchase order made and submitted to the Secretary of State and confirmed by him in accordance with the provisions of the Third Schedule to this Act.

(2) An order authorising the compulsory purchase of land comprised in a clearance area shall be submitted to the Secretary of State within six months, and an order authorising the compulsory purchase of land surrounded by or adjoining a clearance area shall be submitted to the Secretary of State within twelve

months, after the date of the clearance resolution or within such longer period as the Secretary of State may, in the circumstances of the particular case, allow.

PART III
—cont.

(3) The provisions of the Second Schedule to this Act shall have effect with respect to the validity and the date of operation of a compulsory purchase order made under this section.

30.—(1) A local authority who have under this Part of this Act purchased any land comprised in, or surrounded by or adjoining, a clearance area shall, as soon as may be, cause every building thereon to be vacated and, subject to compliance with any provision contained in a compulsory purchase order with respect to the carrying out of rehousing operations, shall deal with the land in one or other of the following ways, or partly in one of those ways and partly in the other of them, that is to say—

- (a) they shall, so soon as may be, demolish the buildings thereon and thereafter may sell or let the land subject to such restrictions and conditions, if any, as they think fit, or may, in accordance with the provisions of section one hundred and sixty-three of the Local Government (Scotland) Act, 1947, appropriate the land for any purpose for which they are authorised to acquire land; or
- (b) they shall, so soon as may be, sell or let the land subject to a condition that the buildings thereon shall be demolished forthwith and subject to such restrictions and conditions, if any, as they think fit:

Provided that, in lieu of selling the land, the authority may, where the owner of other land (being land which the authority have power to acquire) is willing to take the land in exchange for that other land, excamb it for that other land either with or without paying or receiving money for equality of exchange, and in relation to any such exchange the like provisions shall have effect as respects the land to be excambed by the local authority as have effect by virtue of this subsection as respects land sold thereunder.

(2) For the purposes of this section, “sell” includes sell in consideration of a ground annual or other similar periodical payment.

31. Where a local authority have submitted to the Secretary of State an order for the compulsory purchase of land in a clearance area and the Secretary of State, on an application for an authorisation under this section being made to him by the owner of the land and the authority, is satisfied that the owner

Arrangements where acquisition of land in clearance area found to be unnecessary.

PART III
—cont.

of the land, with the concurrence of any heritable creditor, agrees to the demolition of the buildings thereon and that the authority can secure the proper clearance of the area without acquiring the land, the Secretary of State may—

- (a) in a case where the order has not been confirmed, authorise the authority to submit, forthwith and without any previous publication or service, a clearance order with respect to the buildings, and upon their so doing may modify the compulsory purchase order by excluding the land therefrom and confirm the clearance order without causing an inquiry to be held ; or
- (b) in a case where the compulsory purchase order has been confirmed but the land has not become vested in the authority, authorise them to discontinue proceedings for the purchase of the land on their being satisfied that such agreements have been or will be entered into by all necessary parties as may be requisite for securing that the buildings shall be demolished in like manner, and the land become subject to the like restrictions and conditions, as if the authority had dealt with the land in accordance with the provisions of the last foregoing section of this Act.

Power of local
authority
to purchase
cleared land
which owners
have failed to
redevelop.

32.—(1) Where land has been cleared of buildings in accordance with a clearance order made under this Part of this Act the local authority may, at any time after the expiration of eighteen months from the date on which the clearance order became operative, by resolution determine to purchase any part of that land which, at the date of the passing of their resolution, has not been or is not in process of being used for building purposes or otherwise developed by the owner thereof.

(2) Where a local authority have determined to purchase land under this section, they may purchase the land by agreement or they may be authorised to purchase the land compulsorily by a compulsory purchase order made and submitted to the Secretary of State and confirmed by him in accordance with the provisions of the Third Schedule to this Act.

(3) The provisions of the Second Schedule to this Act shall have effect with respect to the validity and the date of operation of a compulsory purchase order made under this section.

(4) A local authority shall deal with any land purchased by them under this section by sale, letting or appropriation in accordance with the provisions of section thirty of this Act.

Provisions as to acquisition, etc., of land under Part III

PART III

—cont.

Provisions as to
commons and
open spaces.

33.—(1) Where an order under this Part of this Act authorises the acquisition of land forming part of a common or open space, the order, so far as it relates to the acquisition of such land, shall be subject to special parliamentary procedure except where the order provides for giving in exchange for such land other land, not being less in area, certified by the Secretary of State to be equally advantageous to the persons, if any, entitled to common or other rights and to the public.

(2) Before giving any such certificate the Secretary of State shall give public notice of the proposed exchange and shall afford opportunities to all persons interested to make representations and objections in relation thereto, and shall, if necessary, hold a local inquiry on the subject.

(3) Where any such order authorises such an exchange, the order shall provide for vesting the land given in exchange in the persons in whom the common or open space was vested, subject to the same rights, trusts and incidents as attached to the common or open space, and for discharging the part of the common or open space acquired from all rights, trusts and incidents to which it was previously subject.

(4) Any inquiry required by this Act in connection with any such order as is mentioned in subsection (1) of this section shall, if the Secretary of State so directs, be held by Commissioners under the Private Legislation Procedure (Scotland) Act, 1936; and any direction so given shall be deemed to have been given under section two, as read with section ten, of the Statutory Orders (Special Procedure) Act, 1945.

(5) Where any such direction as is mentioned in the last foregoing subsection is given, paragraph 5 of the Third Schedule to this Act shall have effect as if for references to a public local inquiry and to the person who held the inquiry there were substituted respectively references to an inquiry by the Commissioners aforesaid and to those Commissioners.

(6) The publication of a notice in accordance with the provisions of paragraph 4 of the Third Schedule to this Act in connection with any such order as is mentioned in subsection (1) of this section shall be deemed to be a sufficient compliance with the requirements of the Statutory Orders (Special Procedure) Act, 1945, with respect to the giving of notice by advertisement.

34.—(1) Where any land proposed to be acquired under this Part of this Act is situate within the prescribed distance from any of the royal palaces or parks, the local authority shall communicate with the Minister of Works, and the Secretary of State

Provisions
as to land in
neighbourhood
of royal palaces
or parks.

PART III
—cont.

shall, before authorising the acquisition of the land or the raising of any loan for the purpose, take into consideration any recommendations he may have received from the Minister of Works with reference to the proposal.

(2) For the purposes of this section “prescribed” means prescribed by regulations made by the Secretary of State after consultation with the Minister of Works.

Saving for sites
of ancient
monuments,
etc.

35. Nothing in this Part of this Act shall authorise the acquisition for the purposes of this Act of any land which is the site of an ancient monument or other object of archaeological interest.

Assessment of
compensation
in respect of
land
compulsorily
acquired under
Part III.

36.—(1) Where land is purchased compulsorily by a local authority under this Part of this Act, the compensation payable in respect thereof shall be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, subject to the following provisions of this section.

(2) The compensation to be paid for a house which is specified in a compulsory purchase order as unfit for human habitation shall be such amount as represents the value at the time the valuation is made of the site of the house as a cleared site available for development in accordance with the requirements of the building regulations for the time being in force in the district:

Provided that this subsection shall not have effect in the case of a house or other premises properly included in a clearance area only on the ground that, by reason of their bad arrangement in relation to other buildings or the narrowness or bad arrangement of the streets, they are injurious or dangerous to the health of the inhabitants of the area.

(3) In the case of land purchased as aforesaid, other than land in respect of which the provisions of the last foregoing subsection have effect, the rules contained in the Fourth Schedule to this Act shall be observed.

Compensation
in respect of
sanitary
premises
required to be
demolished.

37. Where in pursuance of a clearance order any premises (other than a house specified in the order as unfit for human habitation) are required by a local authority to be demolished by the owner, the authority shall pay to the owner in respect of the demolition by way of compensation a sum representing the difference between—

(i) the sum which would have been payable as compensation if the premises had been acquired by the authority under a compulsory purchase order; and

- (ii) the sum which would have been so payable if the premises had been a house specified in a compulsory purchase order as unfit for human habitation.

PART III
—cont.

Subject to the provisions of this section the compensation payable under this section shall be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, subject to the necessary modifications, as if it were compensation in respect of land compulsorily acquired by the local authority.

General provisions as to clearance, etc.

38.—(1) Where a local authority are by an order made and confirmed under this Part of this Act authorised to purchase land compulsorily for the purposes of this Part of this Act, then, at any time after notice to treat has been served, the authority may, after giving to the owner and occupier of the land not less than twenty-eight days' notice, enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with the provisions of sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845, but subject to the payment of the like compensation for the land of which possession is taken, and interest on the compensation awarded, as would have been payable if those provisions had been complied with.

Power of entry
on land
acquired under
Part III.

(2) Where a local authority have agreed to purchase, or have determined to appropriate, land for the purposes of this Part of this Act, subject to the interest of the person in possession thereof, and that interest is not greater than that of a tenant for a year or from year to year, then, at any time after such agreement has been made, or such appropriation takes effect, the authority may, after giving to the person so in possession not less than twenty-eight days' notice, enter on and take possession of the land or such part thereof as is specified in the notice without previous consent, but subject to the payment to the person so in possession of the like compensation, with such interest thereon as aforesaid, as if the local authority had been authorised to purchase the land compulsorily and such person had in pursuance of such power been required to give up possession before the expiration of his term or interest in the land, but without the necessity of compliance with sections eighty-three to eighty-eight of the Lands Clauses Consolidation (Scotland) Act, 1845.

39. Any person who objects to a clearance order on the ground that a building included therein, being a building in which he is interested, is not unfit for human habitation, or who objects on the like ground to a compulsory purchase order made under this Part of this Act, and who appears at the public local inquiry in support of his objection, shall, if the building is included in the order as confirmed as being unfit for human

Obligation of
Secretary of
State
to state reasons
for deciding
that a building
is unfit for
human
habitation.

PART III
—cont.

habitation, be entitled on making a request in writing to be furnished by the Secretary of State with a statement in writing of his reasons for deciding that the building is so unfit.

Payments in
respect of
well-
maintained
houses.

40.—(1) Where as respects a house which is made the subject of a compulsory purchase order under this Part of this Act as being unfit for human habitation, or which is made the subject of a clearance order as being so unfit (being, in either case, an order made on or after the twentieth day of December, nineteen hundred and thirty-four) the Secretary of State is satisfied, after causing the house to be inspected by one of his officers, that, notwithstanding its sanitary defects, it has been well maintained, the Secretary of State may give directions for the making by the local authority of a payment under this section in respect of the house.

(2) A payment under this section shall be of an amount equal either—

(a) to the amount by which the aggregate expenditure which is shown to the satisfaction of the local authority to have been incurred in maintaining the house during the five years immediately before the date on which the order was made exceeds an amount equal to the rateable value of the house ; or

(b) to one and one-fifth times (or, if at that date the house is occupied by an owner thereof and has been owned and occupied by him or by a member of his family continuously during the three years immediately before that date, two and two-fifths times) the rateable value of the house ;

whichever is the greater.

(3) A payment under this section shall be made—

(a) if the house is occupied by an owner thereof, to him ; or

(b) if the house is not so occupied, to the person or persons liable to maintain and repair the house, and, if more than one person is so liable, in such shares as the authority think equitable in the circumstances :

Provided that, if any other person satisfies the local authority that the good maintenance of the house is attributable to a material extent to work carried out by him or at his expense, the local authority may, if it appears to them to be equitable in the circumstances, make the payment, in whole or in part, to him.

(4) In this section the expression “ rateable value ” means the rateable value entered in the valuation roll last authenticated prior to the date on which the order was made.

41.—(1) The Secretary of State may make such order as he thinks fit in favour of any owner or lessee of any lands included in a clearance order or a compulsory purchase order made under this Part of this Act, or any superior of or any holder of a heritable security over such lands, for the allowance of the reasonable expenses properly incurred by him in opposing such clearance order or compulsory purchase order.

PART III
—*cont.*
Provisions as to expenses incurred in relation to orders under Part III.

(2) All expenses incurred by the Secretary of State in relation to any such clearance order or compulsory purchase order as aforesaid, to such amount as the Secretary of State thinks proper to direct, and all expenses of any person to such amount as may be allowed to him by the Secretary of State in exercise of the aforesaid power, shall be deemed to be expenses incurred by the local authority under this Act, and shall be paid to the Secretary of State and to that person respectively in such manner and at such times and either in one sum or by instalments as the Secretary of State may order; and the Secretary of State may direct interest to be paid at such rate not exceeding five pounds per centum per annum as he may determine upon any sum for the time being due in respect of such expenses as aforesaid.

(3) Where any such order with respect to expenses is made by the Secretary of State in pursuance of this section, the Court of Session may, on the application of the Lord Advocate on behalf of the Secretary of State, or on the application of any person interested, interpose their authority to the order and grant decree conform thereto upon which execution and diligence may proceed in common form.

(4) Nothing in the foregoing provisions of this section shall have effect in relation to any compulsory purchase of land for the purposes of Part V of this Act.

42. A local authority who have passed a clearance resolution shall, before taking any action under that resolution which will necessitate the displacement of any persons, undertake to carry out such rehousing operations, if any, within such period as the Secretary of State may consider to be reasonably necessary.

Obligations of local authority with respect to rehousing.

43.—(1) A local authority may, with the approval of the Secretary of State, by order extinguish any public right of way over any land purchased by them under this Part of this Act or provide for the closing or diversion of any street in connection with the development of a clearance area, but an order made by an authority under this subsection shall be published in the prescribed manner, and if any objection thereto is made to the Secretary of State before the expiration of two months from

Extinction of rights of way, servitudes, etc., over land purchased under Part III.

PART III
—*cont.*

the publication thereof, the Secretary of State shall not approve the order until he has caused a public local inquiry to be held into the matter.

(2) Where a local authority have resolved to purchase under this Part of this Act land over which a public right of way exists, it shall be lawful under the foregoing subsection for the authority to make and the Secretary of State to approve, in advance of the purchase, an order extinguishing that right as from the date on which the buildings on the land are vacated, or at the expiration of such period after that date as may be specified in the order or as the Secretary of State in approving the order may direct.

(3) Upon the completion by a local authority of the purchase by them of any land under this Part of this Act, all private rights of way and all rights of laying down, erecting, continuing or maintaining any apparatus on, under or over that land, and all other rights or servitudes in or relating to that land, shall be extinguished, and any such apparatus shall vest in the local authority; and any person who suffers loss by the extinction or vesting of any such right or apparatus as aforesaid shall be entitled to be paid by the local authority compensation to be determined by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919:

Provided that this subsection shall not apply to any right vested in public undertakers of laying down, erecting, continuing or maintaining any apparatus or to any apparatus belonging to public undertakers, and shall have effect as respects other matters subject to any agreement which may be made between the local authority and the person in or to whom the right or apparatus in question is vested or belongs.

Provisions as to
apparatus of
public
undertakers
in land dealt
with by local
authority.

44.—(1) Where the removal or alteration of apparatus belonging to public undertakers on, under or over land purchased by a local authority under this Part of this Act or on, under or over a street running over or through or adjoining any such land is reasonably necessary for the purpose of enabling the authority to exercise any of the powers conferred upon them by this Part of this Act, the local authority shall have power to execute works for the removal or alteration of the apparatus subject to and in accordance with the provisions of this section.

(2) A local authority who intend to remove or alter any apparatus under the powers conferred by the foregoing subsection shall serve on the undertakers notice in writing of their intention, with particulars of the proposed works and of the manner in which they are to be executed and plans and sections thereof, and shall not commence any works until the expiration of a period of twenty-eight days from the date of service

of the notice, and the undertakers may within that period by notice in writing served on the authority—

PART III
—cont.

- (a) object to the execution of the works or any of them on the ground that they are not necessary for the purpose aforesaid ; or
- (b) state requirements to which in their opinion effect ought to be given as to the manner of, or the observance of conditions in, the execution of the works, as to the execution of other works for the protection of other apparatus belonging to the undertakers, or as to the execution of other works for the provision of substituted apparatus whether permanent or temporary ;

and—

- (i) if objection is so made to any works and not withdrawn, the local authority shall not execute the works unless they are determined by arbitration to be so necessary ;
- (ii) if any such requirement as aforesaid is so made and not withdrawn, the local authority shall give effect thereto unless it is determined by arbitration to be unreasonable.

(3) A local authority shall make to public undertakers reasonable compensation for any damage which is sustained by them by reason of the execution by the authority of any works under subsection (1) of this section and which is not made good by the provision of substituted apparatus. Any question as to the right of undertakers to recover compensation under this subsection or as to the amount thereof shall be determined by arbitration.

(4) Where the removal or alteration of apparatus belonging to public undertakers or the execution of works for the provision of substituted apparatus whether permanent or temporary is reasonably necessary for the purposes of their undertaking by reason of the stopping up, diversion or alteration of the level or width of a street by a local authority under powers exercisable by virtue of this Act, they may, by notice in writing served on the authority, require them at the expense of the authority to remove or alter the apparatus or to execute the works, and where any such requirement is so made and not withdrawn, the local authority shall give effect thereto unless they serve notice in writing on the undertakers of their objection to the requirement within twenty-eight days from the date of service of the notice upon them and the requirement is determined by arbitration to be unreasonable.

(5) At least seven days before commencing any works which they are authorised or required under the foregoing provisions

PART III
—cont.

of this section to execute, the local authority shall, except in case of emergency, serve on the undertakers notice in writing of their intention so to do, and the works shall be executed by the authority under the superintendence (at the expense of the authority) and to the reasonable satisfaction of the undertakers:

Provided that, if within seven days from the date of service on them of notice under this subsection the undertakers so elect, they shall themselves execute the works in accordance with the reasonable directions and to the reasonable satisfaction of the authority, and the reasonable costs thereof shall be repaid to the undertakers by the authority.

(6) Any difference arising between public undertakers and a local authority under the last foregoing subsection and any matter which is by virtue of the foregoing provisions of this section to be determined by arbitration shall—

- (a) in the case of a question arising under subsection (3) of this section be referred to and determined by the Lands Tribunal;
- (b) in any other case be referred to and determined by an arbiter to be appointed, in default of agreement, by the Secretary of State.

(7) In this section references to the alteration of apparatus include references to diversion and to alterations of position or level.

Protection for
superiors of,
and holders of
heritable
securities over,
subjects
included in
clearance order
or compulsory
purchase
order under
Part III.

45.—(1) Before submitting to the Secretary of State for confirmation a clearance order, or a compulsory purchase order for the purposes of this Part of this Act, the local authority shall require the owner of any subjects to which the order relates to furnish a written statement specifying the name and address of the superior of, and the holder of any heritable security over, such subjects.

(2) A local authority to whom the name and address of any person has been furnished in pursuance of the foregoing subsection by the owner of any subjects shall serve on that person the like notice as they are required to serve on the owner.

(3) If any person fails to give to the local authority any information required by them under subsection (1) of this section, or knowingly makes any misstatement with reference thereto, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds.

*Demolition of obstructive buildings*PART III
—cont.

46.—(1) A local authority may serve upon the owner or owners of a building which appears to the authority to be an obstructive building notice of the time (being some time not less than one month after the service of the notice) and place at which the question of demolishing the building will be considered by the authority.

Power of local authority to secure demolition of obstructive building.

(2) Where a local authority serve a notice under the foregoing subsection on an owner of a building, they shall at the same time require him to furnish within two weeks thereafter a written statement specifying the name and address of the superior of whom such owner holds, and of the holder of any heritable security over the owner's interest in the building, and the local authority shall, as soon as may be after receipt of such statement, serve on any person whose name is included therein notice of the time and place at which the question of demolishing the building will be considered.

(3) Any person on whom a notice is served in pursuance of the foregoing provisions of this section shall be entitled to be heard when the question of demolishing the building to which the notice relates is taken into consideration.

(4) If, after so taking the matter into consideration, the authority are satisfied that the building is an obstructive building and that the building or any part thereof ought to be demolished, they may pass a resolution that the building or that part thereof shall be demolished, and may, by such resolution, require that the building, or such part thereof as is required to be vacated for the purposes of the demolition, shall be vacated within two months from the date on which the resolution becomes operative, and, if they do so, shall serve a copy of the resolution upon the owner or owners of the building.

(5) If any person fails to give to the local authority any information required by them under subsection (2) of this section or knowingly makes any misstatement with reference thereto, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds.

(6) In this section the expression "obstructive building" means a building which, by reason only of its contact with, or proximity to, other buildings, is injurious or dangerous to health.

(7) This section shall not apply to a building which is the property of public undertakers, unless it is used for the purposes of a dwelling, showroom or office, or which is the property of a local authority.

PART III
—cont.

Effect of
resolution for
demolition of
obstructive
building.

47.—(1) If, before the expiration of the period within which a building in respect of which a resolution is passed under the last foregoing section is thereby required to be vacated, any owner or owners whose estate or interest, or whose combined estates or interests, in the building and the site thereof is or are such that the acquisition thereof by the local authority would enable the authority to carry out the demolition without having passed such a resolution as aforesaid, make to the authority an offer for the sale of that estate or interest, or of those estates or interests, to the authority at a price to be assessed, as if it were compensation for a compulsory purchase, by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, subject to observance of the rules contained in the Fourth Schedule to this Act, the authority shall accept the offer and shall, as soon as possible after obtaining possession, carry out the demolition.

(2) If no such offer as is mentioned in the foregoing subsection is made before the expiration of the said period, the local authority shall, as soon as may be thereafter, carry out the demolition and shall have the like right to sell the materials rendered available thereby as if they had purchased the building.

(3) Where the demolition of a building is carried out under the last foregoing subsection, compensation shall be paid by the authority to the owner or owners in respect of loss arising from the demolition, and that compensation shall, notwithstanding that no land is acquired compulsorily by the local authority, be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, subject to observance of the rules contained in the Fourth Schedule to this Act, except that paragraphs (2) to (6) of section two of that Act shall not apply and that paragraph (1) of the said section two shall have effect with the substitution, for the reference to acquisition, of a reference to demolition.

(4) Sections sixteen and nineteen of this Act shall have effect in relation to a resolution passed under the last foregoing section and to a building or part of a building to which such a resolution applies as they have effect in relation to a demolition order under Part II of this Act and to a house or building to which such an order applies, as if the references therein to a demolition order included references to such a resolution as aforesaid and the references therein to Part II of this Act included references to the last foregoing section and this section.

PART IV

PREVENTION OF OVERCROWDING

48.—(1) If at any time or times it appears to a local authority that occasion has arisen therefor, or if the Secretary of State so directs, it shall be the duty of the authority to cause an inspection of their district, or of any part thereof, to be made with a view to ascertaining what houses therein are overcrowded, and to prepare and submit to the Secretary of State a report showing in such detail as he may direct the result of the inspection and the additional housing accommodation required in order to put an end to overcrowding in their district or in that part, and, unless they satisfy the Secretary of State that the additional accommodation required will be otherwise provided, to prepare and submit to him proposals for the provision thereof. Where the Secretary of State gives a direction under this subsection, he may fix dates before which the performance of the said duties is to be completed.

Duty of local authority to inspect and to make reports and proposals as to overcrowding.

(2) Any proposals under this section for the provision of additional housing accommodation shall be accompanied by a statement of the steps which the local authority propose to take to secure that the rehousing of families living under the worst conditions as regards overcrowding or otherwise living under unsatisfactory housing conditions is provided for first.

49.—(1) A house shall be deemed for the purposes of this Act to be overcrowded at any time when the number of persons sleeping in the house either—

Definition of overcrowding.

- (a) is such that any two of those persons, being persons ten years old or more of opposite sexes and not being persons living together as husband and wife, must sleep in the same room ; or
- (b) is, in relation to the number and floor area of the rooms of which the house consists, in excess of the permitted number of persons as defined in the Fifth Schedule to this Act.

(2) In computing for the purposes of this section the number of persons sleeping in a house, no account shall be taken of a child under one year old, and a child who has attained one year and is under ten years old shall be reckoned as one half of a unit.

PART IV
—cont.

Offences in
relation to
overcrowding.

50.—(1) Subject to the provisions of this Part of this Act, if after the appointed day the occupier of a house causes or permits it to be overcrowded, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty shillings.

(2) The occupier of an overcrowded house shall not, unless he has failed to accept an offer of suitable alternative accommodation or to secure the removal of any person living in the house who is not a member of his family and whose removal is reasonably practicable, be guilty of an offence under this section in respect of the overcrowding of the house if—

- (i) the house was overcrowded on the appointed day, or became overcrowded on a subsequent day by reason of a child attaining one of the ages referred to in the last foregoing section ; and
- (ii) all the persons sleeping in the house are either—
 - (a) persons who were living there on the appointed day or on such subsequent day, as the case may be, and have continuously thereafter lived there ; or
 - (b) children of any of those persons born thereafter :

Provided that, where the occupier of the house is an owner thereof who acquired his title prior to the second day of August, nineteen hundred and thirty-five, the provision with regard to failure to accept an offer of suitable alternative accommodation shall not apply if acceptance of the offer would cause such occupier serious hardship in connection with the disposal of the house.

(3) The occupier of a house shall not be guilty of an offence under this section in respect of any overcrowding thereof which is occasioned by the residence therein for a period not exceeding sixteen days of a person to whom lodging is afforded by the occupier otherwise than for gain.

Power of
Secretary
of State to
increase the
permitted
number
temporarily
to meet
exceptional
conditions.

51.—(1) Where, on the representation of a local authority and after consultation with the Scottish Housing Advisory Committee appointed under this Act, the Secretary of State is satisfied that houses consisting of few rooms, or comprising rooms of exceptional floor area, constitute so large a proportion of the housing accommodation in the district of the authority, or in any part thereof, that the application of the provisions of the Fifth Schedule to this Act throughout the district, or that part thereof, immediately after the appointed day would be impracticable, he may by order direct that, in relation to those houses or to such of them as are of a specified class, the said provisions shall, during such period not exceeding three years from the

coming into operation of the order as may be specified therein and any extension of that period which the Secretary of State, upon application by the local authority, may allow, have effect subject to such modifications for increasing the permitted number of persons as may be specified therein, and the order may specify different modifications in relation to different classes of houses.

PART IV
—cont.

(2) After consultation with the local authority and the said Committee, the Secretary of State may by order revoke any such order as aforesaid or vary the provisions of any such order either as respects the modifications specified therein or as respects the houses to which the modifications apply or as respects both.

52.—(1) Where it appears to a local authority, having regard to the existence of exceptional circumstances, to be expedient so to do, they may, on the application of the occupier or intending occupier of a house in their district, grant him a licence authorising him to permit such number of persons in excess of the permitted number as may be specified in the licence to sleep in the house.

Power of local authority to authorise the temporary use of a house by persons in excess of the permitted number.

(2) A licence granted under this section shall be in the prescribed form and may be granted either unconditionally or subject to any conditions specified therein.

(3) A licence granted under this section shall, unless previously revoked, continue in force for such period (not exceeding twelve months) as may be specified therein, but may be revoked by the local authority at their discretion by means of a notice in writing served upon the occupier and specifying a period (not being less than one month from the date of the service of the notice) at the expiration of which the licence is to cease to be in force.

(4) A copy of any licence granted under this section, and of any notice served thereunder, shall be served on the landlord, if any, of the house to which it relates within seven days after the issue of the licence or the service of the notice on the occupier, as the case may be.

(5) The occupier of a house shall not be guilty of an offence under section fifty of this Act by reason of anything done by him under the authority of, and in accordance with any conditions specified in, a licence in force under this section.

53.—(1) With a view to making provision for any seasonal influx of holiday visitors into their district, it shall be lawful for a local authority, with the approval of the Secretary of State, to pass a resolution authorising, subject to such conditions as may

Provision for seasonal influx of holiday visitors.

PART IV
—cont.

be specified therein, the occupiers of houses generally or of houses of any specified class in the authority's district, or in any specified part thereof, to permit during any period for which the resolution is in force such number of persons in excess of the permitted number to sleep in the said houses as may be specified in the resolution.

(2) A resolution under the foregoing subsection shall remain in force during the year in which it is passed for such period or periods not exceeding sixteen weeks in the aggregate as may be specified in the resolution.

(3) The occupier of a house shall not be guilty of an offence under section fifty of this Act by reason of anything done by him in accordance with any resolution under subsection (1) of this section.

Information
with respect to
the permitted
number and
certification of
number and
floor areas of
rooms.

54.—(1) The landlord of a house shall not, after the appointed day, let or agree to let it to any person unless he has furnished to him a written statement in the prescribed form of the permitted number of persons in relation to the house and has obtained from him a written acknowledgment in the prescribed form, which acknowledgment the landlord shall be bound to exhibit to the local authority on demand by them; and any person who contravenes or fails to comply with this subsection shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding two pounds.

(2) It shall be the duty of the local authority, as soon as may be after they have ascertained the floor area of the rooms of a house, to inform the landlord and the occupier thereof in writing of the permitted number of persons in relation to the house, and, on application by the landlord or the occupier of any house, to give him the like information in relation thereto. A statement furnished to the occupier of a house in pursuance of the foregoing subsection shall be deemed to be a sufficient and correct statement if it agrees with information given under this subsection.

(3) The Secretary of State shall prescribe the manner in which the floor area of a room is to be ascertained for the purposes of the Fifth Schedule to this Act, and the regulations may provide for the exclusion from computation, or for the bringing into computation at a reduced figure, of floor space in any part of a room which is of less than a specified height.

(4) A certificate of the local authority stating the number and floor areas of the rooms in a house, and that the floor areas thereof have been ascertained in the prescribed manner, shall, for the purposes of any legal proceedings, be evidence of the facts stated therein.

55.—(1) Where a house is overcrowded in such circumstances as to render the occupier thereof guilty of an offence, nothing in the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, shall prevent the landlord from obtaining possession of the house.

PART IV
—cont.

Recovery of
possession of
overcrowded
house.

(2) Where a house is overcrowded in such circumstances as to render the occupier guilty of an offence, it shall be lawful for the local authority, after giving to the landlord written notice of their intention so to do, to take any such steps for the termination of the occupier's tenancy or for his removal or ejection from the house as the landlord could take.

(3) Where, before the appointed day, any house is overcrowded and has been overcrowded for at least six months, nothing in the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, shall prevent the making of an order for the recovery of possession of the house or for the removal or ejection of the occupier, if the court is satisfied that it is reasonable to make such an order and that suitable alternative accommodation has been offered to and is available for the occupier; and in the case of any such house it shall be lawful for the local authority to take any such steps for the termination of the occupier's tenancy or for his removal or ejection as the landlord could take:

Provided that no order for the removal or ejection of the occupier of a house to which the aforesaid Acts do not apply shall be made on the application of the local authority unless the court is satisfied as aforesaid.

56.—(1) It shall be the duty of a local authority to enforce the foregoing provisions of this Part of this Act as respects houses in their district.

Enforcement of
Part IV.

(2) For the purpose of enabling them to discharge their duties under the foregoing provisions of this Part of this Act, the local authority may serve notice on the occupier of a house requiring him to furnish them within fourteen days with a statement in writing of the number, ages and sexes of the persons sleeping in the house, and if the occupier makes default in complying with the requirement, or furnishes a statement which to his knowledge is false in any material particular, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty shillings.

57. A local authority shall have power to publish information for the assistance of landlords and occupiers of houses as to their rights and duties under the provisions of this Part of this Act relating to overcrowding, and as to the enforcement thereof.

Power of local
authority to
publish infor-
mation as to
rights and duties
as respects
overcrowding.

PART IV*—cont.*

Duty of
medical officers
to furnish
particulars of
overcrowding.

58.—(1) It shall be the duty of the medical officer of health for any district to furnish annually to the Secretary of State and to the local authority, in accordance with regulations to be made by the Secretary of State, particulars with respect to the condition of the district in relation to overcrowding and in particular with respect to any cases in which houses in respect of which the local authority have taken steps for putting an end to overcrowding have again become overcrowded.

(2) Before furnishing particulars under the foregoing subsection, the medical officer of health shall consult with, or obtain a report from, the sanitary inspector of the authority.

Definitions for
purposes of
Part IV.

59. In this Part of this Act, and in the Fifth Schedule to this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them—

“appointed day” means in relation to any locality for which a day has been appointed under section eighty-six of the Housing (Scotland) Act, 1935, by the Department of Health for Scotland or the Secretary of State, that day, and in relation to any other locality means such day as the Secretary of State may appoint, and the Secretary of State may appoint different days for different localities, so however that he shall not appoint a day for any locality until he is satisfied that the greater part of the additional housing accommodation shown by the report made under subsection (1) of section one of the Housing (Scotland) Act, 1935, to be required in the locality has been provided ;

“house” means any premises used or intended to be used as a separate dwelling, not being premises which are entered in the valuation roll last authenticated at a rateable value exceeding forty-five pounds ;

“landlord” means, in relation to any house, the person from whom the occupier derives his right to occupy it ;

“room” does not include any room of a type not normally used in the locality either as a living room or as a bedroom ;

“suitable alternative accommodation” means, in relation to the occupier of a house, a house in which the occupier and his family can live without causing it to be overcrowded, being a house which the local authority certify to be suitable to the needs of the occupier and his family as respects security of tenure and proximity to place of work and to be suitable in relation to his means.

PART V

PROVISION OF HOUSING ACCOMMODATION

General powers and duties of local authorities

60. It shall be the duty of every local authority to consider the housing conditions in their district and the needs of the district with respect to the provision of further housing accommodation and for that purpose to review the information which has been brought to their notice, either as a result of the inspections and surveys carried out under section six of this Act or otherwise, and as often as occasion arises, or within three months after notice has been given to them by the Secretary of State, to prepare and submit to the Secretary of State proposals for the provision of new houses, distinguishing those houses which the authority propose to provide for the purpose of rendering accommodation available for persons to be displaced by, or in consequence of, action taken by the authorities under Part II or Part III of this Act or under paragraph (d) of subsection (1) of the next following section.

Duty of local authorities to review housing conditions in their districts and to frame proposals.

61.—(1) A local authority may provide housing accommodation—

- (a) by the erection of houses on any land acquired or appropriated by them ;
- (b) by the conversion of any buildings into houses ;
- (c) by acquiring houses ;
- (d) by altering, enlarging, repairing or improving any houses or other buildings which have, or a right or interest in which has, been acquired by the local authority.

Mode of provision of housing accommodation.

Any such powers as aforesaid may, for supplying the needs of the district, be exercised outside the district of the local authority.

(2) The local authority may alter, enlarge, repair or improve any house so erected, converted or acquired, and may fit out, furnish and supply any such house with all requisite furniture, fittings and conveniences.

(3) For the purposes of this Part of this Act, the provision of housing accommodation includes the provision of a cottage with a garden of not more than one acre.

62. A local authority shall have power under this Part of this Act—

- (a) to acquire any land as a site for the erection of houses ;
- (b) to acquire
 - (i) houses, and
 - (ii) buildings other than houses, being buildings which may be made suitable as houses,

Purposes for which land may be acquired by a local authority.

PART V
—cont.

together with any lands occupied with the houses or buildings or any right or interest in houses or in such buildings as are mentioned in sub-paragraph (ii) of this paragraph ;

(c) to acquire land for the purpose of—

(i) selling or leasing the land under the powers conferred by this Act, with a view to the erection thereon of houses by persons other than the local authority ;

(ii) selling or leasing, under the powers conferred by this Act, any part of the land acquired with a view to the use thereof for purposes which in the opinion of the local authority are necessary or desirable for or incidental to the development of the land as a building estate ;

(iii) carrying out thereon works for the purpose of, or connected with, the alteration, enlargement, repair or improvement of an adjoining house ;

(iv) selling or leasing the land under the powers conferred by this Act with a view to the carrying out on the land by a person other than the local authority of such works as are mentioned in the last foregoing sub-paragraph :

Provided that nothing in paragraph (b) of this subsection shall authorise a local authority to acquire otherwise than by agreement any house or other building which is situated on land entered in the valuation roll as agricultural lands and heritages and is required for the purposes for which such land is used.

Acquisition of
land by
agreement for
purposes of
Part V.

63.—(1) Land for the purposes of this Part of this Act may be acquired by a local authority by agreement in like manner as if those purposes were purposes of the Public Health (Scotland) Act, 1897, and section one hundred and forty-four of that Act, so far as relating to the purchase of land by agreement, shall apply accordingly.

(2) Where a local authority have agreed to purchase, or have determined to appropriate, land for the purposes of this Part of this Act, subject to the interest of the person in possession thereof, they shall have the like right to enter on and take possession of that land as they have to enter on and take possession of land which they have agreed to purchase, or have determined to appropriate, for the purposes of Part III of this Act, and the provisions of subsection (2) of section thirty-eight of this Act shall apply accordingly, with the substitution, however, for the reference to Part III of this Act of a reference to this Part of this Act, and for the reference to twenty-eight days' notice of a reference to fourteen days' notice.

64.—(1) A local authority may be authorised by the Secretary of State to purchase land compulsorily for the purposes of this Part of this Act, and the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, shall apply in relation to any such compulsory purchase as if this Act had been in force immediately before the commencement of that Act.

PART V
—cont.

Compulsory
acquisition of
land for
purposes of
Part V.

(2) A local authority may, with the consent of and subject to any conditions imposed by the Secretary of State acquire land by agreement, or may be authorised by the Secretary of State to purchase land compulsorily, for the purposes of this Part of this Act, notwithstanding that the land is not immediately required for those purposes.

(3) Where land is purchased compulsorily by a local authority for the purposes of this Part of this Act, the compensation payable in respect thereof shall be assessed by the Lands Tribunal in accordance with the Acquisition of Land (Assessment of Compensation) Act, 1919, subject to observance of the rules contained in the Fourth Schedule to this Act.

65.—(1) Where a local authority have acquired or appropriated any land for the purposes of this Part of this Act, then, without prejudice to any of their other powers under this Act, the local authority may—

Powers of
dealing with
land acquired
or appropriated
for purposes of
Part V.

(a) lay out and construct public streets or roads and open spaces on the land ;

(b) with the consent of the Secretary of State, sell or lease the land or part thereof to any person under the condition that that person will erect thereon in accordance with plans approved by the local authority, and maintain, such number of houses of such types as may be specified by the local authority, and when necessary will lay out and construct public streets or roads and open spaces on the land, or use the land for purposes which, in the opinion of the local authority, are necessary or desirable for or incidental to the development of the land as a building estate in accordance with plans approved by the local authority ;

(c) with the consent of the Secretary of State, sell or lease the land or exchang it for land better adapted for those purposes, either with or without paying or receiving any money for equality of exchange ;

(d) with the consent of the Secretary of State, sell or lease any houses on the land or erected by them on the land, subject to such conditions, restrictions and stipulations as they may think fit to impose in regard to the use

PART V
—cont.

of the houses, and on any such sale they may agree to the price being paid by instalments or to payment of part of the price being secured by bond and disposition in security or otherwise upon the subjects sold.

(2) Where a local authority acquire any land for the purposes of sub-paragraph (iv) of paragraph (c) of section sixty-two of this Act, they may, with the consent of the Secretary of State, sell or lease the land to any person for the purpose and under the condition that that person will carry out thereon, in accordance with plans approved by the authority, the works with a view to the carrying out of which the land was acquired.

(3) Where a local authority have acquired a building which may be made suitable as a house, or a right or interest in such a building, they shall forthwith proceed to secure that it is so made suitable either by themselves executing any necessary work or by selling or leasing it to some person subject to conditions for securing that he will so make it suitable.

(4) Where under subsection (1) of this section a local authority sell or lease land, they may contribute or agree to contribute towards the expenses of the development of the land and the laying out and construction of streets or roads thereon, subject to the condition that the streets or roads are dedicated to the public use.

Power of local authority to provide shops, etc., in connection with housing accommodation.

66.—(1) The power of a local authority under this Part of this Act to provide housing accommodation shall include power to provide and maintain, with the consent of the Secretary of State, and, if desired, jointly with any other person, in connection with any such housing accommodation, any building adapted for use as a shop, any recreation grounds, or other buildings or land which in the opinion of the Secretary of State will serve a beneficial purpose in connection with the requirements of the persons for whom the housing accommodation is provided.

(2) The Secretary of State may, in giving his consent to the provision of any land or building under this section, by order apply, with any necessary modifications, to such land or building any statutory provisions which would have been applicable thereto if the land or building had been provided under any enactment giving any local authority powers for the purpose.

Power of local authority to provide board and laundry facilities.

67.—(1) The power of a local authority under this Part of this Act to provide housing accommodation shall include power to provide, in connection with the provision of such accommodation for any persons, such facilities for obtaining meals and such laundry facilities and services as accord with the needs of those persons.

PART V
—cont.

(2) A local authority may make such reasonable charges for meals provided by them by virtue of this section and to persons availing themselves of laundry facilities or services so provided as the authority may determine.

(3) This section shall not authorise the grant of a certificate under the Licensing (Scotland) Acts, 1903 to 1934, for the sale of exciseable liquor in connection with the provision under this section of facilities for obtaining meals.

68.—(1) Without prejudice to their powers under subsection (2) of section sixty-one of this Act, a local authority shall have power, and shall be deemed always to have had power, to sell, or to supply under a hire-purchase agreement, furniture to the occupants of houses provided by the authority or by a housing association under arrangements made with the authority, and, for that purpose, to buy furniture.

Power of local authorities to sell furniture to persons housed by, or by arrangement with, them.

(2) In this section the expression “hire-purchase agreement” means a contract to which the Hire Purchase and Small Debt (Scotland) Act, 1932, applies or would apply if the limitation as to value contained in section one of that Act were omitted.

69. Where any housing operations under this Part of this Act are being carried out by a local authority outside their own district, that authority shall, subject to the approval of the Secretary of State, have power to execute any works which are necessary for the purposes, or are incidental to the carrying out of the operations, subject to entering into an agreement with the local authority of the district in which the operations are being carried out as to the terms and conditions on which any such works are to be executed.

Execution of works, etc., by local authority outside their own district.

70. Where the Secretary of State approves the proposals of a local authority in relation to the provision of houses, whether under this Act or under any other Act, in the district of another local authority, any difference arising between those authorities with respect to the carrying out of the proposals may be referred by either authority to the Secretary of State, whose decision shall be final and binding on the authorities.

Adjustment of differences between local authorities as to carrying out of proposals.

Management, etc., of local authority's houses

71.—(1) The general management, regulation and control of houses provided by a local authority under this Part of this Act, or in respect of which contributions are payable under section thirty-five of the Housing (Scotland) Act, 1935, shall be vested in and exercised by the authority; and the authority may make such reasonable charges as they may determine for the tenancy or occupation of such houses.

Management and inspection of local authority's houses.

PART V
—*cont.*

(2) A house provided by a local authority under this Part of this Act shall be at all times open to inspection by the local authority of the district in which it is situated or of any officer duly authorised by them.

Byelaws for
regulation of
local
authority's
houses.

72.—(1) A local authority may make byelaws for the management, use and regulation of houses provided by them.

(2) Any fine for the breach of any such byelaw shall be paid to the credit of the fund out of which the expenses of this Part of this Act are defrayed.

Conditions to
be observed in
management
of local
authority's
houses.

73.—(1) A local authority shall, in relation to all houses in respect of which they are required to keep a housing revenue account, observe the requirements specified in the following provisions of this section.

(2) The authority shall secure that in the selection of their tenants a reasonable preference is given to persons who are occupying insanitary or overcrowded houses, have large families, or are living under unsatisfactory housing conditions.

(3) Except in so far as the Secretary of State may otherwise sanction, the authority shall secure, in accordance with any directions that may be given to them by the Secretary of State—

(a) that a number of houses equal to the number in respect of which the Secretary of State has undertaken to make a contribution under any of the following enactments, namely, subsection (3) of section one of the Housing &c. Act, 1923, the Housing (Scotland) Act, 1930, the Housing (Rural Authorities) Act, 1931, section one of the Housing (Financial Provisions) (Scotland) Act, 1933, section thirty of the Housing (Scotland) Act, 1935, or section one of the Housing (Financial Provisions) (Scotland) Act, 1938, are reserved for low wage earners or persons of a like economic condition ;

(b) that a number of houses equal to the number in respect of which the Secretary of State has undertaken to make a contribution under section one of the Housing (Agricultural Population) (Scotland) Act, 1938, or section eighty-five of this Act, are reserved for the agricultural population except in so far as the demand for housing accommodation in the district on the part of members of the agricultural population can be satisfied without such reservation ; and

- (c) that a number of houses equal to the number in respect of which the Secretary of State has undertaken to make a contribution to the authority under section thirty-five of the Housing (Scotland) Act, 1935, are reserved for such persons as are mentioned in paragraph (a) of sub-section (1) of section three of the Housing (Rural Workers) Act, 1926.

PART V
—cont.

(4) The authority may grant to any tenant such rebates from rent subject to such terms and conditions as they may think fit.

(5) The authority shall from time to time review rents and make such changes either of rents generally or of particular rents and rebates as circumstances may require.

(6) For the purposes of any enactment relating to valuation or rating, the gross annual value of any house to which this section applies shall not exceed the rent (exclusive of occupier's rates) fixed in pursuance of this Part of this Act, and no account shall be taken of any rebate from the rent so fixed.

(7) The authority shall make it a condition of every let that the tenant shall not assign, sub-let or otherwise part with the possession of the premises or any part thereof, except with the consent in writing of the authority. In determining whether to give or withhold such consent, the authority shall comply with any directions that may be given to them by the Secretary of State, and they shall not in any case give such consent unless it is shown to their satisfaction that no payment other than a rent which is in their opinion a reasonable rent has been, or is to be, received by the tenant in consideration of the assignation, sub-letting or other transaction.

(8) The conditions contained in section three of the Housing (Rural Workers) Act, 1926, shall not have effect in relation to houses to which the requirements of this section apply.

74. If any house, building, land or dwelling in respect of which a local authority are required to keep a housing revenue account is sold by the authority with the consent of the Secretary of State, the Secretary of State may in giving consent impose such conditions, and may reduce the amount of any Exchequer contribution payable to the authority, or of any of the contributions referred to in the Eighth Schedule to this Act payable by the authority, as the Secretary of State thinks just.

Conditions on
sale of local
authority's
houses.

Advances and guarantees for provision of houses

75.—(1) A local authority may, subject to such conditions as may be approved by the Secretary of State, advance money, subject to the provisions hereinafter contained, to any person for the purpose of—

Power of local
authority to
make advances
for purpose of
increasing
housing accom-
modation.

- (a) acquiring houses ;

PART V
—cont.

- (b) constructing houses ;
- (c) converting into houses buildings which have been acquired by that person or acquiring buildings and converting them into houses ; or
- (d) altering, enlarging, repairing or improving houses ; whether the houses or buildings are within or outside the district of the authority.

(2) Before advancing money under this section for the purpose specified in paragraph (a) of the foregoing subsection the local authority shall satisfy themselves that the house or houses to be acquired is or are, or will be made, in all respects fit for human habitation, and before so advancing money for any of the purposes specified in paragraphs (b) to (d) of that subsection the local authority shall satisfy themselves that the house or houses to be constructed, altered, enlarged, repaired or improved or into which the building or buildings is or are to be converted, as the case may be, will, when the construction, alteration, enlargement, improvement, repair or conversion has been completed, be in all respects so fit.

(3) The following provisions shall have effect with respect to an advance under this section :—

- (a) the advance, together with interest thereon, shall be secured by a bond and disposition in security of lands the subject of the carrying out of the purpose for which the advance is made or by an assignation in security of such a lease of those lands as is mentioned in paragraph (f) of this subsection ;
- (b) the amount of the principal of the advance shall not exceed, in the case of a house or houses to be acquired, nine-tenths of the value of the subjects disposed or assigned in security, and, in any other case, nine-tenths of the value which it is estimated the subjects disposed or assigned in security will bear when the construction, alteration, enlargement, improvement, repair or conversion has been carried out ;
- (c) the bond and disposition or assignation in security may provide for repayment being made either by instalments of principal or by an annuity of principal and interest combined, so, however, that in the event of any of the conditions subject to which the advance is made not being complied with, the balance for the time being unpaid shall become repayable on demand by the local authority and that the said balance may, in any event, be repaid at any term of Whitsunday or Martinmas by the debtor after one month's written notice of intention to repay has been given to the local authority ;

PART V
—cont.

- (d) where the advance is for any of the purposes specified in paragraphs (b) to (d) of subsection (1) of this section it may be made by instalments from time to time as the works of construction, conversion, alteration, enlargement, improvement or repair progress ;
- (e) the advance shall not be made except after a valuation duly made on behalf of the local authority ; and
- (f) no advance shall be made unless the estate in the lands proposed to be disposed or assigned in security is either ownership or a lease of which a period of not less than ten years in excess of the period fixed for the repayment of the advance remains unexpired on the date on which the assignation in security is granted.

(4) An advance under this section shall not be made in respect of any house if the estimated value thereof subject to feu duty, ground annual or other burden incident to tenure but free from other incumbrances exceeds five thousand pounds, but such an advance may be made in addition to assistance given by the local authority in respect of the same house under any other Act or any other provision of this Act. In the case of an advance for the construction of one or more structurally separate and self-contained flats the estimated value for the purposes of the foregoing limitation shall as respects any flat be the estimated value of the flat.

76.—(1) Where under the last foregoing section of this Act a local authority advance money to any person constructing a house in respect of which they have undertaken to give assistance under section one hundred of this Act, being a person entitled to grant a heritable security over the house, then, subject to the provisions of this section and to such conditions as may be approved by the Secretary of State, the advance may, in lieu of being secured by bond and disposition in security or other deed of security, be secured by a charging order made by the local authority providing and declaring the house, or the house and such other subjects belonging to the person receiving the advance as the local authority and such person may agree, to be charged and burdened with an annuity to repay the amount of the advance.

Additional provisions with respect to advances made under s. 75.

(2) The annuity charged shall commence from the date of the order, and shall be a sum of such amount and shall be payable to the local authority or their assignees for such period of years, not exceeding thirty, as the local authority and the person receiving the advance may agree.

(3) A local authority shall not make a charging order under this section, and a charging order so made shall not be effectual, unless—

- (a) the authority have served on every person appearing in the Register of Sasines as the proprietor of, or as

PART V
—cont.

holding a heritable security over, the subjects or any part thereof to be charged and burdened with the said annuity, notice that if no objection is intimated to them in writing by such person within twenty-one days from the date of service of the notice, they intend to make such charging order ; and

(b) no objection has been so intimated by any person on whom notice has been so served.

(4) The provisions of section twenty-one of this Act shall apply to a charging order made under this section in like manner as they apply to a charging order made under section twenty thereof, subject to the following and any other necessary modifications—

(a) subsection (2) shall apply as if after the words “advances of public money” there were inserted the words—

“(d) any rentcharge secured on the premises by absolute order made under and in terms of the Improvement of Land Act, 1864, or the Lands Improvement Company’s Acts, 1853 to 1920 ;

(e) any loan made for agricultural purposes in pursuance of the Agricultural Credits (Scotland) Act, 1929, by any company incorporated for the purposes of that Act, where such loan has been secured on the premises by a bond and disposition in security or other deed of security duly recorded in the appropriate Register of Sasines ; and

(f) any charge on the premises created under any provision in any Act authorising a charge for recovery of expenses incurred by a local authority under section one hundred and twenty-five of the Public Health (Scotland) Act, 1897, or section five or eight of this Act or by an owner under Part II thereof.” ;

(b) subsection (3) shall not apply.

(5) For the purpose of this section, a notice may be served by delivering it to the person on whom it is required to be served or by sending it by registered letter to such person at his usual or last known address or, if such person cannot be found, to the Extractor of the Court of Session ; and an acknowledgment endorsed on such notice or a copy thereof by such person, or, where the notice is sent by registered letter, a certificate subscribed by the clerk to the local authority that such notice was duly posted and having the Post Office receipt for the registered letter attached, shall be conclusive evidence that such notice was duly served on the date stated in the acknowledgment or Post Office receipt.

77.—(1) A local authority may, in accordance with proposals in that behalf made by them and approved by the Secretary of State, guarantee the repayment to a society incorporated under the Building Societies Acts, 1874 to 1939, or the Industrial and Provident Societies Acts, 1893 to 1928, of any advances, with interest thereon, made by the society to any of its members for the purpose of enabling them to build or acquire houses, whether within or outside the district of the authority.

PART V
—cont.

Power of local authority to guarantee repayment of advances by building societies.

(2) Where, on the submission to the Secretary of State by a local authority of proposals under this section, the Secretary of State is satisfied that the proposed guarantee extends only to the principal of, and interest on, the amount by which the sum to be advanced by the society in question exceeds the sum which would normally be advanced by it without the guarantee of the local authority, and that the liability under the guarantee of the local authority cannot be greater than two-thirds of that principal and interest, the Secretary of State, if he approves the proposals, may, with the consent of the Treasury, undertake to reimburse to the local authority not more than one-half of any loss sustained by them under the terms of the guarantee.

(3) Paragraph 3 of Part I of the Schedule to the Building Societies Act, 1939 (which paragraph specifies, as one of the classes of additional security which may be taken into account in determining the amount of advances by building societies to their members, a guarantee given by a local authority under paragraph (b) of subsection (1) of section seventy-five of the Housing (Scotland) Act, 1925), shall have effect as if after the words "the Housing (Scotland) Act, 1925" there were added the words "or section thirty of the Housing (Scotland) Act, 1949, or section seventy-seven of the Housing (Scotland) Act, 1950".

78.—(1) The Public Works Loan Commissioners may, subject as hereinafter provided, lend to any housing association or to any person entitled to any land either as owner or as lessee under a lease of which a period of not less than fifty years remains unexpired at the date of the loan, moneys for the purpose of constructing or improving, or facilitating or encouraging the construction or improvement of, houses, and in the case of a housing association for the purchase of houses and for the purchase and development of land, and any such association or person may borrow from the Public Works Loan Commissioners such moneys as may be required for the purposes aforesaid.

Loans by Public Works Loan Commissioners to housing associations, etc.

(2) A loan for any of the purposes specified in the foregoing subsection shall be secured with interest by a heritable security over the land and houses in respect of which that purpose is to be carried out and over such other land and houses, if any, as may be offered as security for the loan.

PART V
—cont.

(3) Any such loan may be made whether the association or person receiving the loan has or has not power to borrow on bond and disposition in security or otherwise, independently of this Act, but nothing in this Act shall affect any regulation, statutory or otherwise, whereby any company may be restricted from borrowing until a definite portion of capital is subscribed for, taken or paid up.

(4) The following conditions shall apply in the case of any such loan :—

- (a) the period for repayment shall not exceed forty years ;
- (b) no moneys shall be lent on the security of any land or houses unless the estate or interest therein proposed to be burdened is either ownership or a lease of which a period of not less than fifty years remains unexpired at the date of the loan ;
- (c) the moneys lent shall not exceed such proportion as is hereinafter authorised of the value, to be ascertained to the satisfaction of the Public Works Loan Commissioners, of the estate or interest in such land or houses proposed to be burdened in pursuance of sub-section (2) of this section ; but loans may be made by instalments from time to time as the building of houses or other work on the land so burdened progresses, so, however, that the total loans do not at any time exceed the amount aforesaid ; and the heritable security may be accordingly granted to secure such loans so to be made from time to time :

Provided that where a loan is made under this section to a housing association for the purpose of carrying out a scheme for the provision of houses approved by the Secretary of State—

- (i) the maximum period for the repayment of the loan shall be fifty instead of forty years ;
- (ii) moneys may be lent on heritable security over a lease recorded under the Registration of Leases (Scotland) Act, 1857, whereof a period not less than ten years in excess of the period fixed for the repayment of the sums lent remains unexpired at the date of the loan.

(5) The proportion of such value as aforesaid authorised for the purpose of the loan shall be three-fourths :

Provided that—

- (a) if the loan is to be made to a housing association and payment of the principal of and interest on the loan is guaranteed by a local authority, the said proportion shall be nine-tenths ;

- (b) in any other case, if the loan exceeds two-thirds of such value as aforesaid, the Public Works Loan Commissioners shall require, in addition to such a heritable security as is mentioned in subsection (2) of this section, such further security as they may think fit.

PART V
—cont.

Housing associations

79.—(1) A local authority may promote the formation or extension of, or subject to the provisions of this Act, assist, a housing association whose objects include the erection, improvement or management of housing accommodation.

Power of local authority to promote and assist housing associations.

(2) A local authority, with the consent of and subject to any regulations or conditions which may be made or imposed by the Secretary of State, may, for the assistance of such an association,—

- (a) make grants or loans to the association ;
- (b) subscribe for any share or loan capital of the association ;
- (c) guarantee or join in guaranteeing the payment of the principal of and interest on any moneys borrowed by the association (including moneys borrowed by an issue of loan capital) or of interest on any share capital issued by the association ;

on such terms and conditions as to rate of interest and repayment or otherwise, and on such security as the local authority think fit ; and, notwithstanding the provisions of section four of the Industrial and Provident Societies Act, 1893, where a local authority assist such an association under this subsection, the local authority shall not be prevented from having or claiming an interest in the shares of the association exceeding two hundred pounds.

80.—(1) A local authority may, with the approval of the Secretary of State, make arrangements with a housing association for the purpose of enabling the association to provide any housing accommodation which the local authority are empowered under this Part of this Act to provide.

Power of local authority to make arrangements with housing associations.

(2) Arrangements made under this section shall include such terms with regard to such matters, including the types of houses to be provided and the rents at which the houses provided are to be let, as may appear to the local authority to be expedient in view of the needs of their district in relation to housing and as may be approved by the Secretary of State.

(3) If a housing association represent to the Secretary of State that they have submitted to the local authority proposals for

PART V
—cont.

arrangements under this section and that the local authority have unreasonably refused to make arrangements in accordance with the proposals, the Secretary of State may require the authority to furnish him with a report as to the matter stating the reasons for their refusal.

Unification of
conditions
affecting
housing
association's
houses.

81. Where the Secretary of State has undertaken to make in respect of any houses under the management of a housing association contributions under more than one enactment and the association are required to observe in the management of the houses varying special conditions or terms imposed by those enactments, the Secretary of State may, on the application of the association and after consultation with any local authority who are under obligation to make grants or contributions in respect of any of the houses, make a scheme specifying, as conditions to be observed in the management of all the houses in substitution for the conditions or terms imposed as aforesaid, such conditions as he thinks fit, and in specifying the conditions to be so observed the Secretary of State shall have regard to the provisions of this Part of this Act with respect to the conditions which a local authority are required to observe in relation to their houses.

Power of
Secretary
of State to
recognise
central
association.

82.—(1) If a central association or other body has at the date of the commencement of this Act been established or is thereafter established for the purpose of promoting the formation and extension of housing associations and of giving them advice and assistance, the Secretary of State may, if he thinks fit, recognise such association or body for the purpose of this section.

(2) The Secretary of State may, in any of the five years next following the date on which he recognises the said central association or body, make a grant in aid of the expenses thereof of such amount as he may, with the approval of the Treasury, determine.

Development corporations

Development
corporations
to be deemed
to be housing
associations.

83. A development corporation shall be deemed to be a housing association within the meaning of this Act, and accordingly arrangements may be made under section eighty of this Act for the provision by such a corporation of any housing accommodation which a local authority are empowered under this Part of this Act to provide.

PART VI

FINANCIAL PROVISIONS IN RESPECT OF NEW HOUSES

Exchequer contributions

84.—(1) Subject to the provisions of this Part of this Act, the Secretary of State shall undertake to make, and make, in respect of each new house completed after the seventh day of March, nineteen hundred and forty-four, by way of housing accommodation provided by a local authority in accordance with proposals approved by the Secretary of State, payment to that local authority of an annual contribution for a period of sixty years.

(2) An annual contribution under this section shall be—

- (a) in respect of a house of three apartments the sum of twenty-one pounds ten shillings ;
- (b) in respect of a house of four apartments the sum of twenty-three pounds ; and
- (c) in respect of a house of five apartments the sum of twenty-five pounds ten shillings.

(3) Where the Secretary of State is satisfied that by reason of—

- (a) the purchase under Part III of this Act, or the payment of compensation thereunder in respect of the demolition, of houses or other premises which are neither unfit for human habitation nor injurious or dangerous to health and which are included in, or adjoin, or are surrounded by, a clearance area ; or
- (b) the costliness of the provision by a local authority, being the town council of a large burgh, of housing accommodation on a central site ;

the total annual expenditure likely to be incurred by the local authority in providing housing accommodation to which this section applies is substantially greater than the aggregate of the appropriate annual contributions payable by the Secretary of State under the foregoing provisions and the provisions of subsection (7) of this section and the corresponding annual contributions payable by the local authority under section ninety-seven of this Act, the Secretary of State may, with the sanction of the Treasury, undertake to make, and make, in addition to the appropriate annual contribution aforesaid, payment to the local authority for a period of sixty years of an annual contribution of such amount not exceeding twenty pounds in respect of each house provided by way of such housing accommodation in the clearance area or on land adjoining or surrounded by the clearance area and acquired in connection therewith, or on the central site as the case may be, as seems to the Secretary of State just and reasonable.

PART VI
—cont.

(4) Where housing accommodation is provided by a local authority, being the town council of a large burgh, in a block of flats, the whole or any part of which is of at least four storeys (inclusive of any storey constructed for use for purposes other than those of a dwelling), and expenditure has been incurred in installing lifts in the block of flats, the Secretary of State may, in respect of each of such number of the flats in the block of flats as he may think fit, undertake to make, and make, for a period of sixty years an annual contribution of seven pounds in addition to any annual contribution which he may undertake to make, and make, under the foregoing provisions of this section.

(5) Where the Secretary of State is satisfied that the total annual expenditure likely to be incurred by a local authority not being the town council of a large burgh in providing housing accommodation to which this section applies is substantially greater than the aggregate aforesaid in consequence of the remoteness of the sites of any houses in which such accommodation is provided from centres of supply of building labour and material, and the impracticability of obtaining for such houses higher rents than are ordinarily payable by persons employed in agriculture or fishing or by persons of the like economic condition, the Secretary of State may, with the sanction of the Treasury, undertake to make, and make, in addition to the appropriate annual contribution aforesaid payment to the local authority for a period of sixty years of an annual contribution of such amount in respect of such of the houses so provided as seems to the Secretary of State just and reasonable.

(6) For the purposes of this section and of section ninety-seven of this Act, a house of less than three apartments shall be deemed to be a house of three apartments and a house of more than five apartments shall be deemed to be a house of five apartments.

(7) Where a local authority, in accordance with proposals approved by the Secretary of State, provide housing accommodation for single persons in a hostel completed after the seventh day of March, nineteen hundred and forty-four, then, subject to the authority complying with such conditions, if any, as the Secretary of State may impose, each part of the hostel designed for separate occupation by such persons shall be deemed to be a new house in respect of which the Secretary of State must undertake to make, and make, an annual contribution under this section, so, however, that the amount of the annual contribution shall be eleven pounds.

In this section the expression "hostel" means a building providing residential accommodation for single persons consisting of separate and self-contained dwellings for each of such persons, together with other accommodation available for all of such persons whether or not services (including board and laundry or other facilities or services) are provided.

(8) No contribution shall be payable under this section in respect of any house in respect of which a contribution is payable under the next succeeding section of this Act.

PART VI
—cont.

85.—(1) Subject to the provisions of this Act, the Secretary of State shall undertake to make, and make, in respect of each new house completed after the seventh day of March, nineteen hundred and forty-four, by way of housing accommodation for the agricultural population provided by a local authority under Part V of this Act in accordance with proposals approved by the Secretary of State, payment to that local authority of an annual contribution for a period of sixty years.

Exchequer contributions in respect of housing accommodation provided by local authorities for agricultural population.

(2) An annual contribution under this section shall be of such amount as the Secretary of State may, with the sanction of the Treasury, determine, so, however, that subject as after-mentioned the annual contribution shall not be less than twenty-one pounds ten shillings or exceed thirty-five pounds; and in determining the amount of the annual contribution payable by him under this section the Secretary of State shall take into consideration the cost of providing the house, the rent which it will be practicable to obtain therefor, the expenditure already incurred or to be incurred by the local authority under the enactments relating to housing, and the general financial resources of the local authority.

(3) Where the Secretary of State is satisfied that the annual expenditure likely to be incurred by the local authority in respect of any house is, in consequence of the remoteness of the site thereof from centres of supply of building labour and material, substantially greater than the equivalent of forty-one pounds ten shillings per annum for sixty years, the annual contribution payable by him under this section shall be of such greater amount as the Secretary of State may, with the sanction of the Treasury, determine.

(4) No contribution shall be payable under this section in respect of any house in respect of which a contribution is payable under the last foregoing section of this Act.

86. Where, on an application made to him by a local authority with respect to any house, or accommodation deemed to be a new house, which the authority have provided or intend to provide, the Secretary of State is satisfied that the cost of providing the house or accommodation has been or will be substantially enhanced by expenses attributable to the acquisition of rights of support, or otherwise attributable to measures taken by the authority for securing protection against the consequences of a subsidence of the site, he may undertake to make, and make, in respect of the house or accommodation, in addition

Additional Exchequer contributions for housing schemes involving expenditure on rights of support, etc.

PART VI
—cont.

to the appropriate annual contribution payable under section eighty-four or section eighty-five of this Act, payment to the local authority for a period of sixty years of an annual contribution of such amount not exceeding two pounds as he may determine.

Exchequer
contributions
in respect of
housing accom-
modation
provided by
housing
associations
and
development
corporations.

87.—(1) The like contribution, if any, shall be payable by the Secretary of State in respect of housing accommodation provided by a housing association under arrangements made under section eighty of this Act as would be payable if the housing accommodation had been provided by the local authority, and shall be paid by the Secretary of State to the authority, who shall pay to the association by way of annual grant an amount not less than the contribution:

Provided that—

- (a) if the Secretary of State is satisfied that the association have made default in giving effect to the terms of any arrangements so made, he may reduce the amount of any contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just ; and
- (b) if the Secretary of State reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(2) Where a house which has been provided by a housing association under arrangements made with a local authority under section eighty of this Act becomes vested in that authority—

- (a) no further sums shall, after the time of the vesting, become payable by the Secretary of State or by the authority in respect of the house under subsection (1) of this section ; but
- (b) the Secretary of State may, if he thinks fit, pay to the authority sums equivalent to any contributions which would, after the said time, have become payable to the authority in respect of the house under the said subsection (1) if all conditions precedent to the payment of that contribution had been at all material times observed.

(3) For the purposes of this Part of this Act, the Secretary of State may approve any housing accommodation provided by a development corporation otherwise than in pursuance of arrangements made under section eighty of this Act as if it

were housing accommodation provided by a local authority, and in respect of any housing accommodation so approved may, if he thinks fit, pay to the corporation sums not exceeding the annual Exchequer contributions which would be payable under the three last foregoing sections of this Act if the housing accommodation had been provided by a local authority; and where additional contributions would be payable under subsection (3) or subsection (4) of section eighty-four of this Act if the housing accommodation had been provided by a local authority being the town council of a large burgh, sums not exceeding those additional contributions shall also be payable under this subsection to the corporation.

(4) Where in pursuance of an agreement or order made under the New Towns Act, 1946, housing accommodation provided by a development corporation, being housing accommodation in respect of which sums are for the time being payable under the last foregoing subsection, is transferred to a local authority, then—

- (a) no further sums shall, after the time of the transfer, be payable under the said subsection; but
- (b) the Secretary of State may, if he thinks fit, pay to the authority sums not exceeding the sums which would, after that time, have become payable by him in respect of the housing accommodation if it had not been so transferred.

88.—(1) Where, on an application made to him by a local authority with respect to a house which the authority have provided or intend to provide, the Secretary of State is satisfied that the cost of providing the house has been or will be substantially enhanced by expenses attributable to measures taken with his consent by the authority in the construction of the house (whether by the use of stone or other special material or otherwise howsoever) in order to preserve the character of the surroundings, then, if the house is or becomes one in respect of which an annual Exchequer contribution is payable under this Part of this Act, the Secretary of State may, if he thinks fit, undertake to make, and make, in respect of the house, in addition to the appropriate annual contribution under section eighty-four or section eighty-five of this Act, payment to the local authority for a period of sixty years of an annual contribution of such amount not exceeding five pounds as he may determine.

Additional
Exchequer
contribution
for houses
constructed
to preserve
character of
surroundings.

(2) This section shall not apply to a house completed before the thirtieth day of July, nineteen hundred and forty-nine.

89.—(1) In respect of a new building provided, or a building converted, by a local authority or a development corporation for use as a hostel, being a building approved for the purposes

Exchequer
contribution
for hostels.

PART VI
—cont.

of this subsection by the Secretary of State, the Secretary of State shall make to the authority or corporation a contribution—

- (a) payable annually for such number of financial years, not exceeding sixty, as he may determine, being years beginning with the year in which the building was, or, as the case may be, the works of conversion were, completed ;
- (b) of such amount, not exceeding the sum produced by multiplying seven pounds by the number of bedrooms contained in the building, as he may determine having regard to the standard of construction and amenity of the building.

(2) The like contribution, if any, shall be payable in respect of a building which, under arrangements made under section eighty of this Act by a local authority with a housing association or a development corporation, has been provided or converted by that association or corporation for use as a hostel as would be payable if the building had been provided or converted by the local authority for such use, and shall be paid by the Secretary of State to the authority, who shall pay to the association or corporation by way of annual grant an amount not less than the contribution :

Provided that—

- (a) if the Secretary of State is satisfied that the association or the corporation have made default in giving effect to the terms of the arrangements so made, he may reduce the amount of any contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just ; and
- (b) if the Secretary of State reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(3) Where, in pursuance of an agreement or order made under the New Towns Act, 1946, a building provided or converted by a development corporation for use as a hostel, being a building in respect of which a contribution is for the time being payable under subsection (1) or (2) of this section, is transferred to a local authority, then—

- (a) no further sums shall, after the time of the transfer, be payable under the said subsection (1) or the said subsection (2), as the case may be ; but

- (b) the Secretary of State may, if he thinks fit, pay to the authority sums not exceeding any sums which would, after that time, have become payable by him under the said subsection (1) or the said subsection (2), as the case may be, in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.

(4) Where a building which, under arrangements made by a local authority under section eighty of this Act, has been provided or converted by a housing association for use as a hostel becomes vested in the local authority, and at the time of the vesting the building is one in respect of which a contribution is payable under subsection (2) of this section, then—

- (a) no further sums shall, after the time of the vesting, be payable under that subsection ; but
- (b) the Secretary of State may, if he thinks fit, pay to the authority sums not exceeding any sums which would, after that time, have become payable by him under that subsection in respect of the building if all conditions precedent to the payment of the sums had been fulfilled.

(5) A building approved for the purposes of subsection (1) of this section shall not be included amongst the buildings an account of the income and expenditure of a local authority in respect whereof the authority are required by section one hundred and thirty-seven of this Act to keep:

Provided that if at any time the Secretary of State is satisfied that the building has ceased to be used as a hostel he may direct that it shall be so included.

(6) This section shall not apply to a new building completed or a building converted before the thirtieth day of July, nineteen hundred and forty-nine, or to any premises provided for the purpose of Part III of the National Assistance Act, 1948, by a local authority or to any housing accommodation for single persons in a hostel to which subsection (7) of section eighty-four of this Act applies.

(7) In this section the expression "hostel" means a building wherein is provided, for persons generally or for any class or classes of persons, residential accommodation (otherwise than in separate and self-contained dwellings) and board.

90. Where—

- (a) the Secretary of State is satisfied on an application made to him by a local authority or by the Scottish Special Housing Association or by a development corporation

Exchequer
contribution
for building
experiments

PART VI
—cont.

with respect to a house which they have provided that the cost of providing the house has been substantially enhanced by reason of either or both of the following matters, namely,—

(i) that, with his consent, the house has been constructed in whole or in part by an experimental method ;

(ii) that, with his consent, materials have, for the purposes of experiment, been used in the construction of the house or equipment or fittings have, for those purposes, been installed in the house in the course of the construction thereof ; or

(b) with the consent of the Secretary of State, expense is incurred by a local authority or by the Scottish Special Housing Association or by a development corporation in incorporating or installing in a house, otherwise than in the course of the construction thereof, materials, equipment or fittings for the purposes of experiment ;

then, subject to such conditions (if any) as the Treasury may determine, the Secretary of State may make to the authority or the Association or the corporation a contribution of such amount and payable in such manner as he may determine.

Contributions
in respect of
certain houses
provided by
local
authorities
since 1940.

91.—(1) The provisions of this section shall have effect in relation to any house or accommodation deemed to be a new house which—

(a) is provided by a local authority in accordance with proposals approved by the Secretary of State on or after the first day of January, nineteen hundred and forty, for the purposes of section one of the Housing (Agricultural Population) (Scotland) Act, 1938, or of section one of the Housing (Financial Provisions) (Scotland) Act, 1938 ; and

(b) is not a house or accommodation in respect of which contributions are payable under section eighty-four, eighty-five or eighty-six of this Act.

(2) If the Secretary of State, with the consent of the Treasury, so determines, there shall, subject to the provisions of this section, be payable in respect of any such house or accommodation the like annual Exchequer contributions and the like annual contributions by the local authority as would have been payable if the house or accommodation had been approved by him for the purposes of this Part of this Act and had been completed after the seventh day of March, nineteen hundred and forty-four.

(3) Where contributions are payable in respect of a house or accommodation under the last preceding subsection, the Secretary of State shall have power to give such directions for all or any of the following purposes as he thinks appropriate having regard to the circumstances, and, in particular, having regard to the cost of the house or accommodation and to any payments which have been made in respect thereof out of moneys provided by Parliament—

- (a) for reducing the amount of any such contribution ;
- (b) for reducing the number of such contributions ;
- (c) for altering the period in respect of which any such contribution is payable.

(4) No contributions shall, after the commencement of this Act, be paid under the Housing (Agricultural Population) (Scotland) Act, 1938, or under the Housing (Financial Provisions) (Scotland) Act, 1938, in respect of any house or accommodation in respect of which the Secretary of State has determined that contributions are to be paid under this section.

92.—(1) Where a local authority have (whether before or after the commencement of this Act), for the purpose of discharging any of their duties under Part III of the Housing (Scotland) Act, 1925, or Part V of this Act, acquired the right to use any government war buildings, and the Secretary of State has approved for the purposes of section eight of the Housing (Financial Provisions) (Scotland) Act, 1946, or of this section arrangements made by the authority for using those buildings, whether with or without alterations, for providing temporary housing accommodation, then—

- (a) if the Secretary of State estimates that the authority will incur a loss in any year in respect of the provision of housing accommodation in pursuance of the arrangements, he shall make to the authority a contribution for that year of a sum equivalent to the estimated loss ; and
- (b) if the Secretary of State estimates that the authority will make a profit in any year in respect of the provision of housing accommodation in pursuance of the arrangements, the authority shall pay to him in respect of that year a sum equivalent to the estimated profit.

(2) For the purposes of any such estimate there shall be deemed to accrue to a local authority, in respect of each house provided by the authority in pursuance of any such arrangements as aforesaid, in addition to any other income accruing from the house—

- (a) where the authority are the council of a county in which the density of the population does not exceed

Contributions
in respect of
temporary
housing accom-
modation
provided in
certain war
buildings.

PART VI
—*cont.*

one hundred per square mile, or are the council of a burgh of which the population does not exceed two thousand, the sum of six pounds a year; and

(b) in any other case, the sum of eight pounds a year.

(3) Where any buildings are demolished by a local authority upon ceasing to be used for the purpose of providing housing accommodation in pursuance of such arrangements as aforesaid, then—

(a) the Secretary of State shall pay to the authority the cost of demolition; and

(b) any sums realised by the authority by the disposal of materials derived from the demolished buildings shall be paid by the authority to the Secretary of State.

(4) Any sums paid to the Secretary of State under this section shall be paid into the Exchequer.

(5) In this section the expression “government war building” means any building which constitutes government war works as defined by section fifty-nine of the Requisitioned Land and War Works Act, 1945, and the expression “alterations” includes adaptations, enlargements and improvements.

**Grants to
Scottish
Special
Housing
Association.**

93.—(1) With a view to increasing the provision of houses in districts where the need for houses is greatest, the Secretary of State may, with the consent of the Treasury, make to the Scottish Special Housing Association (being the association approved for the purposes of section two of the Housing (Financial Provisions) (Scotland) Act, 1938) payments in respect of such number of houses provided by the Association in such districts as he may determine.

(2) A payment under the foregoing subsection shall consist in respect of any house completed after the seventh day of March, nineteen hundred and forty-four, of an annual contribution for a period of sixty years equivalent to the sum of the annual contributions which would have been payable in any year under sections eighty-four, eighty-six, ninety-seven, and subsection (1) of section ninety-nine, and (in the case of a house completed on or after the thirtieth day of July, nineteen hundred and forty-nine) section eighty-eight and subsection (2) of section ninety-nine of this Act, if the house had been a house provided by a local authority to which those sections applied.

(3) Where the Secretary of State is satisfied that the total net annual expenditure calculated in accordance with rules made by

the Secretary of State and necessarily incurred by the Association in respect of houses provided under this section is greater than the payments in respect thereof under subsection (2) of this section, the Secretary of State may, with the approval of the Treasury, make such further contribution to the Association as he may determine.

PART VI
—cont.

94.—(1) The Secretary of State may make advances to the Scottish Special Housing Association—

Advances to
the Scottish
Special
Housing
Association.

(a) for the purpose of enabling or assisting the provision by the Association of houses under the last foregoing section ; or

(b) where he has, after consultation with, or on the application of, a local authority, made arrangements with the Association for the execution by them on behalf of the local authority of work for the provision of any housing accommodation which the local authority are empowered under Part V of this Act to provide ;

and advances so made shall be of such amounts and repayable over such periods and on such terms as may be approved by the Treasury.

(2) The Treasury may issue to the Secretary of State out of the Consolidated Fund or the growing produce thereof such sums as are necessary to enable the Secretary of State to make advances under subsection (1) of this section.

(3) For the purpose of providing the sums to be issued under subsection (2) of this section, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939 ; and any securities created and issued to raise money under this subsection shall be deemed for all purposes to have been created and issued under that Act.

(4) The Secretary of State shall pay into the Exchequer any sums received by him from the Association by way of interest on or repayment of the sums advanced by him under subsection (1) of this section.

(5) Of any sums received into the Exchequer under subsection (4) of this section, so much as represents interest on the advances shall be issued out of the Consolidated Fund and applied in payment of an equivalent amount of interest which would, but for this provision, have been paid out of the permanent annual charge for the National Debt ; and so much as represents repayment of the advances shall be issued out of the Consolidated

PART VI
—cont.

Fund and applied in redeeming or paying off debt of such description as the Treasury think fit.

Transitional
provisions
relating to
contributions.

95.—(1) After the commencement of this Act no contribution shall be payable under section one of the Housing (Agricultural Population) (Scotland) Act, 1938, or section one of the Housing (Financial Provisions) (Scotland) Act, 1938, in respect of a new house or any accommodation deemed to be a new house completed after the seventh day of March, nineteen hundred and forty-four.

(2) Where in accordance with proposals approved by the Secretary of State for the purposes of section one of the Housing (Agricultural Population) (Scotland) Act, 1938, or of section one of the Housing (Financial Provisions) (Scotland) Act, 1938, a house or any accommodation deemed to be a new house has been completed after the seventh day of March, nineteen hundred and forty-four, then—

- (a) this Act shall, for the purposes of the payment of contributions in respect of the house or accommodation, be deemed to have come into operation immediately before the completion of the house or accommodation ;
- (b) if the house has been provided for the agricultural population it shall be deemed to have been approved by the Secretary of State for the purposes of section eighty-five of this Act, and in any other case the house or accommodation shall be deemed to have been approved for the purposes of section eighty-four of this Act ; and
- (c) any sums which have before the commencement of this Act been paid out of moneys provided by Parliament in respect of the house or accommodation on account of contributions under either of the said Acts of 1938 or otherwise shall be applied in or towards the satisfaction of any contributions which become payable in respect of the house or accommodation by virtue of this Part of this Act.

Modification
of Acts of 1919
and 1923 as to
certain
Exchequer
contributions.

96. The provisions of the Seventh Schedule to this Act shall have effect for the purpose of determining the amount of the following contributions which the Secretary of State is required or authorised to make to a local authority, that is to say,—

- (a) contributions payable under section five of the Housing, Town Planning, &c. (Scotland) Act, 1919, other than contributions in respect of schemes for the provision of houses for persons in the employment of, or paid by, a local authority ; and
- (b) contributions payable under subsection (3) of section one of the Housing, &c. Act, 1923.

*Local authorities' contributions*PART VI
—cont.

97.—(1) A local authority to whom the Secretary of State has, under section eighty-four of this Act, undertaken to make a contribution in respect of any house or any accommodation which is deemed for the purposes of that section to be a new house shall make in respect thereof an annual contribution for a period of sixty years from the date of the completion of the house or accommodation.

Local authorities' contributions in respect of housing accommodation provided by them.

(2) An annual contribution under this section shall be—

- (a) in respect of a house of three apartments, the sum of six pounds ten shillings ;
- (b) in respect of a house of four apartments, the sum of seven pounds ; and
- (c) in respect of a house of five apartments, the sum of seven pounds ten shillings ;

together with in every case an additional sum equal to one-half of any additional contributions which the Secretary of State has undertaken to make under subsection (3) and subsection (4) of the said section eighty-four ; and

- (d) in respect of accommodation deemed to be a new house in respect of which the Secretary of State has undertaken to make a contribution under subsection (7) of the said section eighty-four, the sum of five pounds.

98. A local authority to whom the Secretary of State has, under section eighty-five of this Act, undertaken to make a contribution in respect of any house shall make in respect thereof an annual contribution of six pounds ten shillings for a period of sixty years from the date of the completion of the house.

Local authorities' contributions in respect of housing accommodation provided by them for agricultural population.

99.—(1) A local authority to whom the Secretary of State has, under section eighty-six of this Act, undertaken to make a contribution in respect of a house or accommodation deemed to be a new house, the cost of which has been or will be substantially enhanced by expenditure on acquiring rights of support or on measures against subsidence, shall make, in addition to the contribution payable by them under section ninety-seven or section ninety-eight of this Act, an annual contribution for the period of sixty years of an amount equal to one-half of the contribution which the Secretary of State has undertaken as aforesaid to make.

Local authorities' contributions in respect of expenditure incurred in securing rights of support, etc., or in special construction.

(2) A local authority to whom the Secretary of State has, under section eighty-eight of this Act, undertaken to make a contribution in respect of a house, the cost of which has been or

PART VI
—cont.

will be substantially enhanced by expenditure in the construction in order to preserve the character of the surroundings, shall make, in addition to the contribution payable by them under section ninety-seven or section ninety-eight of this Act, an annual contribution for the period of sixty years of an amount equal to one-half of the contribution which the Secretary of State has undertaken as aforesaid to make.

*Local authority schemes for assisting replacement of
unsatisfactory houses occupied by agricultural
workers and others*

Schemes for
replacing
unsatisfactory
houses.

100.—(1) A local authority may, and if so required by the Secretary of State shall, submit to the Secretary of State a scheme or schemes for assisting the provision of housing accommodation in new houses in replacement of—

(a) houses or other premises which, being unfit for human habitation and not capable at a reasonable expense of being rendered so fit, are to be demolished or closed under Part II of this Act, and which come within any of the following descriptions, that is to say:—

(i) houses, bothies or chaumers or similar premises situated on a farm and occupied in accordance with their contracts of service by agricultural workers employed thereon ;

(ii) houses occupied by persons who, being owner occupiers of farms which either do not exceed fifty acres in area or are entered in the valuation roll at a gross annual value not exceeding fifty pounds, are of substantially the same economic condition as agricultural workers ;

(iii) houses occupied by statutory small tenants ;

(iv) houses occupied by landholders ;

(v) houses in the Highlands and Islands occupied by members of the agricultural population who are of substantially the same economic condition as landholders ;

(b) houses, bothies or chaumers or similar premises situated on a farm and occupied in accordance with their contracts of service by agricultural workers employed thereon, which are not in all respects fit for human habitation or are overcrowded, and which by the execution of the works of reconstruction hereinafter mentioned will be combined with adjoining occupied houses or premises and will cease to be occupied as separate houses or premises ;

and on approval by the Secretary of State of any scheme so submitted, a local authority may in accordance therewith give assistance in the manner hereinafter provided.

(2) Assistance under this section in pursuance of an application made to a local authority on or after the sixth day of June, nineteen hundred and forty-six, shall be given by way of payment on the completion of the house of a lump sum not exceeding either—

- (a) one half of the cost of the house ; or
- (b) two hundred and forty pounds in the case of a house containing three apartments, or three hundred pounds in the case of a house containing more than three apartments.

For the purpose of this subsection, the reasonable cost of obtaining a title to land on which there is to be erected a house in replacement of any house such as is mentioned in sub-paragraph (v) of paragraph (a) of subsection (1) of this section shall be deemed to form part of the cost of the house.

Where assistance is given under this section in pursuance of an application made to a local authority before the said sixth day of June, this subsection shall have effect with the substitution for the sums of two hundred and forty pounds and three hundred pounds of the sums of one hundred and sixty pounds and two hundred pounds respectively.

(3) No assistance under this section shall be given in respect of any house unless—

- (a) the application for assistance is made to the local authority before the thirteenth day of July, nineteen hundred and fifty-three ;
- (b) the house contains at least three apartments of superficial areas not less than such areas as may be specified in the scheme of assistance ;
- (c) the house contains a watercloset, a scullery with a sink and drainage therefor, a fixed bath in a bathroom and such other conveniences as may be specified in the scheme of assistance :

Provided that, where it is not reasonably practicable to provide a watercloset, the local authority may, with the approval of the Secretary of State, and subject to such conditions as he may impose, dispense with the provision thereof.

(4) Without prejudice to the provisions of the last foregoing subsection, no assistance under this section shall be given in respect of the replacement of any house or other premises such as are mentioned—

- (a) in paragraph (a) of subsection (1) of this section, unless such action has been taken under Part II of this Act as will secure that the house or premises will be demolished on the completion of the house provided in replacement thereof or will not thereafter be used for human habitation ;

PART VI
—*cont.*

- (b) in paragraph (b) of the said subsection (1), unless the local authority are satisfied that such works of reconstruction will be executed, in accordance with plans approved by them, as will combine the house or premises with an adjoining occupied house or premises and will convert both houses or premises into a single house in all respects fit for human habitation and containing, unless the local authority with the approval of the Secretary of State otherwise permit, at least three apartments of such superficial areas as may be specified in the scheme of assistance, a scullery with a sink and drainage therefor, a fixed bath in a bathroom and such other conveniences as may be specified in the said scheme and where reasonably practicable a water-closet;
- (c) in sub-paragraph (i) of paragraph (a), or in paragraph (b), of the said subsection (1), unless the house provided in replacement is required for the accommodation of an agricultural worker employed on the farm and accommodation suitable to the requirements of the worker and of his employment is not available in the locality and it is not practicable for the local authority to provide such accommodation under a scheme for the provision of housing accommodation for the agricultural population of the locality.

(5) The rules contained in the Ninth Schedule to this Act shall apply with respect to applications for, and the giving of, assistance under this section.

(6) Where assistance is given under this section in respect of the replacement of a house or premises and an undertaking has been given that the house or premises will not be used for human habitation or a closing order has been made with respect thereto, then, notwithstanding anything in Part II of this Act, it shall not be competent for such undertaking to be cancelled or for such closing order to be determined.

(7) A local authority may in any case refuse to give assistance under this section on any grounds which seem to them sufficient.

(8) No assistance shall be given under this section in respect of any house in respect of which a grant has been made under section seventy-seven of the Agriculture (Scotland) Act, 1948.

(9) Subject to the provisions of any amending scheme made after the commencement of this Act by a local authority with the approval of the Secretary of State, so much of any scheme in force at the commencement of this Act under section four of the Housing (Agricultural Population) (Scotland) Act, 1938, as specifies the date before which applications for assistance must be received by the local authority, and any reference in any such scheme to the maximum amount of any assistance which

may be given thereunder, shall have effect subject to such modifications as may be required in order to give effect to the provisions of subsection (2) and of paragraph (a) of subsection (3) of this section.

PART VI
—cont.

101.—(1) The conditions specified in this section shall, in so far as they apply to any house and subject as hereinafter provided, apply in relation to the house for a period of forty years from the date of its completion and shall, so long as they continue to have effect, be deemed to be part of the terms of any lease or tenancy of the house granted by the owner thereof, and shall be enforceable accordingly.

Conditions
applying to
houses in
respect of
which
assistance has
been given
under s. 100.

(2) It shall be a condition applicable in relation to every house in respect of which assistance has been given under section one hundred of this Act—

(a) that the house shall during the said period of forty years be so maintained as to be in all respects fit for human habitation ; and

(b) that the owner of the house shall from time to time, on being so required by the local authority, furnish to the authority a certificate to the effect that the conditions applicable in relation to the house are being complied with, and any tenant of the house shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition.

(3) It shall also be a condition applicable in relation to any house in respect of which assistance has been so given as being a house provided in replacement of any house or other premises such as are mentioned in—

(a) sub-paragraph (i) of paragraph (a), or paragraph (b), of subsection (1) of the said section one hundred, that if at any time within the said period of forty years it is not required for the accommodation of an agricultural worker employed by the person who pays occupier's rates in respect thereof, it shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve ;

(b) sub-paragraphs (ii) and (iii) of paragraph (a) of the said subsection (1), that if at any time within the said period of forty years it is not required for the accommodation of the person working the farm or holding on which it is situated, it shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve ;

PART VI
—*cont.*

- (c) sub-paragraph (iv) of paragraph (a) of the said sub-section (1), that if at any time within the said period of forty years the holding on which it is situated ceases to be subject to the provisions of the Small Landholders (Scotland) Acts, 1886 to 1931, the house shall not be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve;
- (d) sub-paragraph (v) of paragraph (a) of the said sub-section (1), that it shall not at any time within the said period of forty years be let otherwise than to a member of the agricultural population and at such rent as the local authority may approve.

(4) In the event of a breach of any of the conditions which apply by virtue of this section in relation to any house in respect of which assistance has been given, the owner for the time being of the house shall forthwith become liable to repay to the local authority a sum bearing the same proportion to the sum paid by way of assistance as the period between the date when the said breach occurred and the expiration of the period of forty years during which the condition is applicable bears to the said period of forty years, together with compound interest thereon as from the date on which assistance was given, calculated at the prescribed rate and with yearly rests; and on repayment being so made the conditions aforesaid shall cease to apply in relation to the house:

Provided that, if the local authority in any such case are satisfied that the breach was not due to the act, default or connivance of the owner, the authority may, with the consent of the Secretary of State and subject to such conditions, if any, as the Secretary of State may approve, waive the liability of the owner to make repayment under the foregoing provision, and in the case of a continuing breach may, with the like consent and subject to such conditions as aforesaid, suspend the enforcement of that liability for such period as appears to them to be necessary for enabling the owner to remedy the breach.

Right of
owners
to repay
assistance
given under
s. 100.

102. The owner of a house in respect of which assistance has been given under section one hundred of this Act may at any time within the period of forty years during which conditions apply by virtue of the last foregoing section in relation to the house pay to the local authority a sum bearing the same proportion to the sum paid by way of assistance as the period between the date on which such payment is made and the expiration of the said period of forty years bears to the said period of forty years, together with compound interest thereon as from the date on which assistance was given, calculated at the prescribed rate and with yearly rests, and thereupon the conditions aforesaid shall cease to apply in relation to the house.

103.—(1) Where under section one hundred of this Act assistance is given to a landholder or a statutory small tenant in respect of a house on his holding, the local authority shall forthwith intimate to the landlord of the holding that assistance has been so given and shall inform him of the amount thereof.

PART VI
—cont.
Provisions
supplementary
to ss. 100 to
102.

(2) If at any time within the period of forty years during which conditions apply by virtue of section one hundred and one of this Act in relation to a house provided on a farm or holding otherwise than by the landlord thereof compensation becomes payable in respect of the house as for an improvement under the Agricultural Holdings (Scotland) Act, 1949, or the Small Landholders (Scotland) Acts, 1886 to 1931, so much of the value of the house as is attributable to the sum paid by way of assistance under section one hundred of this Act shall be taken into account in assessing the compensation so payable and shall be deducted therefrom.

(3) The landlord of a farm or a holding on which there is a house in relation to which conditions apply by virtue of section one hundred and one of this Act shall not at any time within the period during which the conditions apply be entitled to obtain any consideration by way of rent or otherwise in respect of so much of the value of the house as is attributable to the sum paid by way of assistance under section one hundred of this Act.

(4) A tenant, landholder or statutory small tenant shall for the purposes of sections one hundred to one hundred and two of this Act be deemed to be the owner of any house on his farm or holding in respect of which he would, on the termination of his tenancy, be entitled to compensation under the Agricultural Holdings (Scotland) Act, 1949, or the Small Landholders (Scotland) Acts, 1886 to 1931, as for an improvement.

(5) In sections one hundred and one and one hundred and two of this Act the expression "prescribed rate" means such rate as may be prescribed by the Secretary of State with the approval of the Treasury.

104.—(1) The Secretary of State shall, subject to the provisions of this Act, make or undertake to make contributions towards any expenses incurred by a local authority in giving assistance under section one hundred of this Act.

Exchequer
contributions
to expenses
of local
authorities
under schemes
of assistance.

(2) Any such contributions shall be made by way of annual payments for a period of forty years from the completion of the house in respect of which assistance is given, and shall be of an amount equal—

(a) in any case where assistance is given in respect of a house provided in replacement of any such house as is mentioned in sub-paragraphs (ii), (iii), (iv) or (v) of

PART VI
—cont.

paragraph (a) of subsection (1) of section one hundred of this Act which is situated in the Highlands and Islands, to seven-eighths, and

- (b) in any other case in which assistance is given under the said section, to three-quarters,

of the estimated average annual payments falling to be made by the local authority in respect of the charges on account of loans raised by them for the purposes of payments made under the said section, or which would have fallen to be made if the sums so expended by them had been raised by means of loans.

(3) In the event of a breach of any condition applicable by virtue of section one hundred and one of this Act in relation to a house, the local authority shall be liable to repay to the Secretary of State in respect of each payment already made by him a sum bearing the same proportion to the amount of the payment as the sum (excluding interest) repayable to the local authority by the owner of the house under subsection (4) of that section bears to the sum paid by them by way of assistance, together with compound interest thereon as from the date on which the payment was made, calculated at such rate as may be prescribed by the Secretary of State with the approval of the Treasury and with yearly rests:

Provided that—

- (a) the provisions of this subsection shall not apply if the liability of the owner to make repayment in respect of the breach of the condition has been duly waived in accordance with the provisions of the said subsection (4), or if and so long as the enforcement of that liability is duly suspended in accordance with those provisions; and
- (b) if the local authority show to the satisfaction of the Secretary of State that, notwithstanding that they have taken all practicable steps for the purpose, they have been unable to recover the whole or some part of any sum repayable to them by reason of the breach of the condition, the Secretary of State may remit the repayment of the whole or any part of the sum repayable to him under this subsection.

(4) Where under section one hundred and two of this Act any sum is repaid to the local authority in respect of any house, the local authority shall be liable to repay to the Secretary of State in respect of each payment already made by him a sum bearing the same proportion to the amount of the payment as the sum (excluding interest) repaid to the local authority bears to the sum paid by them by way of assistance, together with interest as aforesaid.

(5) Where a house the provision of which has been assisted by a local authority under section one hundred of this Act becomes vested in that authority—

PART VI
—cont.

- (a) no further contribution shall after the time of the vesting become payable by the Secretary of State in respect of the house under this section ; but
- (b) whether the conditions which by virtue of section one hundred and one of this Act apply in relation to the house are observed or not, the Secretary of State may, if he thinks fit, pay to the authority a sum equivalent to any contribution which would, after the said time, have become payable by him to the authority in respect of the house if all conditions precedent to the payment of that contribution had been at all material times observed.

PART VII

FINANCIAL PROVISIONS IN RESPECT OF IMPROVEMENT OF HOUSING ACCOMMODATION

Exchequer contributions for improvement of housing accommodation by local authorities

105.—(1) The Secretary of State may approve proposals (hereafter in this Part of this Act referred to as “improvement proposals”) submitted to him by a local authority for—

- (a) the provision of dwellings by the authority by means of the conversion of houses or other buildings ;

- (b) the improvement of dwellings by the authority ;

and may, subject to and in accordance with the provisions of this Part of this Act, make contributions towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals.

(2) Before approving any improvement proposals the Secretary of State shall satisfy himself as to the following requirements, that is to say,—

- (a) that, as respects dwellings to be provided in accordance with the proposals, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works necessary for the conversion of the buildings in question, and, as respects dwellings to be improved in accordance with the proposals, that the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the improvements ; and

- (b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction

Exchequer
contributions
towards losses
incurred by
local
authorities in
improving
housing
accommoda-
tion.

PART VII
—*cont.*

and physical condition, and the provision of services and amenities, as may be specified for the purposes of this section by the Secretary of State:

Provided that—

- (i) if in relation to all or any of the said dwellings the Secretary of State is of opinion that the period mentioned in paragraph (a) of this subsection is likely to be less than thirty years, he may, notwithstanding that fact, approve the proposals if he considers it expedient in all the circumstances to do so and if he is satisfied that the said period is likely to be more than ten years ; and
- (ii) if in relation to all or any of the said dwellings the Secretary of State is not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, he may, notwithstanding that fact, approve the proposals if he is satisfied that, in all the circumstances of the case, conformity with that requirement would be not practicable at a reasonable expense.

Nature and
amounts of
contributions.

106.—(1) A contribution under the last foregoing section towards the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall be a sum equal to three-quarters of that loss, payable annually for the period of twenty financial years beginning with the year in which the carrying out of the proposals was completed.

(2) The foregoing subsection shall in relation to a local authority for any area in the Highlands and Islands have effect with the substitution for the words “three-quarters” of the words “seven-eighths”.

Determination
of annual loss.

107.—(1) For the purposes of this Part of this Act the amount of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals shall be determined by the Secretary of State.

(2) For the purpose of a determination under the foregoing subsection regard shall be had to expense proposed to be incurred by the local authority in acquiring interests in land for the purpose of giving effect to the proposals, the estimated cost of executing works of conversion or improvement in accordance with the proposals, the annual income which, if effect were not given to the proposals, might reasonably be expected to accrue to the authority from interests owned by them in buildings proposed to be converted or dwellings proposed to be improved, and the annual income which may reasonably be expected to

accrue to the authority from the dwellings provided or improved as a result of giving effect to the proposals, and to any other matter which appears to the Secretary of State to be relevant.

PART VII
—cont.

(3) It shall be the duty of a local authority by whom improvement proposals are submitted to the Secretary of State to furnish to him such estimates and such particulars with respect to the proposals as he may require for the purposes of this section.

108. A local authority by whom dwellings have been provided or improved in accordance with approved improvement proposals shall make, for each financial year for which a contribution is payable under section one hundred and five of this Act by the Secretary of State towards the annual loss likely to be incurred by the authority as a result of giving effect to those proposals, a contribution equal to the difference between the amount of that loss and the amount of the contribution payable as aforesaid by the Secretary of State. Local authorities' contributions.

109.—(1) It shall be the duty of every local authority within three months or such other period as the Secretary of State may specify after receipt by them of a notice by the Secretary of State requiring them so to do to prepare and submit to him such particulars as may be specified in the notice of houses and other buildings to be included in improvement proposals under section one hundred and five of this Act. Duty of local authority to submit particulars of properties to be included in improvement proposals.

(2) A notice given under the foregoing subsection may relate to the whole or to one or more parts of the local authority's district.

(3) It shall be the duty of a local authority by whom particulars have been submitted in pursuance of a notice given under subsection (1) of this section to prepare and submit to the Secretary of State, within three months after being required by him so to do, improvement proposals relating to any or all of the houses or buildings specified in the said notice.

*Exchequer contributions for improvement of housing
accommodation by development corporations*

110. The Secretary of State may approve any proposals for the provision or improvement of dwellings submitted to him by a development corporation which he would have power to approve under the foregoing provisions of this Part of this Act if they were submitted to him by a local authority, and the like contribution shall be made by the Secretary of State to a development corporation towards the annual loss likely to be incurred by the corporation as a result of giving effect to proposals approved under this section as would have been made by him had the proposals been submitted by a local authority. Exchequer contributions towards losses incurred by development corporations in improving housing accommodation.

PART VII
—cont.

Grants to
persons other
than local
authorities for
improvement
of housing
accommoda-
tion.

*Grants by local authorities for improvement of housing
accommodation by persons other than local authorities*

111.—(1) Subject to the provisions of this Part of this Act, a local authority may give assistance in respect of—

- (a) the provision of dwellings by a person other than the authority by means of the conversion of houses or other buildings ;
- (b) the improvement of dwellings by such a person ;

by way of making a grant (hereafter in this Part of this Act referred to as an “improvement grant”) in respect of expenses incurred for the purpose of the execution of the works of conversion or improvement (hereafter in this Part of this Act referred to as “improvement works”) if, before the improvement works are begun, an application in that behalf is made to the authority by that person (hereafter in this Part of this Act referred to as “the applicant”) and approved by them.

(2) An application under this section for an improvement grant must contain full particulars of the improvement works proposed to be carried out and of the land on which those works are proposed to be carried out, together with plans and specifications of the works and an estimate of the expenses to be incurred for the purposes of the execution thereof, and, where the application relates to the provision or improvement of more than one dwelling, the said estimate must specify the proportion of the estimated expenses that is attributable to each dwelling proposed to be provided or improved.

(3) Before approving an application under this section for an improvement grant the local authority shall satisfy themselves as to the following requirements, that is to say,—

- (a) that, as respects dwellings to be provided by means of the improvement works, the dwellings will provide satisfactory housing accommodation for a period of not less than thirty years from the completion of the works, and, as respects dwellings to be improved by means of the improvement works, the dwellings as so improved will provide such accommodation for a period of not less than thirty years from the completion of the works ;
- (b) that all such dwellings as aforesaid will conform with such requirements with respect to their construction and physical condition and the provision of services and amenities as may be specified for the purposes of this section by the Secretary of State ;
- (c) that the applicant is, in respect of every parcel of land on which improvement works are proposed to be carried out (other than land proposed to be sold or leased to him under subsection (2) of section sixty-five

of this Act), either the owner or the lessee under a lease of which a period of not less than thirty years remains unexpired at the date of the application :

PART VII
—*cont.*

Provided that—

- (i) if in relation to all or any of the said dwellings the local authority are of opinion that the period mentioned in paragraph (a) of this subsection is likely to be less than thirty years, they may, notwithstanding that fact, approve the application if they consider it expedient in all the circumstances to do so and if they are satisfied that the said period is likely to be more than ten years ; and
- (ii) if in relation to all or any of the said dwellings the local authority are not satisfied that the dwellings or dwelling will conform with a particular requirement specified under paragraph (b) of this subsection, they may, notwithstanding that fact, approve the application if they are satisfied that, in all the circumstances of the case, conformity with that requirement would be not practicable at a reasonable expense.

(4) No application under this section for an improvement grant shall be entertained unless—

- (a) in a case where the application relates only to the provision or improvement of a single dwelling, the amount of the expenses estimated to be incurred for the purposes of the execution of the improvement works ; or
- (b) in any other case, the proportion of those expenses attributable to each dwelling proposed to be provided or improved ;

is neither less than one hundred pounds or such other amount as may for the time being be prescribed nor more than six hundred pounds or such other amount as may for the time being be prescribed :

Provided that where, in a case falling within paragraph (a) of this subsection, the amount of the expenses estimated to be incurred exceeds six hundred pounds or, as the case may be, the maximum amount for the time being prescribed under this subsection or, in a case falling within paragraph (b) of this subsection, all or any of the proportions of those expenses attributable to the several dwellings exceeds that amount, the local authority may, with the consent of the Secretary of State, entertain the application if they are satisfied that, in all the circumstances of the case, there is good reason so to do.

(5) Where a local authority approve an application under this section they shall notify the applicant of the amount approved by them as being the amount of the expenses which,

PART VII
—*cont.*

in their opinion, are properly ascribable to the execution of the improvement works and, where the application relates to the provision or improvement of more than one dwelling, of the proportion of that amount approved by them as being attributable to each dwelling proposed to be provided or improved.

The said amount is hereafter in this Part of this Act referred to, in relation to improvement works, as the "approved expense" of executing those works, and the proportion of that amount approved under this subsection as being attributable to a dwelling is so referred to, in relation to that dwelling, as the "approved proportion" of the approved expense.

(6) A local authority may in any case refuse to approve an application under this section on any grounds that seem to them sufficient, and shall refuse to approve any such application in respect of any dwelling to be provided or improved by means of improvement works if assistance has been given in respect of that dwelling under any of the following enactments, that is to say—

- (a) paragraph (b) of subsection (1) of section one hundred of this Act ;
- (b) section one of the Hill Farming Act, 1946 ;
- (c) section seventy-seven of the Agriculture (Scotland) Act, 1948.

(7) The Secretary of State may give directions to any local authority or to local authorities generally requiring that any application under this section or all such applications of any class specified in the directions shall not be approved except with the consent of the Secretary of State (which may be granted subject to conditions), and it shall be the duty of any local authority to whom such directions are issued to comply therewith.

Amounts, and
payment, of
improvement
grants.

112.—(1) The amount which may be paid by way of an improvement grant in respect of expenses incurred for the purpose of the execution of any improvement works shall be such fraction of the approved expense of executing those works, not exceeding one-half thereof, as may be determined by the local authority when they approve the application for the grant:

Provided that where—

- (a) the application for the improvement grant could not have been entertained but for the proviso to subsection (4) of the last foregoing section ; and
- (b) the local authority are satisfied that the expense of executing the improvement works was materially enhanced by reason of measures taken to preserve the

architectural or historic interest of the house or building to which the application relates ;

PART VII
—cont.

the amount of the improvement grant may be such fraction of the approved expense of executing the works, in excess of one-half thereof, as may, with the consent of the Secretary of State, be determined as aforesaid.

(2) An improvement grant in respect of expenses incurred for the purpose of the execution of improvement works may be paid either after completion of the works or partly in instalments from time to time as the works progress and as to the balance after the completion of the works :

Provided that where the grant is to be paid partly in instalments, the aggregate of the instalments paid shall not at any time before the completion of the works exceed one-half of the aggregate cost of the works executed up to that time.

(3) The payment of an improvement grant or of an instalment or the balance thereof shall be conditional on the works or, as the case may be, the part of the works which the applicant considers will entitle him to payment of the instalment or balance, being executed to the satisfaction of the local authority.

113. It shall be the duty of a local authority, at the time at which they approve an application under this Part of this Act for an improvement grant in respect of expenses incurred for the purpose of the execution of any improvement works, to fix, for the purposes of this Part of this Act, with respect to— Duty of local authority to fix rents.

(a) every dwelling to be provided by means of the works ; and

(b) every dwelling to be improved by means of the works, being a dwelling which the authority are satisfied has not been let as a dwelling at any time during the period of five years immediately preceding the date of the application ;

the maximum rent that may be paid in respect of the dwelling.

114.—(1) In the case of a dwelling in respect of the provision or improvement of which assistance has been given under section one hundred and eleven of this Act, the following conditions shall, subject to the provisions of this Part of this Act, be observed with respect to the dwelling for a period of twenty years beginning with the day on which in the opinion of the local authority it first becomes fit for occupation after the completion of the improvement works, and shall, so long as they are required to be so observed, be deemed to be part of the terms of any lease or tenancy of the dwelling, and shall be enforceable accordingly :— Conditions to be observed with respect to dwellings.

(a) the dwelling shall not be used for purposes other than those of a private dwelling-house ;

PART VII
—cont.

- (b) the dwelling shall not be occupied except by the owner thereof or a tenant ;
- (c) the rent payable by a tenant of the dwelling shall not exceed—

- (i) in a case where a maximum rent with respect to the dwelling has been fixed under the last foregoing section, the amount thereof ; or

- (ii) in any other case, an amount equal to the aggregate of the rent at which the dwelling was last let before the improvement works were begun and a sum calculated at a rate per annum not exceeding six per cent. of the fraction of the approved expense of executing those works or the approved proportion of that expense (according as the works were for the improvement of a single dwelling or of two or more dwellings) that fell to be borne by the applicant for the improvement grant ;

and no fine, premium or other like sum shall be taken in addition to the rent ;

- (d) the owner of the dwelling shall, on being required so to do by the local authority, certify that the conditions specified in the foregoing paragraphs are being observed with respect to the dwelling, and any tenant of the dwelling shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition ;
- (e) all reasonable steps shall be taken to secure the maintenance of the dwelling so as to be in all respects fit for human habitation ;
- (f) in the event of a tenant assigning his interest in, or otherwise parting with the possession of, the dwelling, it shall not be lawful for any person in consideration thereof to make any payment other than rent or for the tenant to receive, directly or indirectly, any such payment.

(2) In the event of a breach of any of the conditions specified in the last foregoing subsection during the period during which they are required by that subsection to be observed with respect to a dwelling, or in the event of the voluntary alienation of a dwelling by the owner thereof during the said period, the following provisions shall have effect :—

- (a) where the improvement works by means of which the dwelling was provided or improved were works only for the provision or improvement of that dwelling, the appropriate proportion of any sums paid by the local authority by way of improvement grant in respect of

the expenses incurred for the purpose of executing those works, together, in the case of each such sum, with compound interest on that proportion thereof as from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall, on being demanded by the local authority, forthwith become payable to them by the owner for the time being of the dwelling ;

PART VII
—cont.

- (b) in any other case, the appropriate proportion of a part of any such sums as aforesaid bearing to the whole thereof the same proportion that the approved proportion of the approved expense of executing the improvement works bears to the whole of the approved expense of executing those works, together, in the case of each part of a sum, with compound interest on the appropriate proportion thereof as from the date of payment of the sum, calculated at the prescribed rate and with yearly rests, shall become payable as aforesaid :

Provided that—

- (i) if the local authority are satisfied that the breach is capable of being remedied, they may, with the consent of the Secretary of State, and subject to such conditions (if any) as he may approve, direct that the operation of the foregoing provisions of this subsection shall, in relation to the breach, be suspended for such period as appears to them to be necessary for enabling the breach to be remedied and, if the breach is remedied within that period, may direct that the said provisions shall not have effect in relation to the breach ; and
- (ii) if the local authority are satisfied that the breach, although not capable of being remedied, was not due to the act, default or connivance of the owner of the dwelling, they may, with the like consent and subject to such conditions as aforesaid, direct that the said provisions shall not have effect in relation to the breach.

In this subsection the expression “ the appropriate proportion ”, in relation to a sum or part of a sum, means a part thereof proportionate to the extent to which the period during which conditions are required by subsection (1) of this section to be observed with respect to the dwelling remains unexpired at the date of the occurrence of the breach of conditions or of the voluntary alienation of the dwelling, as the case may be.

(3) Upon satisfaction of a liability of an owner of a dwelling to make payment under the last foregoing subsection to a local authority, observance, with respect to the dwelling, of the conditions specified in subsection (1) of this section shall cease to be requisite.

PART VII
—cont.

(4) The sheriff within whose jurisdiction is situate any such dwelling as is mentioned in subsection (1) of this section may, on the application of the local authority, whether or not any other relief is claimed, grant an interdict restraining a breach or apprehended breach, in relation to the dwelling, of any of the conditions specified in that subsection other than the condition specified in paragraph (d) thereof.

(5) Where a local authority pay an improvement grant or the first instalment of an improvement grant in respect of a dwelling, they shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form specifying—

- (a) the conditions required by this section to be observed with respect to the dwelling ; and
- (b) the provision of subsection (2) of this section whereby on a breach of any of the aforesaid conditions or on a voluntary alienation of the dwelling within the period during which the aforesaid conditions are required to be observed the owner for the time being becomes liable to repay to the local authority the amount set forth in that subsection ;

and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

(6) In the event of a breach of any of the aforesaid conditions with respect to a dwelling or of a voluntary alienation of the dwelling during the period aforesaid it shall be competent to the local authority to make a charging order in favour of themselves for the amount that becomes payable to them as aforesaid, and the provisions of section twenty-one of this Act shall, with any necessary modifications, apply to any such charging order in like manner as they apply to a charging order made under section twenty thereof.

(7) In any case where, in pursuance of subsection (3) of this section, observance of the conditions specified in subsection (1) thereof ceases to be requisite with respect to a dwelling, the local authority shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form stating that the said conditions no longer apply to the dwelling, and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

(8) The provisions of this section (other than paragraph (c) of subsection (1)) shall apply to a dwelling used as a residence by a minister or full-time lay missionary of any religious denomination by virtue of his office as such minister or missionary in like manner as if he were a tenant of the dwelling.

115.—(1) The owner of a dwelling in respect of the provision or improvement of which assistance has been given under section one hundred and eleven of this Act or the holder of a heritable security over the dwelling, being a heritable creditor entitled to exercise his power of sale, may, at any time during the period during which the conditions specified in subsection (1) of the last foregoing section are required by that subsection to be observed with respect to the dwelling, pay to the local authority the like amount as would become payable to them under subsection (2) of that section in the event of a breach at that time of any of those conditions, and on the making of the payment observance, with respect to the dwelling, of those conditions shall cease to be requisite.

PART VII
—*cont.*
Repayment of
improvement
grants.

(2) A sum paid under the last foregoing subsection by a heritable creditor shall be treated as part of the sum secured by the heritable security.

(3) In any case where, in pursuance of subsection (1) of this section, observance of the conditions therein referred to ceases to be requisite with respect to a dwelling, subsection (7) of the last foregoing section shall apply in like manner as it applies in the case therein mentioned.

116.—(1) The Secretary of State may make a contribution towards the expense incurred by a local authority in making an improvement grant.

Exchequer
contributions
towards
improvement
grants.

(2) A contribution under the last foregoing subsection shall be a sum equal to three-quarters of the annual loan charges referable to the amount of the grant payable annually for the period of twenty financial years beginning with the year in which were completed the improvement works in respect of the expenses incurred for the purpose of the execution of which the grant was made.

(3) For the purposes of this section, the annual loan charges referable to the amount of an improvement grant shall (whatever may be the manner in which the local authority have provided or intend to provide the money requisite for making the grant) be the annual sum that, in the opinion of the Secretary of State, would fall to be provided by the local authority for the payment of interest on, and the repayment of, an amount, equal to the amount of the grant, of borrowed money the period for the repayment of which is twenty years.

(4) A local authority shall pay to the Secretary of State three-quarters of any sum recovered by them by virtue of subsection (2) of section one hundred and fourteen of this Act or paid

PART VII
—cont.

to them under the last foregoing section, and any sum received by the Secretary of State under this section shall be paid into the Exchequer.

(5) Subsections (2) and (4) of this section shall, in the case of a local authority for any area in the Highlands and Islands, have effect with the substitution for the words "three-quarters" of the words "seven-eighths".

**Provisions as
to further
improvement
grants.**

117.—(1) No assistance shall be given under section one hundred and eleven of this Act in respect of the provision of dwellings by means of the conversion of dwellings in relation to which the conditions specified in subsection (1) of section one hundred and fourteen of this Act for the time being apply.

(2) Where by virtue of the giving on any occasion of assistance under section one hundred and eleven of this Act in respect of the improvement of a dwelling the conditions specified in subsection (1) of section one hundred and fourteen of this Act are required to be observed with respect to the dwelling before the observance thereof by virtue of the giving of assistance on a previous occasion has ceased to be requisite, the provisions of sections one hundred and fourteen and one hundred and fifteen of this Act and of subsections (4) and (5) of section one hundred and sixteen thereof shall apply in relation to the dwelling as regards each occasion on which assistance is so given as if it were the only occasion on which it were so given:

Provided that in relation to any period during which the said conditions are simultaneously required to be observed by virtue of the giving of assistance on more than one occasion, the condition as to rent applicable by reason of the giving of assistance on the last occasion shall be deemed to be the condition as to rent also by reason of the giving of assistance on any previous occasion.

**Power to
increase rent
under Part VII
in certain cases.**

118. If, in the case of a dwelling in respect of the provision or improvement of which assistance has been given under section one hundred and eleven of this Act, being a dwelling to which works (other than works for the purposes of the execution of which assistance has been so given) have been executed at a time when the conditions specified in subsection (1) of section one hundred and fourteen of this Act are required to be observed with respect to the dwelling, an application in that behalf is made to the local authority, they may direct that for the purposes of this Part of this Act the maximum amount of the rent payable by the tenant of the dwelling shall be increased by such amount as may be specified in the direction, not exceeding an amount calculated at a rate per annum of eight per cent. of

the cost of executing the works ; and where a direction is given under this section in relation to a dwelling on any occasion—

PART VII
—cont.

- (a) references in paragraph (c) of the said subsection (1) to the amount which the rent payable by the tenant of the dwelling is not to exceed shall, as respects any period after the giving of the direction and before a subsequent direction is given under this section in relation to the dwelling or the direction is superseded by reason of the application of the said conditions by virtue of the giving of further assistance under the said section one hundred and eleven, whichever event first occurs, be construed in relation to the dwelling, for the purposes of this Part of this Act and, where subsection (2) of section one hundred and nineteen of this Act applies, for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942, as references to that amount as increased in accordance with the direction given on that occasion and with any direction given under this section in relation to the dwelling on a previous occasion which has not been superseded as aforesaid ; and
- (b) the local authority shall cause to be recorded in the appropriate Register of Sasines a notice in the prescribed form setting forth the effect of the direction, and the cost of such recording shall be repaid to the local authority by the owner for the time being of the dwelling.

119.—(1) No assistance shall be given under section one hundred and eleven of this Act in respect of the provision of dwellings by means of the conversion of dwellings in relation to which the conditions specified in section three of the Housing (Rural Workers) Act, 1926, for the time being apply.

Provision as to dwellings improved under Housing (Rural Workers) Act, 1926.

(2) Where assistance is given under the said section one hundred and eleven in respect of the improvement of a dwelling in relation to which the conditions aforesaid apply at the time when assistance is so given, the Housing (Rural Workers) Acts, 1926 to 1942, shall have effect in relation to the dwelling as if the conditions specified in subsection (1) of section one hundred and fourteen of this Act were contained in, and applicable by virtue of, subsection (1) of section three of the Housing (Rural Workers) Act, 1926, in lieu of the conditions specified therein and in sections five and six of the Housing (Rural Workers) Amendment Act, 1938, and anything which would, or would not, constitute for the purposes of this Part of this Act a breach of the conditions specified in subsection (1) of the said section one hundred and fourteen shall be treated as constituting, or, as the case may be, not constituting, a breach of those conditions for the purposes of the Housing (Rural Workers) Acts, 1926 to 1942.

PART VII

—cont.

Provisions as
to security of
tenure of
tenants.

120. Where a dwelling in respect of the provision or improvement of which assistance has been given under section one hundred and eleven of this Act is, during the period during which conditions are required by subsection (1) of section one hundred and fourteen of this Act to be observed with respect to the dwelling, let to a person in consequence of his employment by the lessor, the operation of section three of the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 (which restricts the right of a landlord to possession of a dwelling) shall not be excluded by reason of the letting being otherwise than at a rent of two-thirds or more of the rateable value of the dwelling.

*Arrangements by local authorities with housing associations
and development corporations for improvement of housing
accommodation*

Arrangements
by local
authorities with
housing asso-
ciations and
development
corporations
for improve-
ment of
housing accom-
modation.

121.—(1) A local authority may, with the approval of the Secretary of State, make arrangements with a housing association or development corporation for—

- (a) the provision of dwellings by the association or corporation by means of the conversion of houses or other buildings ;
- (b) the improvement of dwellings by the association or corporation.

(2) Arrangements made under this section shall include such terms with regard to such matters, including the rents at which the dwellings to be provided or improved in accordance with the arrangements are to be let, as may appear to the local authority to be expedient in view of the needs of their district in relation to housing and as may be approved by the Secretary of State.

(3) Where arrangements are made under this section by a local authority with a housing association or development corporation, the Secretary of State shall make to the local authority a contribution of a sum, payable annually for the period of twenty financial years beginning with the year in which the carrying out of the arrangements is completed, equal to three-quarters of the annual loss determined by the local authority, with the approval of the Secretary of State, to be likely to be incurred by the association or corporation in carrying out the arrangements, and the local authority shall pay to the association or corporation for that period annual grants each of an amount not less than the said sum :

Provided that—

- (a) if the Secretary of State is satisfied that the association or corporation have made default in giving effect to

the terms of the arrangements, he may reduce the amount of the contribution payable to the local authority under this subsection, or suspend or discontinue the payment thereof, as he thinks just; and

PART VII
—cont.

- (b) if the Secretary of State reduces, or suspends or discontinues the payment of, the contribution, the local authority may reduce to a proportionate or any less extent the annual grant payable by them to the association or corporation, or may suspend the payment thereof for a corresponding period, or may discontinue the payment thereof, as the case may be.

(4) Subsection (2) of section one hundred and seven of this Act shall have effect in relation to a determination under the last foregoing subsection of the amount of the annual loss likely to be incurred by a housing association or development corporation in carrying out arrangements made under this section as it has effect in relation to a determination of the annual loss likely to be incurred by a local authority as a result of giving effect to approved improvement proposals with the substitution, for references to the local authority, of references to the association or corporation, for references to the proposals, of references to the arrangements, and, for the reference to the Secretary of State, of a reference to the local authority.

(5) Subsection (3) of this section shall in relation to a local authority for any area in the Highlands and Islands have effect with the substitution for the words "three-quarters" of the words "seven-eighths".

Supplementary provisions

122. The Secretary of State may, with the consent of the Treasury, make regulations prescribing anything required or authorised by this Part of this Act to be prescribed.

Provisions as to regulations under Part VII.

123. A dwelling which has been provided or improved—

House provided or improved not to be deemed a new house.

- (a) in giving effect to approved improvement proposals or arrangements with a housing association or development corporation; or

- (b) by improvement works under this Part of this Act;

shall not, by reason only of such provision or improvement, be deemed to be a new house within the meaning of any local Act notwithstanding anything contained in such Act.

124. A dwelling which has been provided or improved—

Valuation of dwellings provided or improved under Part VII.

- (a) by means of improvement works in respect of which an improvement grant has been made; or
- (b) in pursuance of arrangements made under this Part of this Act by a local authority with a housing association or development corporation;

PART VII
—cont.

shall not, so long as the conditions set forth in subsection (1) of section one hundred and fourteen of this Act apply to the dwelling, or so long as contributions are payable in respect of the dwelling under subsection (3) of section one hundred and twenty-one of this Act, as the case may be, be entered in the valuation roll at a gross amount exceeding the maximum rent (exclusive of occupier's rates) payable under the said subsection (1) or the rent (exclusive of occupier's rates) approved under subsection (2) of the said section one hundred and twenty-one, as the case may be.

**Application
of Rent
Restrictions
Acts to
dwellings
provided or
improved
under Part VII.**

125. For removal of doubt it is hereby declared that nothing in this Part of this Act excludes the application of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, to a dwelling provided or improved—

- (a) by means of improvement works in respect of which an improvement grant has been made; or
- (b) in pursuance of arrangements made under this Part of this Act by a local authority with a housing association or development corporation:

Provided that in their application to any such dwelling the said Acts shall have effect subject to the following modifications—

- (i) the provisions thereof with regard to standard rent and permitted increases of rent shall not apply during the period during which the conditions set forth in subsection (1) of section one hundred and fourteen of this Act are required to be observed with respect to the dwelling or, as the case may be, contributions are payable in respect of the dwelling under subsection (3) of section one hundred and twenty-one of this Act; and
- (ii) the rent under the first tenancy of the dwelling granted after the expiry of the aforesaid period shall be deemed to be the standard rent for the purposes of the said Acts.

**Interpretation
of Part VII.**

126.—(1) In this Part of this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“owner”, in relation to a dwelling, means the person who is for the time being entitled to receive the rent of the dwelling or who, if the dwelling were let, would be so entitled, and includes such a lessee as is mentioned in paragraph (c) of subsection (3) of section one hundred and eleven of this Act;

“voluntary alienation” includes alienation by sale, gift, or other transaction or transactions whereby the right or

interest of the owner is transferred to another person, and the granting of a lease for a period of thirty years or upwards, but does not include a transfer by operation of law.

PART VII
—cont.

(2) References in this Part of this Act to the improvement of dwellings shall be construed as including references to the alteration or enlargement thereof and to the execution of works of repair thereto, not being works of ordinary repair, and as including also references to the execution of works of ordinary repair thereto so far, but so far only, as the execution thereof is incidental to or connected with the execution of works of improvement, alteration or enlargement or of works of repair not being works of ordinary repair, and in this Part of this Act the expression "improved" shall be construed accordingly.

(3) A dwelling shall not be deemed for the purposes of this Part of this Act to be used for purposes other than those of a private dwelling-house by reason only that part thereof is used as a shop or office, or for business, trade or professional purposes.

(4) In determining for the purposes of this Part of this Act whether, as regards a dwelling provided or improved by means of improvement works in respect of the provision or improvement of which assistance has been given under section one hundred and eleven of this Act, a breach has occurred of the condition required by this Part of this Act to be observed as to the rent payable by a tenant of the dwelling, any property which, in the absence of express provision, would pass upon a conveyance in common form of the dwelling, and any yard, garden, outhouse and pertinents belonging to or usually enjoyed with the dwelling, shall be deemed to form part of the dwelling.

PART VIII

FINANCIAL PROVISIONS—GENERAL

Exchequer and local authority contributions

127.—(1) Subject to the provisions of this section, the Secretary of State may from time to time by order provide for the review and variation of the contributions hereafter in this section mentioned.

(2) An order made by the Secretary of State under this section may provide in relation to new houses completed after such date as may be specified in the order—

- (a) for reducing the amounts of all or any of the annual Exchequer contributions payable under sections eighty-four, eighty-five or eighty-six of this Act ;

PART VIII
—*cont.*

(b) for reducing the amounts of all or any of the annual contributions which the local authority are required to make under sections ninety-seven, ninety-eight or ninety-nine of this Act ;

(c) for reducing the number of years for which any such contributions are to be paid.

(3) An order made by the Secretary of State under this section may provide—

(a) as respects proposals approved by him under section one hundred and five or section one hundred and ten of this Act after such date as may be specified in the order, for reducing the proportion of the annual loss likely to be incurred by a local authority or development corporation by reference to which the amount of a contribution by him under either of those sections is to be computed ;

(b) as respects improvement grants made in pursuance of applications approved by local authorities after that date, for reducing the proportion of the annual loan charges referable to the amount of any such grant by reference to which the amount of a contribution by him under section one hundred and sixteen of this Act is to be computed ;

(c) as respects arrangements made after that date under section one hundred and twenty-one of this Act, for reducing the proportion of the annual loss likely to be incurred by a housing association or development corporation by reference to which the amount of a contribution by him under subsection (3) of that section is to be computed :

Provided that none of the said proportions shall be reduced to less than two-thirds.

(4) Any such order providing for reducing the proportion of the annual loan charges referred to in paragraph (b) of the last foregoing subsection shall provide for reducing to a corresponding extent, in relation to improvement grants made as mentioned in that paragraph, the proportion of any sum required by subsection (4) of section one hundred and sixteen of this Act to be paid to the Secretary of State.

(5) The power to make an order under this section shall be exercisable by statutory instrument, and before any such instrument is made, a draft of the order shall be laid before the Commons House of Parliament, and the instrument shall not be made unless that House, within the period of forty days beginning with the day on which the draft is laid before it, passes a resolution approving the draft.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which the Commons House is adjourned for more than four days.

PART VIII
—cont.

(6) Before laying before the Commons House of Parliament a draft of an order under this section, the Secretary of State shall consult with such associations of local authorities as appear to him to be concerned and with any local authority with whom consultation appears to him to be desirable.

128.—(1) The sums required for the making of any contribution or payment which the Secretary of State is required or authorised under this Act to make shall be provided out of moneys provided by Parliament. Provisions as to payment of Exchequer contributions.

(2) Contributions to be made by the Secretary of State to a local authority under any enactment in the Acts specified in Part II of the Sixth Schedule to this Act, or in this Act, and payments to be made by the Secretary of State to the Scottish Special Housing Association under section ninety-three of this Act, shall be, and shall be deemed always to have been, payable at such times and in such manner as the Treasury may direct and subject to such conditions as to records, certificates, audit or otherwise as the Secretary of State may, with the approval of the Treasury, impose.

(3) It shall be a condition of the right of a local authority to receive any Exchequer contribution that the authority shall make the contributions specified in the Eighth Schedule to this Act.

129. If at any time the Secretary of State is satisfied that a local authority have— Power to withhold Exchequer contributions in the event of default.

- (a) failed to discharge any of the duties imposed on them by virtue of the Acts specified in Part II of the Sixth Schedule to this Act, or this Act; or
- (b) failed to exercise any of their powers under the aforesaid Acts in any case where these powers ought to have been exercised; or
- (c) failed to observe any condition subject to which they are entitled to receive an Exchequer contribution;

the Secretary of State may reduce the amount of any Exchequer contribution payable to the authority, or suspend or discontinue the payment of any such contribution, as he thinks just.

PART VIII
—cont.

Effect on
certain
contributions
of a house
ceasing to be
available as
such.

130.—(1) Where under any of the provisions specified in the Tenth Schedule to this Act (being provisions in pursuance of which payments may be made by the Secretary of State or by local authorities by way of financial assistance in connection with the provision or improvement of housing accommodation) a periodical payment would, apart from this section, have fallen to be made after the commencement of this Act in respect of a house to any person other than a local authority, that payment shall not be made if, before the making thereof, the Secretary of State is satisfied that, during the whole or the greater part of the period to which the payment is referable, the house has not been available as a dwelling fit for human habitation:

Provided that nothing in this subsection shall prevent the making of a periodical payment in respect of any house if the Secretary of State is satisfied that the house could not with reasonable diligence have been made available, during the whole or the greater part of the period to which the payment is referable, as a dwelling fit for human habitation.

Any question as to the period to which any payment is referable shall be determined for the purposes of this subsection by the Secretary of State.

(2) Where the power or duty of a local authority to make any payment is wholly or partly discharged by virtue of the preceding subsection, the Secretary of State may make such consequential reductions as he thinks appropriate in any sum payable by him to the authority.

Power of local
authority to
pay removal
and other
allowances to
certain
persons
displaced.

131.—(1) A local authority may pay to any person displaced from a house or building—

- (a) to which a clearance order or a demolition order or a closing order (including a closing order made under section thirteen of this Act) applies; or
- (b) which has been purchased by the local authority under Part III or Part V of this Act; or
- (c) which is to be demolished by the owner in accordance with an agreement made with the local authority under Part II of this Act;

such reasonable allowance as they think fit towards his expenses in removing; and to any person carrying on any trade or business in any such house or building they may pay also such reasonable allowance as they think fit towards the loss which, in their opinion, he will sustain by reason of the disturbance of his trade or business consequent on his having to quit the house or building, and in estimating that loss they shall have regard to the

period for which the premises occupied by him might reasonably have been expected to be available for the purpose of his trade or business and the availability of other premises suitable for that purpose.

PART VIII
—cont.

(2) The power conferred on a local authority by the foregoing subsection to make allowances towards the expenses incurred in removing by persons displaced in consequence of the exercise by the authority of their powers shall include power to make allowances to persons so displaced temporarily in respect of expenses incurred by them in storage of furniture.

(3) Where, as a result of action taken by a local authority under Part III of this Act, the population of the locality is materially decreased, the authority may pay to any person carrying on a retail shop in the locality such reasonable allowance as they may think fit towards any loss which, in their opinion, he will thereby sustain, but in estimating any such loss they shall have regard to the probable future development of the locality.

Borrowing by local authorities, etc.

132. Without prejudice to any power of borrowing conferred on them by any other enactment, a local authority may borrow money—

Power of local authority to borrow for purposes of Act.

(a) for the purposes of Parts V and VII of this Act,

(b) for the purposes of sections one hundred and one hundred and four, and section one hundred and thirty-one of this Act.

133.—(1) Where housing operations under Part V of this Act are being carried out by a local authority outside their own district, that local authority shall have power to borrow money for the purpose of defraying any expenses (including, if the Treasury so approve, interest payable in respect of any period before the completion of the operations or a period of five years from the date of borrowing, whichever period is the shorter, on money borrowed under this section) incurred by them in connection with any works necessary for the purposes of or incidental to the carrying out of the operations.

Power of local authority to borrow in connection with operations carried out by them outside their district.

(2) The local authority of any district in which operations are being carried out as aforesaid by the local authority of another district shall have power to borrow money for the purposes of any agreement entered into by them with that other local authority under Part V of this Act, and that in the same manner as if such works as aforesaid had been executed by them.

PART VIII*—cont.*

Power of local authority carrying out operations outside their district to lend money to other authority concerned.

134. Where housing operations under Part V of this Act are being carried out by a local authority outside their own district, that local authority shall have power to advance to the local authority of the district in which the operations are being carried out such sums as may, by reason of any agreement made with the last-mentioned local authority under Part V of this Act, be required by the last-mentioned local authority in connection with the construction by them of any works necessary for the purposes of or incidental to the carrying out of the operations.

Provisions as to loans to local authorities by Public Works Loan Commissioners.

135.—(1) The Public Works Loan Commissioners may make loans to any local authority for any of the purposes of this Act for which the authority have power to borrow by virtue of any enactment.

(2) Where a loan is made by the Public Works Loan Commissioners for any of the purposes aforesaid—

- (a)** the loan shall be made at the minimum rate applicable for the time being to the period for which the loan is made for loans out of the Local Loans Fund ; and
- (b)** the period for which the loan is made may exceed the period allowed under any enactment limiting the period for which loans may be made by the Commissioners, but shall not exceed eighty years.

Power of local authority to issue local bonds.

136.—(1) Without prejudice to any other powers of borrowing, a local authority may borrow any sums which they have power to borrow for any of the purposes mentioned in the last foregoing section by the issue of bonds (in this Act referred to as “local bonds”) in accordance with the provisions of this Act.

(2) The provisions set out in the Eleventh Schedule to this Act shall have effect with respect to local bonds.

(3) Where, on an application made by two or more local authorities, the Secretary of State is satisfied that it is expedient that those authorities should have power to make a joint issue of local bonds, the Secretary of State may by order make such provision as appears to him necessary for the purpose, and any such order shall provide for the securing of the bonds issued upon the joint rates, property and revenues of the authorities.

The provisions of an order so made shall be binding and conclusive in respect of the matters to which the order relates.

(4) A local authority by whom any local bonds have been issued may borrow for the purpose of redeeming those bonds.

(5) Subject to the provisions of paragraph 6 of the Eleventh Schedule to this Act and save as otherwise expressly provided, nothing in Part XII of the Local Government (Scotland) Act, 1947, shall apply to or affect the power of a local authority to issue local bonds under this Act or apply to any local bond issued under this Act.

PART VIII
—cont.

Accounts

137.—(1) Every local authority shall keep an account (to be called “the housing revenue account”) of the income and expenditure of the authority in respect of— Obligation to keep housing revenue account.

- (a) all houses and other buildings which have been provided at any time after the twelfth day of February, nineteen hundred and nineteen, under Part III of the Housing (Scotland) Act, 1925, or under any enactment relating to the provision of housing accommodation for the working classes repealed by that Act, or under Part V of this Act;
- (b) all land which at any time after the said date has been acquired or appropriated for the purposes of Part V of this Act or of Part III of the said Act of 1925, or of any enactment relating to the provision of housing accommodation for the working classes repealed by that Act, or is deemed to have been acquired under the said Part III by virtue of subsection (4) of section fifteen of the Housing (Scotland) Act, 1935;
- (c) all dwellings in respect of which the Secretary of State has undertaken to make a contribution to the authority under section thirty-five of the Housing (Scotland) Act, 1935;
- (d) all dwellings provided or improved by the authority in accordance with approved improvement proposals and all land acquired or appropriated by the authority for the purpose of carrying out such proposals; and
- (e) such other houses as the authority with the consent of the Secretary of State may from time to time determine.

(2) Where a house is for the time being vested in a local authority by reason of the default of any person in carrying out the terms of any arrangements under which assistance in respect of the provision, reconstruction or improvement of the house has been given under any enactment relating to housing, the house shall be deemed for the purposes of the foregoing subsection to be a house which has been provided by the authority under Part V of this Act.

PART VIII
—cont.

Credits and
debts in
housing
revenue
account.

138.—(1) In each financial year a local authority shall carry to the credit of the housing revenue account kept by them under the last foregoing section amounts equal to—

- (a) the income receivable by the authority for that year from rents and feu duties in respect of such houses, buildings, land and dwellings as are mentioned in the last foregoing section ;
- (b) the Exchequer contributions, if any, payable to the authority for that year ; and
- (c) the authority's contributions referred to in the Eighth Schedule to this Act for that year ;

and shall debit to the account amounts equal to—

- (i) the loan charges which the local authority are liable to pay for that year in respect of moneys borrowed by a local authority for the purpose of the provision by them after the twelfth day of February, nineteen hundred and nineteen, of housing accommodation under Part V of this Act or under Part III of the Housing (Scotland) Act, 1925, or under any enactment relating to the provision of housing accommodation for the working classes repealed by that Act, or for the purpose of the execution of works in respect of which the Secretary of State has undertaken to make a contribution under section thirty-five of the Housing (Scotland) Act, 1935, or for the purpose of the provision or improvement by them of dwellings in accordance with approved improvement proposals ;
- (ii) the taxes, rates, feu duties, rents and other charges which the authority are liable to pay for that year in respect of such houses, buildings, land and dwellings as are mentioned in the last foregoing section ;
- (iii) the expenditure incurred by the authority for that year in respect of the supervision and management of such houses, buildings, land and dwellings as are mentioned in the last foregoing section ;
- (iv) the arrears of rent which have been written off in that year as irrecoverable (other than arrears of rent in respect of any period prior to the sixteenth day of May, nineteen hundred and thirty-five) ;
- (v) the contribution, if any, required to be made by the authority for that year to a housing repairs account kept in accordance with the subsequent provisions of this Part of this Act ; and
- (vi) if the authority keep a housing equalisation account in accordance with the subsequent provisions of this Part of this Act, the contribution, if any, required to be made by the authority for that year to that account.

(2) Where any such house, building, land or dwelling as is mentioned in the last foregoing section has been sold or otherwise disposed of, whether before or after the commencement of this Act, an amount equal to any income of the authority arising from the investment or other use of capital money received by the authority in respect of the transaction shall, unless the Secretary of State otherwise directs as respects the whole or any part of such income, be carried to the credit of the housing revenue account in like manner as if it had been income from rents.

(3) An amount equal to the income (if any) of the authority arising from an investment or other use of borrowed moneys in respect of which the authority are required to debit loan charges to the housing revenue account shall be carried to the credit of that account in like manner as if it had been income from rents.

(4) Where it appears to the Secretary of State that amounts in respect of any incomings or outgoings other than as aforesaid ought properly to be credited or debited to a housing revenue account, or that amounts in respect of any of the incomings and outgoings aforesaid which ought properly to have been credited or debited thereto have not been so credited or debited, or that any amounts have been improperly credited or debited to that account, he may, after consultation with the local authority, give directions for the appropriate credits or debits to be made or for the rectification of the account, as the case may require.

139.—(1) Where any surplus is shown in a housing revenue account at the end of any financial year, the local authority shall have power to apply that surplus, in whole or in part, to any purpose which the Secretary of State may approve, being a purpose connected with the provision of housing accommodation.

Disposal of
balances in
housing
revenue
account.

(2) Subject to the provisions of subsection (3) of this section, so much of any such surplus as remains after effect has been given to the provisions of the foregoing subsection shall, subject to application, if the local authority so determine, in repaying any additional contributions made in any of the four last preceding financial years, be carried forward in the account to the next financial year.

(3) So much as remains as aforesaid of any surplus shown on the fifteenth day of May in the year nineteen hundred and fifty, or any fifth succeeding year, and is not required for application in pursuance of the last foregoing subsection may, as the local authority with the consent of the Secretary of State may determine, be applied in whole or in part, in either of the following ways or partly in one of those ways and partly in the other, that is to say,—

(a) by transferring it to the housing repairs account; or

PART VIII
—*cont.*

(b) by carrying it forward in the housing revenue account to the next financial year ;

and, in so far as not so applied, shall be divided into two parts in proportion to the amount credited to the housing revenue account under the last foregoing section during the period of five years ending on the date on which the surplus is shown in respect of Exchequer contributions on the one hand, and the amount so credited in respect of the contributions specified in the Eighth Schedule to this Act, less any amounts repaid under the last foregoing subsection, on the other hand, and an amount equal to the first of those parts shall be paid to the Secretary of State and an amount equal to the other part shall be applied towards meeting expenditure chargeable to the fund out of which the contributions specified as aforesaid were made.

**Housing
repairs
account.**

140.—(1) Subject to the provisions of this section, every local authority shall for the purpose of equalising so far as practicable the annual charge to their revenue in respect of the repair, improvement and maintenance of houses, buildings and dwellings in respect of which that account is to be kept, keep an account (to be called “the housing repairs account”) and shall, in each financial year, carry to the credit of that account from the housing revenue account in respect of each house, building and dwelling such amount as they may think proper, not being less than four pounds, and such amount, if any, as may be necessary to make good any deficit shown in the housing repairs account at the end of the last preceding financial year.

(2) Subject to the provisions of this Part of this Act, moneys standing to the credit of the housing repairs account shall be applied only in meeting expenses incurred in respect of the repair, improvement, and maintenance of the houses, buildings and dwellings in respect of which the housing revenue account is to be kept.

(3) If at any time it appears to the Secretary of State, after consultation with the local authority, that the moneys standing to the credit of a housing repairs account are more than sufficient for the purposes for which the account is to be kept or that it is no longer necessary for the account to be kept, he may give such directions as he thinks proper for the reduction of the amounts to be credited to the account or the suspension of the carrying of credits thereto, or for the closing of the account and the application of any moneys standing to the credit thereof, as the case may be.

**Housing
equalisation
account.**

141.—(1) Every local authority shall, if they think it desirable for the purpose of equalising the income of the housing revenue account derived from Exchequer contributions over any period during which loan charges required to be debited to that account

will be payable, keep an account (to be called the "housing equalisation account") and shall, if they keep such an account, carry to the credit of that account from the housing revenue account such sums, and shall apply an amount equal to the sums so credited in such manner, as may be prescribed.

PART VIII
—cont.

(2) Where a local authority close their housing equalisation account, they shall carry to the credit of their housing revenue account any sums standing to the credit of their housing equalisation account when it is closed.

142.—(1) An amount equal to any moneys standing to the credit of the housing repairs account or the housing equalisation account of a local authority, and not for the time being required for the purposes for which they will ultimately be applicable may be used by the authority for the purpose of any statutory borrowing power possessed by them subject to the conditions specified in subsection (2) of this section, and, so far as not so used, shall be invested temporarily in any security in which trustees are for the time being authorised by law to invest, and an amount equal to the income arising from such investment shall be credited to the account.

Temporary
application of
moneys in
housing
accounts.

(2) The conditions subject to which moneys may be used as mentioned in subsection (1) of this section shall be the following, that is to say,—

- (a) the moneys so used shall be repaid to the account out of the county or burgh fund within the period, and by methods, within and by which a loan raised under the statutory borrowing power would be repayable :

Provided that the authority shall repay to the account the moneys so used or the balance thereof for the time being outstanding, as the case may be, as and when required for the purposes of the account, and may make such repayment at any time within the period aforesaid, and in either case the repayment shall be made out of the aforesaid fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power ;

- (b) in the accounts of the county or burgh fund an amount equal to interest (calculated at such rate as may be determined by the authority to be equal as nearly as may be to the rate of interest which would be payable on a loan raised under the statutory borrowing power) on any moneys so used shall be credited to the account and debited to the branch of expenditure for the purpose for which the moneys are so used ;

PART VIII
—cont.

- (c) the statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power, and the provisions of any enactment as to the re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

PART IX

GENERAL

Scottish Housing Advisory Committee

Appointment,
functions, etc.,
of Scottish
Housing
Advisory
Committee.

143.—(1) The Secretary of State shall appoint a committee, to be called the Scottish Housing Advisory Committee, for the purpose of—

- (a) advising the Secretary of State on any matter, relating to a temporary increase of the permitted number of persons in relation to overcrowding, as respects which he is required by section fifty-one of this Act to consult the Committee ;
- (b) advising the Secretary of State on any question which may be referred by him to the Committee with respect to any other matter arising in connection with the execution of the enactments relating to housing ;
- (c) considering the operation of the enactments relating to housing and making to the Secretary of State such representations as the Committee think desirable concerning the execution of those enactments.

(2) The Secretary of State may by order make provision with respect to the constitution and procedure of the Committee, and any such order shall secure the inclusion in the Committee of women as well as men, and the appointment of two sub-committees of the Committee for the purpose of dealing with matters relating to urban and rural housing respectively.

(3) The Secretary of State may pay such expenses of the Committee as he may, with the approval of the Treasury, determine.

Rehousing

Rehousing
obligations
where land is
acquired under
statutory
provisions.

144. Where, under the powers given by any local Act or provisional order or order having the effect of an Act, not being an order made under this Act, any land is acquired, whether compulsorily or by agreement, by any authority, company or person, or where any land is so acquired compulsorily under any general Act other than this Act, the provisions set out in

the Twelfth Schedule to this Act shall apply with respect to the provision of housing accommodation.

PART IX
—cont.

Byelaws

145.—(1) A local authority may, and if required by the Secretary of State shall, make, with respect to houses used or intended to be used for human habitation, byelaws regarding any of the following matters and applying as follows, that is to say—

Byelaws with
respect to
houses.

(i) byelaws applying to new houses, regarding—

(a) the maximum number of houses to be erected on a given extent of ground ;

(b) the number of storeys in a block of flats and the arrangement of such blocks in relation to one another, and the provision, where necessary, of passenger lifts ;

(c) the provision of open spaces about houses ;

(d) stability ;

(e) the deafening of walls and floors ;

(f) the height of ceilings ;

(ii) byelaws applying to new houses and existing houses, regarding—

(g) the subdivision of houses ;

(h) the registration and inspection of houses ;

(iii) byelaws applying to new houses and, so far as is reasonably practicable, to existing houses, regarding—

(i) the provision of hand-rails for staircases ;

(j) the provision of suitable access ;

(k) the prevention of and safety from fire ;

(l) ventilation and admission of light ;

(m) the provision of a separate watercloset, bath, scullery, larder, adequate press accommodation, and accommodation for the storage of coal for each house, and facilities for washing and drying clothes, and for the cooking of food ;

(n) the lighting of rooms and staircases.

A byelaw made under paragraph (iii) of this subsection shall not, in so far as it requires the execution of works, be enforceable as regards an existing house, unless the local authority have served on the owner of the house a notice requiring the execution of the works and such notice has become operative in pursuance of section sixteen of this Act as applied by the next following subsection.

PART IX
—cont.

In this subsection the expression "existing house" means a house erected or in the course of erection at the time when such byelaws come into force or a house the plans for the erection of which have been approved at that time; the expression "new house" means a house other than as aforesaid; and the expression "reasonably practicable" means reasonably practicable in all the circumstances including the expense involved in carrying out the operations required by the byelaw.

(2) Section sixteen of this Act (which relates to appeals against certain notices and orders and to the date of coming into operation of such notices and orders) shall apply to a notice under the foregoing subsection in like manner as it applies to a notice under Part II of this Act.

(3) Byelaws made under this section by a local authority being a county council may be limited to particular parts of the authority's district or may make different provisions as respects different parts of their district.

(4) Where a local authority, after being required by the Secretary of State to make byelaws regarding any of the matters specified in subsection (1) of this section, fail within such period as the Secretary of State may specify to make, regarding those matters, byelaws which are in the opinion of the Secretary of State sufficient and satisfactory, the Secretary of State may himself make such byelaws, which shall be of the like force and effect as if they had been made by the local authority and confirmed.

Byelaws with
respect to
houses divided
into separate
dwellings.

146.—(1) The power of making and enforcing byelaws under section seventy-two of the Public Health (Scotland) Act, 1897, with respect to houses or parts of houses which are let in lodgings or occupied by members of more than one family, shall extend to the making and enforcing of byelaws imposing any duty (being a duty which may be imposed by the byelaws and which involves the execution of work) on the owner within the meaning of the said Act of the said house, in addition to or in substitution for any other person having an interest in the premises, and prescribing the circumstances and conditions in and subject to which any such duty is to be discharged.

(2) For the purpose of discharging any duty so imposed, the owner or other person may at all reasonable times enter upon any part of the premises, and section one hundred and sixty-one of this Act shall apply as if for the reference to the provisions of Part II of this Act there were substituted a reference to the provisions of such byelaws, and as if the person on whom such duty is imposed were the owner, and any inmate of the premises were the occupier of a house.

(3) Where an owner or other person has failed to execute any works which he has been required to execute under the byelaws, the local authority may, after giving to him not less than twenty-one days' notice in writing, themselves execute the works and recover the costs and expenses, and for that purpose the provisions of Part II of this Act with respect to the enforcement of notices requiring the execution of works and the recovery of expenses by local authorities shall apply, with such modifications as may be necessary.

PART IX
—cont.

147.—(1) A local authority shall make, with respect to bothies, chaumers and similar premises which are used for the accommodation of agricultural workers and are not part of a farmhouse, byelaws regarding any of the following matters, that is to say :—

Byelaws with respect to accommodation for agricultural workers.

- (a) the provision of a separate entrance in any case where the premises form part of other premises ;
- (b) the provision of ventilation, floor area and furnishing, including the provision of a separate bed and bedding for each worker ;
- (c) the provision of adequate heating and lighting ;
- (d) the provision of accommodation for personal clothing, and of facilities for personal ablution ;
- (e) the painting, whitewashing or other cleansing of the premises at regular intervals ;
- (f) the prevention of and safety from fire ;
- (g) intimation to the local authority by farmers of the number of workers employed by them who are accommodated in bothies or in chaumers or similar premises ;
- (h) the provision of a ventilated larder and a fireplace or stove suitable for cooking food and sufficient cooking utensils ;
- (i) such other matters as the Secretary of State may from time to time prescribe :

Provided that, if the local authority show to the satisfaction of the Secretary of State that it is unnecessary to make byelaws under this section, the Secretary of State may dispense with the making of such byelaws.

(2) Byelaws regarding the matters specified in paragraph (h) of the foregoing subsection shall apply only to premises in which the occupants cook their meals.

(3) Byelaws made by a local authority under this section may be limited to particular parts of the authority's district.

PART IX
—cont.

(4) Where a local authority fail within such period as the Secretary of State may allow to make with respect to any of the matters specified in subsection (1) of this section byelaws which are in the opinion of the Secretary of State sufficient and satisfactory, the Secretary of State may himself make such byelaws which shall be of the like force and effect as if they had been made by the local authority and confirmed.

**Byelaws with
respect to
accommoda-
tion for
seasonal
workers.**

148.—(1) With a view to the provision of proper accommodation for seasonal workers, a local authority shall make byelaws for the whole or any part of their district regarding the following matters, that is to say :—

- (a) intimation to the local authority of the intention to employ seasonal workers ;
- (b) the nature and extent of the accommodation to be provided for such workers, including due provision for—
 - (i) sleeping accommodation and separation of the sexes ;
 - (ii) lighting, ventilation, cubic space, cleanliness and furnishing, including beds and bedding and cooking utensils ;
 - (iii) storage of food, washing of clothes and drying of wet clothes ;
 - (iv) waterclosets or privies for the separate use of the sexes ; and
 - (v) a suitable supply of water ;
- (c) determining the persons responsible for the provision of the accommodation required by the byelaws, taking into account the terms of current contracts ;
- (d) inspection of the premises ;
- (e) exhibition on the premises of the byelaws ;
- (f) such other matters relating to the accommodation of seasonal workers (including determining the persons responsible for regulating the use by the workers of the accommodation), as the Secretary of State may from time to time prescribe :

Provided that, if the local authority show to the satisfaction of the Secretary of State that it is unnecessary to make byelaws under this section, the Secretary of State may dispense with the making of such byelaws.

(2) In cases of emergency, the Secretary of State may suspend, as respects the district of any local authority or any part thereof, the operation of any byelaw made under this section which affects agricultural interests.

PART IX
—cont.

(3) If in consequence of any byelaws made under this section a farmer or a fruit grower is required to provide accommodation involving the erection of additional buildings, he may require the landlord to erect such buildings on terms and conditions to be determined, failing agreement, by the Secretary of State.

(4) In this section the expression "seasonal workers" includes navvies, harvesters, potato-workers, fruit-pickers, herring-gutters, and such other workers engaged in work of a temporary nature, as the Secretary of State may from time to time prescribe.

(5) Where a local authority fail within such period as the Secretary of State may allow to make with respect to any of the matters specified in subsection (1) of this section byelaws which are in the opinion of the Secretary of State sufficient and satisfactory, the Secretary of State may himself make such byelaws which shall be of the like force and effect as if they had been made by the local authority and confirmed.

149. For the purposes of section three hundred and one of the Local Government (Scotland) Act, 1947 (which relates to the procedure and other matters connected with the making of byelaws) the Secretary of State shall be the person by whom byelaws made under this Act are to be confirmed. Confirmation of byelaws.

150.—(1) Where in pursuance of housing operations to which this section applies new buildings are constructed or public streets or roads are laid out and constructed in accordance with plans and specifications approved by the Secretary of State, the provisions of any building regulations shall not apply to the new buildings and new streets or roads constructed and laid out in connection with the operations so far as those provisions are inconsistent with the plans and specifications approved by the Secretary of State, and, notwithstanding the provisions of any other Act, any street or road laid out and constructed in accordance with such plans and specifications may be taken over and thereafter maintained by the authority responsible for the maintenance of public streets, roads or highways in the district. Relaxation of building regulations.

(2) Where the Secretary of State has approved plans and specifications which in certain respects are inconsistent with the provisions of any building regulations in force in the district in which the works are to be executed, any proposals for the erection therein of buildings and the laying out and construction of new streets or roads which do not form part of housing operations to which this section applies may, notwithstanding those provisions, be carried out if the local authority are, or, on appeal, the Secretary of State is, satisfied that they will involve departures from such provisions only to the like extent as in the case of the plans and specifications so approved.

PART IX
—cont.

(3) Where the Secretary of State is himself carrying out housing operations, it shall not be necessary for him to obtain the authority of the local authority or the Dean of Guild Court for the construction of buildings or for the laying out and construction of streets and roads as aforesaid.

(4) The housing operations to which this section applies are housing operations carried out by a local authority or by local authorities jointly under this Act or housing operations carried out by a housing association, or by a county council for the provision of houses for persons in their employment or paid by them, and approved by the Secretary of State, and housing operations carried out by the Secretary of State under this Act.

Power of
Secretary of
State to revoke
unreasonably
restrictive
byelaws.

151.—(1) If the Secretary of State is satisfied, by local inquiry or otherwise, that the erection of any buildings within any district is or is likely to be unreasonably impeded in consequence of any byelaws with respect to new streets or buildings in force therein, he may require the local authority to revoke such byelaws or to make such new byelaws as he may consider necessary for the removal of the impediment.

(2) If the local authority do not within three months after such requisition comply therewith, the Secretary of State may himself revoke such byelaws, and make such new byelaws as he may consider necessary for the removal of the impediment, and such new byelaws shall have effect as if they had been duly made by the local authority and confirmed.

Special provisions as to land

Duty of local
authority to
have regard to
amenities of
locality, etc.

152.—(1) A local authority, in preparing any proposals for the provision of houses or in taking any action under this Act, shall have regard to artistic quality in the lay-out, planning and treatment of the houses to be provided, the beauty of the landscape or countryside and the other amenities of the locality and the desirability of preserving existing works of architectural, historic or artistic interest, and shall comply with such directions, if any, in that behalf as may be given to them by the Secretary of State.

(2) For their better advice in carrying out the requirements of the foregoing subsection a local authority may, and if required by the Secretary of State shall, appoint a local advisory committee including representatives of architectural and other artistic interests; and the local authority shall furnish to the Secretary of State a copy of any representation, recommendation or report made to them by the committee.

153.—(1) Any purchase money or compensation payable in pursuance of this Act by a local authority in respect of any lands, right or interest of another local authority which would, but for this section, be paid into bank in manner provided by the Lands Clauses Acts may, if the Secretary of State consents, instead of being paid into bank, be paid and applied as the Secretary of State determines.

PART IX
—*cont.*

Payment of purchase or compensation money by one local authority to another.

(2) A determination of the Secretary of State under this section shall be final and conclusive.

154. Where—

(a) a local authority have sold or exchanged land acquired by them under this Act, and the purchaser of the land or the person taking the land in exchange has entered into an agreement with the local authority concerning the land ; or

(b) an owner of any land has entered into an agreement with the local authority concerning the land for the purposes of any of the provisions of this Act ;

Power of local authority to enforce obligations against owner for time being of land.

then, if the agreement has been recorded in the appropriate Register of Sasines, it shall be enforceable at the instance of the authority against persons deriving title from the person who entered into the agreement :

Provided that no such agreement shall at any time be enforceable against any party who has in bona fide onerously acquired right (whether completed by infestment or not) to the land prior to the recording of the agreement as aforesaid or against any person deriving title from such party.

155. Where a local authority in the exercise of any power conferred on them by this Act dispose of land to any person for the erection of a church or other building for religious worship or buildings ancillary thereto, then, unless the parties otherwise agree, such disposal shall be by way of feu.

Disposal of land for erection of churches, etc.

Official representations

156.—(1) Every representation made in pursuance of this Act by a medical officer of health shall be in writing.

Provisions as to official representations.

(2) The medical officer of health of a local authority shall make an official representation to the authority whenever he is of opinion that any house in their district is unfit for human habitation, or that any area in their district is an area which should be dealt with as a clearance area ; and if—

(a) any four or more local government electors of the district ; or

PART IX
—cont.

- (b) in the case of a county, the district council of any district within the county ; or
- (c) in the case of a small burgh within the meaning of the Local Government (Scotland) Act, 1947, the medical officer of health of the county ;

intimate in writing to the medical officer of health of the authority that any house is unfit for human habitation, or that any area should be dealt with as a clearance area, it shall be the duty of the medical officer of health of the authority forthwith to inspect that house or that area and to make a report to the local authority, stating the facts of the case and whether, in his opinion, the house is unfit for human habitation, or whether, in his opinion, the area should be dealt with as a clearance area ; but the absence of any such complaint shall not excuse him from inspecting any house or area and making a representation thereon to the local authority.

(3) Before making an official representation (other than such a representation for the purpose of section seven or section nine of this Act), the medical officer of health of a local authority shall consult with, or obtain a report from, the sanitary inspector of the authority.

(4) A local authority shall so soon as may be take into consideration any official representation which has been made to them.

Recovery of possession, entry, etc.

Recovery of
possession of
buildings
subject to
clearance,
demolition or
closing order,
etc.

157.—(1) Where a clearance order, a demolition order, a closing order or a resolution passed under section forty-six of this Act has become operative, the local authority shall serve on the occupier of any building or house or any part thereof to which the order or resolution relates a notice stating the effect of the order and specifying the date by which it requires the building or house to be vacated and requiring him to remove from the building or house before the said date or before the expiration of twenty-eight days from the service of the notice, whichever may be the later.

(2) If, at any time after the date on which a notice under the foregoing subsection requires the building or house to be vacated, any person is in occupation of the building or house or of any part thereof, the authority or any owner of the building or house may make summary application for removal and ejection to the sheriff, who, after requiring the service of such additional notice, if any, as he thinks fit, may grant warrant for ejection whereby vacant possession of the building or house or of the part thereof shall be given to the authority or owner as the case may be within such period, not being less than two weeks nor more than four weeks, as he may determine.

(3) Any expenses incurred by a local authority under this section in obtaining possession of any building or house, or part thereof, may be recovered by them from the owner of the building or house:

Provided that this subsection shall not have effect in the case of expenses incurred in obtaining possession of—

- (a) premises included in a clearance order which are not specified therein as being unfit for human habitation ; or
- (b) premises to which a resolution passed under section forty-six of this Act applies ; or
- (c) any other premises unless the owner has failed to make, within a reasonable time, a summary application for removal and ejection to the sheriff, or, having made such an application, has failed to take all steps necessary to have the application disposed of within a reasonable time.

(4) Any person who, knowing that a clearance order or a demolition order or a resolution passed under section forty-six of this Act has become operative and applies to any building or house, enters into occupation of that building or house or of any part thereof after the date by which the order requires that building or house to be vacated, or permits any other person to enter into such occupation after that date, shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds and to a further penalty of five pounds for every day, or part of a day, on which the occupation continues after conviction.

158. Nothing in the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, shall be deemed to affect the provisions of this Act relating to obtaining possession of a house with respect to which a clearance order, a demolition order or a closing order has been made or to which a resolution passed under section forty-six of this Act applies, or to prevent possession being obtained—

- (a) of any house possession of which is required for the purpose of enabling a local authority to exercise their powers under any enactment relating to housing ;
- (b) of any house possession of which is required for the purpose of securing compliance with any byelaws made for the prevention of overcrowding ;
- (c) of any premises by any owner thereof in a case where an undertaking has been given under Part II of this Act that those premises shall not be used for human habitation.

PART IX
—*cont.***Power of entry
for survey, etc.**

159. Any person authorised in writing, stating the particular purpose or purposes for which the entry is authorised, by the local authority or the Secretary of State may at all reasonable times, on giving twenty-four hours' notice to the occupier and to the owner, if the owner is known, of his intention, enter any house, premises or building—

- (a) for the purpose of survey or valuation, in the case of houses, premises or buildings which the local authority are authorised to purchase compulsorily under this Act ; or
- (b) for the purpose of survey and examination, in the case of any house in respect of which a notice requiring the execution of works has been served or a clearance order, a demolition order or a closing order has been made ; or
- (c) for the purpose of survey and examination, where it appears to the local authority or the Secretary of State that survey or examination is necessary in order to determine whether any powers under this Act should be exercised in respect of any house, premises, or building ; or
- (d) for the purpose of measuring the rooms of a house in order to ascertain for the purposes of Part IV of this Act the number of persons permitted to use the house for sleeping.

**Penalty for
obstructing the
execution of
Act.**

160. If any person obstructs the medical officer of health or any officer of the local authority or any officer of the Secretary of State or any person authorised to enter houses, premises or buildings in pursuance of this Act in the performance of anything which such officer, local authority or person is by this Act required or authorised to do, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds.

**Penalty for
preventing
execution of
repairs.**

161.—(1) If any person, after notice of the intended action—

- (a) being the occupier of any premises prevents the owner or other person having control thereof, or his officers, agents, servants or workmen, from carrying into effect with respect to those premises any of the provisions of Part II of this Act ; or
- (b) being the owner or occupier of any premises prevents the medical officer of health or any officers, agents, servants or workmen of such officer or of the local authority from so doing ;

the sheriff or any two justices of the peace sitting in open court or any magistrate having jurisdiction in the place on proof

thereof may order that person to permit to be done on the premises all things requisite for carrying into effect such provisions with respect to the premises.

PART IX
—cont.

(2) If any such person fails to comply with such an order, he shall be guilty of an offence and shall for each day during which the failure continues be liable on summary conviction to a fine not exceeding twenty pounds.

162. Any person who wilfully or by culpable negligence damages or suffers to be damaged any house provided under this Act, or any of the fittings or appurtenances of any such house, including the drainage and water supply and any apparatus connected with the drainage or water supply, and the fence of any enclosure, shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding forty shillings, without prejudice to any remedy for the recovery of the amount of the damage. Penalty for damage to houses.

Powers of sheriff for housing purposes

163.—(1) Where any premises in respect of which a clearance order, a demolition order, a closing order made under section thirteen of this Act or a resolution passed under section forty-six thereof has become operative form the subject matter of a lease, and the action taken under the order or resolution has not had the effect of determining the lease, either the landlord or the tenant or any other person deriving right thereunder may apply to the sheriff within whose jurisdiction the premises are situate for an order determining the lease. Power of sheriff to determine lease in certain cases.

(2) On any such application as aforesaid the sheriff, after giving to any sub-tenant or other person whom he considers to be interested in the matter an opportunity of being heard, may, if he thinks fit, order that the lease shall be determined, either unconditionally or subject to such terms and conditions (including conditions with respect to the payment of money by any party to the proceedings to any other party thereto by way of compensation or damages or otherwise) as he may think it just and equitable to impose, regard being had to the respective rights, obligations and liabilities of the parties under the lease and all the other circumstances of the case:

Provided that the sheriff shall not be entitled to order any payment to be made by the landlord to the tenant in respect of the lease of a house.

(3) In this section the expression "lease" includes a sub-lease and any tenancy or tacit relocation following on a lease.

PART IX
—cont.

Power of
sheriff to
authorise
superior to
execute works.

164.—(1) If it appears to the sheriff, on the application of the superior of any lands and heritages, that default is being made in the execution of any works required to be executed on any premises thereon in respect of which a notice requiring the execution of works has been served or a closing order has been made, or in the demolition of a building thereon, in pursuance of this Act, and that the interests of the applicant will be prejudiced by such default and that it is just to make the order, the sheriff may make an order empowering the applicant forthwith to enter on the lands and heritages and, within the time fixed by the order, to execute the works or to demolish the building, as the case may be.

(2) Before an order is made under this section notice of the application shall be given to the local authority.

Power of
sheriff to
authorise
conversion of
a house into
two or more
dwellings.

165.—(1) Where, on an application by the local authority or by the feuar or the lessee of a house, it is proved to the satisfaction of the sheriff—

- (a) that, owing to changes in the character of the neighbourhood in which the house is situate, the house cannot readily be let as a single dwelling but could be readily let if converted into two or more dwellings ; or
- (b) that planning permission has been granted under Part II of the Town and Country Planning (Scotland) Act, 1947, for the conversion of a house previously used as a single dwelling into two or more dwellings ; and
- (c) (in either case) that the conditions or restrictions of the feu charter or feu contract or the provisions of the lease do not admit of such conversion ;

the sheriff, after giving any person entitled to any interest in the house or entitled to enforce such condition, restriction or provision an opportunity of being heard, may vary the conditions or restrictions of the feu charter or feu contract or the provisions of the lease so as to enable the house to be so converted, subject to such conditions and upon such terms as the sheriff may think just ; and the decision of the sheriff shall be final.

(2) In this section the expression “ sheriff ” shall not include sheriff-substitute.

Procedure on
appeals to
sheriff.

166.—(1) The procedure on any appeal to the sheriff under this Act (including expenses) shall be such as the Court of Session may by act of sederunt determine.

(2) On any appeal to the sheriff under this Act the sheriff may make such order in the matter as he thinks equitable, and any order so made shall be binding and conclusive on all parties, and, where the appeal is against any notice or order given or

made by the local authority, the notice or order may be confirmed, varied or quashed, as the sheriff thinks just:

PART IX
—cont.

Provided that the sheriff may at any stage of the proceedings on appeal, and shall, if so directed by the Court of Session, state a case for the opinion of the Court on any question of law arising in the course of the appeal.

(3) Any notice or order as respects which an appeal to the sheriff is given under this Act shall not become operative until either the time within which an appeal can be made under this Act has elapsed without an appeal being made, or, in a case where an appeal is made, the appeal is determined or abandoned, and no work shall be done or proceedings taken under any such notice or order until it becomes operative.

(4) The sheriff may, before considering any appeal which may be made to him under this Act, require the appellant to deposit such sum to cover the expenses of the appeal as may be fixed by the act of sederunt made by the Court of Session in pursuance of subsection (1) of this section.

(5) The power of the Court of Session to make acts of sederunt under this section shall be exercisable by statutory instrument, and the Statutory Instruments Act, 1946, shall apply to a statutory instrument containing an act of sederunt so made by the Court in like manner as if the act of sederunt had been made by a Minister of the Crown.

Orders, notices, etc.

167.—(1) An order in writing made by a local authority under this Act shall be under their seal and authenticated by the signature of their clerk or, where the local authority have not a seal, shall be authenticated by the signature of any two or more members of the local authority and of their clerk.

Orders, notices,
etc., by local
authority.

(2) A notice, demand or other written document proceeding from a local authority under this Act shall be signed by their clerk.

168.—(1) A local authority may, for the purpose of enabling them to serve any notice which they are by this Act authorised or required to serve, require the occupier of any premises and any person who, either directly or indirectly, receives rent in respect of any premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest therein whether as holder of a heritable security, lessee or otherwise.

Furnishing of
information
for purpose of
service of
notices.

(2) If any person, having been required by a local authority in pursuance of the foregoing subsection to give to them any information, fails to give that information or knowingly makes any misstatement in respect thereof, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding five pounds.

PART IX
—cont.

Power of
Secretary of
State in event
of failure of
local authority
to exercise
powers.

Default of local authority

169.—(1) Subject to the provisions of this section, in any case where—

(a) a complaint has been made to the Secretary of State—

(i) as respects any district, by any four or more local government electors of the district, or

(ii) as respects any county, by the district council of any district within the county,

that the local authority have failed to exercise any of their powers under this Act in any case where those powers ought to have been exercised; or

(b) the Secretary of State is of opinion that an investigation should be made as to whether a local authority have failed as aforesaid;

the Secretary of State may cause a public local inquiry to be held, and if, after the inquiry has been held, he is satisfied that there has been such a failure on the part of the local authority, he may, after giving the local authority an opportunity of making representations, make an order rendering exercisable by the Secretary of State such of the aforesaid powers of the local authority as may be specified in the order.

(2) Subsection (1) of section one hundred and forty-six of the Public Health (Scotland) Act, 1897 (which relates to the procedure competent in the event of the neglect of their duties by a local authority) shall have effect as if the duties imposed by section five of this Act were duties imposed by the first-mentioned Act.

(3) Where the Secretary of State, after having caused a public local inquiry to be held in pursuance of subsection (1) of this section, is satisfied that the local authority have failed to exercise any of their powers under Part V of this Act to provide housing accommodation for persons who are members of the agricultural population in a case where those powers ought to have been exercised, the Secretary of State may, before making such an order as is mentioned in the said subsection (1), make an order declaring the local authority to be in default and directing the authority to exercise for the purpose of remedying the default such of their said powers, and in such manner, and within such time or times, as may be specified in the order; and if the local authority fail to comply with any requirement of the order within the time limited thereby for compliance with that requirement, the Secretary of State may make such an order as is mentioned in the said subsection (1).

170.—(1) The following provisions of this section shall have effect in any case where under this Act the Secretary of State has by order rendered exercisable by himself any powers of a local authority.

(2) Any expenses incurred by the Secretary of State in exercising the said powers shall be paid in the first instance out of moneys provided by Parliament, but the amount of those expenses as certified by the Secretary of State shall on demand be paid by the local authority to the Secretary of State, and shall be recoverable as a debt due to the Crown.

(3) The payment of any such expenses as aforesaid, so far as the expenses are of a capital nature, shall be a purpose for which a local authority may borrow money.

(4) The Secretary of State may by order vest in and transfer to the local authority any property, debts or liabilities acquired or incurred by him in exercising the powers of the local authority, and that property and those debts and liabilities shall vest and attach accordingly.

General powers of the Secretary of State

171.—(1) Any order made by the Secretary of State under this Act may be varied or revoked by a subsequent order made by the Secretary of State, but without prejudice to the validity of anything previously done under the order.

PART IX
—*cont.*
Provisions as to exercise by Secretary of State of powers of a local authority.

Power to vary and revoke orders.

(2) When an order rendering any powers or duties of a local authority exercisable by the Secretary of State is revoked under the foregoing subsection, the Secretary of State may, either by the revoking order or by a supplementary order, make such provision as appears to him desirable with respect to the transfer, vesting and discharge of any property, debts or liabilities acquired or incurred by the Secretary of State in exercising the powers and duties to which the order so revoked related.

172.—(1) The Secretary of State may make regulations prescribing—

- (a) the form of any notice, advertisement, statement or other document which is required or authorised to be used under or for the purposes of this Act ;
- (b) any other thing which by this Act is required or authorised to be prescribed.

Power to prescribe forms, etc., and to dispense with advertisements and notices.

(2) The forms so prescribed or forms as near thereto as circumstances admit shall be used in all cases to which those forms are applicable.

(3) The Secretary of State may dispense with the publication of advertisements or the service of notices required to be published or served by a local authority under this Act, if he is satisfied that there is reasonable cause for dispensing with the publication or service.

PART IX
—*cont.*

(4) Any such dispensation may be given by the Secretary of State either before or after the time at which the advertisement is required to be published or the notice is required to be served, and either unconditionally or upon such conditions as to the publication of other advertisements or the service of other notices or otherwise as the Secretary of State thinks fit, due care being taken by the Secretary of State to prevent the interests of any person being prejudiced by the dispensation.

Regulations.

173.—(1) Any power to make regulations conferred on the Secretary of State by this Act shall be exercisable by statutory instrument.

(2) Any statutory instrument made in the exercise of any power to make regulations conferred by this Act shall be subject to annulment in pursuance of resolution of either House of Parliament.

Local inquiries.

174.—(1) For the purposes of the execution of his powers and duties under this Act, the Secretary of State may cause such local inquiries to be held as he may think fit.

(2) Where, under this Act, the Secretary of State is required to cause a public local inquiry to be held, then, subject to the provisions of subsection (4) of section thirty-three of this Act, the person to be appointed by the Secretary of State to hold the inquiry shall be selected from a panel set up by the Lord President of the Court of Session, the Lord Justice Clerk, and the Chairman of the Scottish Committee of the Royal Institution of Chartered Surveyors, in consultation with the Secretary of State.

**Power of
Secretary of
State to obtain
a report on any
crowded area.**

175. If it appears to the Secretary of State that owing to density of population or any other reason it is expedient to inquire into the circumstances of any area with a view to determining whether any powers under this Act should be put into force in that area or not, the Secretary of State may require the local authority to make a report to him containing such particulars as to the population of the district and other matters as he may direct, and the local authority shall comply with the requirement of the Secretary of State, and any expenses incurred by them in so doing shall be paid as expenses incurred in the execution of such Part of this Act as the Secretary of State may determine.

**Arrangements
between the
Secretary of
State and other
departments.**

176. The Secretary of State may make arrangements with any other government department for the exercise or performance by that department of any of his powers and duties under this Act, which, in his opinion, could more conveniently be so exercised or performed, and in such case that department and the officers thereof shall have the same powers and duties as are by this Act conferred on the Secretary of State and his officers.

*Miscellaneous*PART IX
—cont.

177. Without prejudice to any powers, whether statutory or otherwise, already enjoyed by an heir of entail in possession of an entailed estate in Scotland to sell or grant feus of any part of such estate, any such heir in possession may, notwithstanding any prohibition or limitation in any deed of entail or in any Act of Parliament, sell or feu to a local authority any part or parts of such estate for any purpose for which a local authority may acquire land under this Act, or to a housing association for the purpose of the provision of houses, without its being necessary to obtain the consent of the next heir, and without any restriction as to the extent of ground to be sold or feued, excepting, however, from the provisions of this section, the subjects excepted in section four of the Entail (Scotland) Act, 1914:

Power of heir of entail to sell or feu land for housing purposes.

Provided that—

- (a) the price of land so sold shall, in accordance with the provisions of the Entail Acts, be invested for behoof of the heir of entail in possession and succeeding heirs of entail, and the feuduty shall be received for the same behoof ; and
- (b) it shall not be lawful for the heir of entail in possession to take any grassum or valuable consideration other than the feuduty for granting any such feu.

178. For the purposes of any enactment relating to valuation or rating, the gross annual value of any house provided by the Scottish Special Housing Association under section ninety-three of this Act, or of any house which is owned by a housing association and which is subject to special conditions under the Housing (Financial Provisions) Act, 1924, or in respect of which a contribution out of moneys provided by Parliament is payable under the Housing (Scotland) Act, 1930, the Housing (Scotland) Act, 1935, the Housing (Agricultural Population) (Scotland) Act, 1938, the Housing (Financial Provisions) (Scotland) Act, 1938, or this Act, shall not exceed—

Valuation of houses provided by Scottish Special Housing Association or owned by housing associations.

- (a) the rent (exclusive of occupier's rates) which would have been fixed by the local authority if the house had been a house to which section seventy-three of this Act applied owned by the local authority and occupied by a tenant to whom no rebate from rent has been granted ; or
- (b) the rent (exclusive of occupier's rates) charged in respect of the house ;

whichever is the greater.

PART IX
—cont.

Application of
Local
Government
Super-
annuation
(Scotland) Act,
1937, to
Scottish Special
Housing
Association.

179. The provisions of Part I of the Local Government Superannuation (Scotland) Act, 1937, shall, subject to adaptations and modifications prescribed by the Secretary of State, have effect in relation to the Scottish Special Housing Association as if they were a local authority required to maintain a superannuation fund under Part I of that Act, and in relation to any employee of the Association as if the Association were a local authority within the meaning of that Act, not being either a local authority specified in Part I of the First Schedule thereto or a local Act authority within the meaning of that Act.

Provisions
relating to
houses of
less than
three rooms.

180. It shall not be lawful for any person, without the consent of the local authority, to erect any house intended for human habitation with less accommodation than three apartments, and a local authority shall not give such consent save in exceptional circumstances, nor shall a local authority or Dean of Guild Court, save in such circumstances, approve of the plans for the erection of such a house.

Fair wages.

181. It shall be the duty of every local authority by whom housing accommodation is provided under the enactments relating to housing, whether with or without financial assistance from the Government, to secure the insertion in all contracts relating to such provision of a fair wages clause, complying with the requirements of any resolution of the Commons House of Parliament for the time being in force with respect to contracts of government departments.

Crown rights.

182. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown, or authorise the use of or interference with any land (including tidal lands below high-water mark of ordinary spring tides) belonging to His Majesty in right of his Crown or to any government department, without the consent of His Majesty or the government department, as the case may be.

PART X
SUPPLEMENTAL

Powers of Act
to be
cumulative.

183. All powers given by this Act shall be deemed to be in addition to and not in derogation of any other powers conferred by Act of Parliament, law or custom, and such other powers may be exercised in the same manner as if this Act had not passed, and nothing in this Act shall exempt any person from any penalty to which he would have been subject if this Act had not passed:

Provided that a local authority shall not, by reason of any local Act relating to a place within its jurisdiction, be exempted from the performance of any duty or obligation to which such authority are subject under any Part of this Act.

184.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

PART X
—cont.
Interpretation.

“agricultural population” means—

(a) in relation to persons resident within a large burgh, persons who are engaged in agriculture, and includes the dependants of such persons; and

(b) in relation to persons resident outside a large burgh, persons who are, or in their latest occupation were, engaged in agriculture or in an industry mainly dependent on agriculture, and includes the dependants of such persons;

“agriculture” means the use of land for agricultural or pastoral purposes, or for the purpose of poultry farming or market gardening, or as an orchard or woodlands, or for the purpose of afforestation, and “agricultural worker” shall be construed accordingly;

“apartment” does not include any apartment not designed for use as a living-room or as a bedroom;

“apparatus” means sewers, drains, culverts, water-courses, mains, pipes, valves, tubes, cables, wires, transformers and other apparatus laid down or used for or in connection with the carrying, conveying or supplying to any premises of a supply of water, water for hydraulic power, gas or electricity, and standards and brackets carrying street lamps;

“block of flats” means a building which contains two or more flats and which consists of three or more storeys exclusive of any storey which is constructed for use for purposes other than those of a dwelling:

Provided that a building shall, notwithstanding that it does not in all parts exceed two storeys in height, be deemed to be a building of three storeys, if the Secretary of State is satisfied that for architectural or other reasons it is desirable to confine the height of part of the building to two storeys;

“building regulations” means any statutory enactments, byelaws, rules and regulations or other provisions under whatever authority made, relating to the construction of new buildings and the laying out of and construction of new streets or roads;

“burgh” has the like meaning as in the Local Government (Scotland) Act, 1947;

“common” includes any town or village green;

PART X
—*cont.*

- “development corporation” means a corporation established by an order under section two of the New Towns Act, 1946, by the Secretary of State ;
- “district”, in relation to a local authority, has the meaning assigned to it by section one of this Act ;
- “Exchequer contribution” means a contribution which the Secretary of State is required or authorised to make to a local authority out of moneys provided by Parliament under any of the enactments specified in Part I of the Sixth Schedule to this Act ;
- “flat” means a separate and self-contained set of premises constructed for use for the purposes of a dwelling and forming part of a building from some other part of which it is divided horizontally ;
- “Highlands and Islands” means the area comprising the counties of Argyll, Caithness, Inverness, Ross and Cromarty, Sutherland, Orkney and Zetland, but excluding any large burgh ;
- “holding” has the like meaning as in the Small Landholders (Scotland) Acts, 1886 to 1931 ;
- “house” includes any part of a building, being a part which is occupied or intended to be occupied as a separate dwelling, and, in particular, includes a flat, and includes also any yard, garden, out-houses and pertinents belonging to the house or usually enjoyed therewith ;
- “housing association” means any society, body of trustees or company established for the purpose of, or amongst whose objects or powers are included those of, constructing, improving or managing, or facilitating or encouraging the construction or improvement of, housing accommodation, being a society, company or body of trustees who do not trade for profit or whose constitution or rules prohibit the issue of any capital with interest or dividend exceeding the rate for the time being fixed by the Treasury, whether with or without differentiation as between share and loan capital ;
- “land” includes any right over land ;
- “Lands Tribunal” means the Lands Tribunal for Scotland ;
- “landholder” has the like meaning as in the Small Landholders (Scotland) Acts, 1886 to 1931 ;
- “large burgh” has the like meaning as in the Local Government (Scotland) Act, 1947 ;

“loan charges” means, in relation to any borrowed moneys, the sums required for the payment of interest on those moneys and for the repayment thereof either by instalments or by means of a sinking fund ;

“local bonds” has the meaning assigned to it by section one hundred and thirty-six of this Act ;

“official representation” means, in the case of a local authority, a representation made to the authority by the medical officer of health for the district ;

“open space” means any land laid out as a public garden or used for the purposes of public recreation, and any disused burial ground ;

“owner” includes any person who under the Lands Clauses Acts would be enabled to sell and convey land to the promoters of an undertaking ;

“prescribed” means prescribed by regulations ;

“public undertakers” means any corporation, company, body or person carrying on a railway, canal, inland navigation, dock, harbour, tramway, gas, electricity, water or other public undertaking ;

“sanitary defects” includes lack of air space or of ventilation, darkness, dampness, absence of adequate and readily accessible water supply or of sanitary arrangements or of other conveniences, and inadequate paving or drainage of courts, yards or passages ;

“sell” and “sale” include feu ;

“statutory small tenant” has the like meaning as in the Small Landholders (Scotland) Acts, 1886 to 1931 ;

“street” includes any court, alley, passage, square or row of houses whether a thoroughfare or not ;

“superior” includes the creditor in a ground annual.

(2) In determining for the purposes of this Act whether a house is fit for human habitation, regard shall be had to the extent, if any, to which by reason of disrepair or sanitary defects the house falls short of the provisions of any building regulations in operation in the district.

(3) In this Act any reference to the demolition of a building shall be deemed to include a reference to such reconstruction of the building as the Secretary of State may approve ; and where a building is so reconstructed any reference to selling, letting or appropriating the land, the building on which has been or will be demolished, shall, unless the context otherwise requires, be construed as a reference to selling, letting or appropriating the land and the reconstructed building.

PART X**—cont.****Transitory
provisions.**

185.—(1) Any dispute which by this Act is directed to be determined by the Lands Tribunal shall, in the period before the coming into force of sections one to four of the Lands Tribunal Act, 1949, in Scotland, be determined by an official arbiter appointed under section one of the Acquisition of Land (Assessment of Compensation) Act, 1919; and accordingly during the said period there shall be substituted for references in any provision (other than this section) of this Act to the Lands Tribunal references to an arbiter appointed as aforesaid.

(2) In relation to a dispute arising under subsection (3) of section forty-four of this Act, the foregoing subsection shall have effect as if after the word “determined”, in the second place where that word occurs, there were inserted the words “unless the local authority and the undertakers otherwise agree”, and an official arbiter acting in such a dispute shall have the like powers in respect of procedure, costs and the statement of cases as he has under the aforesaid Act of 1919.

Savings.

186.—(1) Nothing in this Act shall affect any order, byelaw, rule, regulation, scheme or plan made, charge effected, undertaking, notice, approval, certificate, direction or determination given, or other thing done, under any enactment repealed by this Act or by the Housing (Scotland) Act, 1925, but any such order, byelaw, rule, regulation, scheme, plan, charge, undertaking, notice, approval, certificate, direction, determination or thing shall, if in force at the commencement of this Act, continue in force and shall, so far as it could have been made, effected, given or done under this Act, have effect as if made, effected, given or done under the corresponding provision of this Act.

(2) In this Act the expression “under this Act”, whether in relation to any land, houses or other property acquired, or to any contribution or to any housing or other operations, or in relation to any other matter or thing made, given, effected or done, or right acquired, or obligation incurred, and any other expression describing any matter or thing by reference to this Act or to any enactment in this Act, shall be construed as including a reference to any Act repealed by this Act or by the Housing (Scotland) Act, 1925, or to the corresponding provision of any Act so repealed.

(3) Any byelaws made under any enactment repealed by the Housing (Scotland) Act, 1935, shall, if in force at the commencement of this Act, continue to have effect in so far as they could have been made under section one hundred and forty-five of this Act.

(4) Any document referring to any enactment repealed by this Act or by the Housing (Scotland) Act, 1925, shall be construed as referring to the corresponding provision of this Act.

(5) Any person holding office or acting or serving under or by virtue of any enactment repealed by this Act or by the Housing (Scotland) Act, 1925, shall continue to hold his office or to act or serve as if he had been appointed under this Act.

PART X
—cont.

(6) Nothing in this section shall be taken to prejudice the provisions of section thirty-eight of the Interpretation Act, 1889.

187.—(1) Subject to the provisions of this section, the enactments mentioned in the Thirteenth Schedule to this Act are hereby repealed, in the case of the enactments specified in Part I of that Schedule as from the commencement of this Act, and in the case of the enactments specified in Part II of that Schedule as from the appointed day within the meaning of Part IV of this Act, to the extent specified in relation thereto in the third column of that Schedule. Repeals.

(2) The provisions of this Act shall not apply in relation to any undertaking given before the thirtieth day of July, nineteen hundred and forty-nine, under section seventy-four or seventy-five of the Housing (Scotland) Act, 1925, or any redevelopment plan approved under Part I of the Housing (Scotland) Act, 1935, before that date, and in lieu thereof the enactments specified in the Thirteenth Schedule to this Act so far as relating to any such undertaking and to any such plan shall continue to apply and shall accordingly be excepted from the operation of this section.

188.—(1) This Act may be cited as the Housing (Scotland) Act, 1950. Short title,
commence-
ment and
extent.

(2) This Act shall come into force on the first day of January, nineteen hundred and fifty-one.

(3) This Act shall extend to Scotland only.

SCHEDULES

FIRST SCHEDULE

Section 26.

CLEARANCE ORDERS

1. A clearance order shall be in the prescribed form and shall describe by reference to a map the area to which it applies, and shall fix by reference to the date of its coming into operation the period, not being less than twenty-eight days from that date, within which the local authority require the buildings in the area to be vacated for the purposes of demolition, and for that purpose may fix different periods as respects different buildings.

1ST SCH.
—cont.

2. There shall be excluded from the order any houses or other premises properly included in the clearance area only on the ground that by reason of their bad arrangement in relation to other buildings or the narrowness or bad arrangement of the streets they are injurious or dangerous to the health of the inhabitants of the area.

3. The order shall show separately in the prescribed manner the houses which are unfit for human habitation.

4. Before submitting the order to the Secretary of State the local authority shall—

- (a) publish in one or more newspapers circulating in their district a notice in the prescribed form stating that the order has been made, describing the area comprised therein and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours ; and
- (b) serve on every owner, lessee and occupier (except tenants for a month or a less period than a month) of any building to which the order applies a notice in the prescribed form stating the effect of the order and that it is about to be submitted to the Secretary of State for confirmation, and specifying the time within and the manner in which objections thereto can be made.

5. So soon as may be after the required notices have been given, the local authority shall submit the order to the Secretary of State for confirmation.

6. If no objection is duly made by any of the persons on whom notices are required to be served under paragraph 4 of this Schedule or by the superior of, or by the holder of a heritable security over, any building to which the order applies, or if all objections so made are withdrawn, the Secretary of State may, if he thinks fit, confirm the order with or without modification ; but in any other case he shall, before confirming the order, cause a public local inquiry to be held and shall consider any objection not withdrawn and the report of the person who held the inquiry, and may then confirm the order, either with or without modification :

Provided that—

- (a) the order as confirmed by the Secretary of State shall not apply to any building to which the order would not have applied if it had been confirmed without modification ;
- (b) if the Secretary of State is of opinion that any building included in the order ought not to have been so included but should be included in a compulsory purchase order relating to the clearance area, he may modify the clearance order by excluding therefrom such building and may authorise the local authority to make and submit to him

for confirmation in accordance with the provisions of Part III of this Act a compulsory purchase order with respect to such building ;

1st Sch.
—cont.

- (c) before confirming the order the Secretary of State shall send to the local authority and to every person who, having given notice to the Secretary of State of his objection to the order, appeared at the public local inquiry in support of his objection, a copy of the order as proposed to be confirmed, with an intimation that any representations in writing with respect thereto may be made to the Secretary of State within fourteen days after the date on which a copy has been sent, and before confirming the order the Secretary of State shall consider any such representations received.

SECOND SCHEDULE

Sections 26, 29.

VALIDITY AND DATE OF OPERATION OF CERTAIN ORDERS

1. So soon as may be after an order has been confirmed by the Secretary of State, the local authority shall publish in a newspaper circulating in their district a notice in the prescribed form stating that the order has been confirmed and naming a place where a copy of the order as confirmed and of the map referred to therein may be seen at all reasonable hours, and shall serve a like notice on every person who, having given notice to the Secretary of State of his objection to the order, appeared at the public local inquiry in support of his objection.

2. If any person aggrieved by an order desires to question its validity on the ground that it is not within the powers of this Act, or that any requirement of this Act has not been complied with, he may, within thirty days after the publication of the notice of confirmation, make an application for the purpose to the Court of Session, in the form and under the procedure provided by act of sederunt, so, however, that the application shall be dealt with in a summary manner, and where such application is duly made the Court—

- (a) may by interim order suspend the operation of the order either generally or in so far as it affects any property of the applicant until the final determination of the proceedings ; and
- (b) if satisfied, on the hearing of the application, that the order is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act not having been complied with, may set aside the order either generally, or in so far as it affects any property of the applicant, or do otherwise as shall appear to the Court to be just.

3. Subject to the provisions of the last foregoing paragraph an order shall not, either before or after its confirmation, be questioned by reduction or interdict or in any legal proceedings whatsoever,

2ND SCH.
—cont.

and shall become operative at the expiration of thirty days from the date on which notice of its confirmation is published in accordance with paragraph 1 of this Schedule.

4. Except by leave of the Court of Session, no appeal shall lie to the House of Lords from a decision of the Court of Session in proceedings under this section.

5. So soon as may be after an order has become operative, the local authority shall serve a copy thereof on every person on whom a notice was served by them of their intention to submit the order to the Secretary of State for confirmation.

Section 29.

THIRD SCHEDULE

COMPULSORY PURCHASE ORDERS MADE UNDER PART III

1. A compulsory purchase order shall be in the prescribed form and shall describe by reference to a map the land to which it will apply, and shall incorporate, subject to the modifications hereinafter mentioned and any necessary adaptations—

- (a) the Lands Clauses Acts (except sections one hundred and twenty to one hundred and twenty-five of the Lands Clauses Consolidation (Scotland) Act, 1845);
- (b) the Acquisition of Land (Assessment of Compensation) Act, 1919; and
- (c) section seventy of the Railways Clauses Consolidation (Scotland) Act, 1845, and sections seventy-one to seventy-eight of that Act as originally enacted and not as amended for certain purposes by section fifteen of the Mines (Working Facilities and Support) Act, 1923.

2. The modifications subject to which the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act, 1919, shall be incorporated in the order are as follows:—

- (i) the compensation shall be assessed in accordance with such of the provisions of this Act relating to the assessment of compensation in respect of land purchased compulsorily as are applicable to the particular case;
- (ii) the Lands Tribunal shall not take into account any building erected, or any improvement or alteration made, or any interest in land created after the date of the publication of the compulsory purchase order if, in their opinion, the erection of the building, or the making of the improvement or alteration, or the creation of the interest in respect of which a claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation;
- (iii) all notices required to be served by the local authority may, notwithstanding anything in section eighteen of the

Lands Clauses Consolidation (Scotland) Act, 1845, be served in the manner specified in subsection (3) of section five of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, in relation to notices required to be served under that Act; and

3RD SCH.
—cont.

- (iv) notwithstanding anything in section ninety of the Lands Clauses Consolidation (Scotland) Act, 1845, the Lands Tribunal may determine that such part of any house, building or manufactory as is proposed to be taken by the local authority can be taken without material damage to the house, building or manufactory, and, if they so determine, may award compensation in respect of the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the party interested shall be required to sell and convey to the local authority that part of the house, building or manufactory.

3. The order shall show separately in the prescribed manner the houses in the clearance area which are unfit for human habitation and the land and buildings, if any, proposed to be purchased outside the area.

4. Before submitting the order to the Secretary of State the local authority shall—

- (a) publish in one or more newspapers circulating within their district a notice in the prescribed form stating that the order has been made, describing the area comprised therein and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours; and
- (b) serve on every owner, lessee and occupier (except tenants for a month or a less period than a month) of any land or buildings to which the order applies a notice in the prescribed form stating the effect of the order and that it is about to be submitted to the Secretary of State for confirmation, and specifying the time within and the manner in which objections thereto can be made.

5. If no objection is duly made by any of the persons on whom notices are required to be served under the last foregoing paragraph or by the superior of, or the holder of a heritable security over, any land or buildings to which the order applies, or if all objections so made are withdrawn, the Secretary of State may, if he thinks fit, confirm the order with or without modification, but in any other case he shall, before confirming the order, cause a public local inquiry to be held, and shall consider any objection not withdrawn and the report of the person who held the inquiry, and may then confirm the order either with or without modification:

Provided that the Secretary of State may require any person who has made an objection to state in writing the grounds thereof and

3RD SCH.
—cont.

may confirm the order without causing a public local inquiry to be held if the Secretary of State is satisfied that every objection duly made relates exclusively to matters which can be dealt with by the Lands Tribunal, by whom the compensation is to be assessed.

6. The order as confirmed by the Secretary of State shall not authorise the local authority to purchase compulsorily any land which the order would not have authorised them so to purchase if it had been confirmed without modification, or to purchase any building on less favourable terms with respect to compensation than the terms on which the order would have authorised them to purchase the building if the order had been confirmed without modification.

7. If the Secretary of State is of opinion that any land included by a local authority in a clearance area ought not to have been so included he shall on confirming the order so modify it as to exclude that land for all purposes from the clearance area.

8. Before confirming the order the Secretary of State shall send to the local authority and to every person who, having given notice to the Secretary of State of his objection to the order, appeared at the public local inquiry in support of his objection, a copy of the order as proposed to be confirmed, with an intimation that any representations in writing with respect thereto may be made to the Secretary of State within fourteen days after the date on which a copy has been sent, and before confirming the order the Secretary of State shall consider any such representations received.

9. In construing, for the purpose of this Schedule or any compulsory purchase order made under Part III of this Act, any enactment incorporated in the order, this Act, together with the order, shall be deemed to be the special Act and the local authority shall be deemed to be the promoters of the undertaking.

Sections 36, 47,
64.

FOURTH SCHEDULE

RULES AS TO ASSESSMENT OF COMPENSATION WHERE LAND PURCHASED COMPULSORILY OTHERWISE THAN AT SITE VALUE

1. If the Lands Tribunal are satisfied with respect to any premises that the rental thereof was enhanced by reason of their being used for illegal purposes, the compensation shall, so far as it is based on rental, be based on the rental which would have been obtainable if the premises were occupied for legal purposes.

2. If the Lands Tribunal are satisfied with respect to any premises that the rental thereof was higher than that generally obtained at the time for similar premises in the locality and that such enhanced rental was obtained by reason of the premises being overcrowded within the meaning of Part IV of this Act, the compensation shall, so far as it is based on rental, be based on the rental so generally obtained.

3. If the Lands Tribunal are satisfied that any premises are in a state of defective sanitation or are not in reasonably good repair, the compensation shall be the estimated value of the premises if

put into a sanitary condition or reasonably good repair less the estimated expense of putting them into such condition or repair.

4TH SCH.
—cont.

4. The local authority may tender evidence as to the matters aforesaid, notwithstanding that they have not taken any steps with a view to remedying the defects or evils disclosed by the evidence ; but before tendering evidence as to sanitation or repair, the authority shall furnish to the Lands Tribunal and to the claimant a statement in writing of the respects in which the premises are alleged to be so defective.

5. The Lands Tribunal shall have regard to and make an allowance in respect of any increased value which, in their opinion, will be given to other premises of the same owner by the demolition by the local authority of any buildings.

6. The Lands Tribunal shall embody in their award a statement showing separately whether compensation has been reduced by reference to the use of the premises for illegal purposes, to overcrowding, to the considerations mentioned in paragraph 3 of this Schedule, and to the considerations mentioned in paragraph 5 thereof, and the amount (if any) by which compensation has been reduced by reference to each of those matters.

FIFTH SCHEDULE

Sections 49, 51,
54, 59.

NUMBER OF PERSONS PERMITTED TO USE A HOUSE FOR SLEEPING

For the purposes of Part IV of this Act the expression "the permitted number of persons" means, in relation to any house, either—

- (a) the number specified in the second column of Table I in the annex hereto in relation to a house consisting of the number of rooms of which that house consists ; or
- (b) the aggregate for all the rooms in the house obtained by reckoning, for each room therein of the floor area specified in the first column of Table II in the annex hereto, the number specified in the second column of that Table in relation to that area ;

whichever is the less :

Provided that in computing for the purposes of the said Table I the number of rooms in a house, no regard shall be had to any room having a floor area of less than 50 square feet.

ANNEX

Table I

Where a house consists of—

(a) One room	-	-	-	2.
(b) Two rooms	-	-	-	3.
(c) Three rooms	-	-	-	5.
(d) Four rooms	-	-	-	7½.
(e) Five rooms or more	-	-	-	10, with an additional 2 in respect of each room in excess of five.

5TH SCH.
—cont.

Table II

Where the floor area of a room is—

(a) 110 sq. ft. or more -	-	2.
(b) 90 sq. ft. or more, but less than 110 sq. ft. -	-	1½.
(c) 70 sq. ft. or more, but less than 90 sq. ft. -	-	1.
(d) 50 sq. ft. or more, but less than 70 sq. ft. -	-	½.
(e) Under 50 sq. ft. -	-	Nil.

SIXTH SCHEDULE

PART I

Section 184.

*Enactments, contributions under which are in this Act referred to
as Exchequer contributions*

1. Section five of the Housing, Town Planning, &c. (Scotland) Act, 1919.
2. Paragraph (b) of subsection (1) of section one of the Housing, &c. Act, 1923 (as originally enacted).
3. Subsection (3) of section one of the said Act of 1923.
4. Paragraph (b) of subsection (1) of section one of the said Act of 1923 (as amended by sections one and two of the Housing (Financial Provisions) Act, 1924).
5. Section twenty-three of the Housing (Scotland) Act, 1930.
6. Section one of the Housing (Rural Authorities) Act, 1931.
7. Section one of the Housing (Financial Provisions) (Scotland) Act, 1933.
8. Part III of the Housing (Scotland) Act, 1935.
9. Section one of the Housing (Agricultural Population) (Scotland) Act, 1938.
10. Section one of the Housing (Financial Provisions) (Scotland) Act, 1938.
11. Sections eighty-four, eighty-five, eighty-six, eighty-eight, ninety-one and one hundred and five of this Act.

PART II

Sections 128 (2),
129.*Enactments, contributions under which are payable subject to
conditions*

1. The Housing, Town Planning, &c. (Scotland) Act, 1919.
2. The Housing, &c. Act, 1923.
3. The Housing (Financial Provisions) Act, 1924.
4. The Housing (Scotland) Act, 1925.
5. The Housing (Rural Workers) Acts, 1926 to 1942.
6. The Housing (Scotland) Act, 1930.

7. The Housing (Rural Authorities) Act, 1931.
8. The Housing (Financial Provisions) (Scotland) Act, 1933.
9. The Housing (Scotland) Act, 1935.
10. The Housing (Agricultural Population) (Scotland) Act, 1938.
11. The Housing (Financial Provisions) (Scotland) Act, 1938.

6TH SCH.
—cont.

SEVENTH SCHEDULE

Section 96.

DETERMINATION OF THE AMOUNT OF CERTAIN EXCHEQUER CONTRIBUTIONS

*Contributions payable under Section 5 of the Housing, Town
Planning, &c. (Scotland) Act, 1919*

1. For the purposes of this Schedule and of the Eighth Schedule to this Act—

- (a) a scheme under the said Act of 1919 means a scheme to which section five of that Act applies, other than a scheme for the provision of houses for persons in the employment of, or paid by, a local authority;
- (b) all schemes and parts of schemes under the said Act of 1919 which a local authority are for the time being administering shall be deemed to be a single scheme carried out by the authority.

2. Notwithstanding anything in any enactment, the amount of the Exchequer contribution for any financial year under section five of the said Act of 1919 towards the loss resulting from the carrying out of a scheme under the said Act of 1919 by a local authority shall be the amount, if any, by which the estimated loss for that year in respect of the scheme (ascertained as provided by paragraphs 3 to 7 of this Schedule) exceeds an amount equal to the produce (ascertained as provided by paragraph 8 of this Schedule) of a rate of four-fifths of one penny in the pound for that year levied in the authority's district.

3. The estimated loss for any financial year shall be the amount by which the estimated expenditure for that year in respect of the scheme exceeds the estimated income for that year.

4. The estimated income for any financial year shall be the sum of the estimated annual rent income (that is to say an amount equal to the aggregate annual rents of the houses provided or acquired by the authority under the scheme which, as at the fifteenth day of May, nineteen hundred and thirty-five, are accepted by the Secretary of State for the purpose of the determination of the Exchequer contribution payable in respect of the scheme) and any other items of income which, in the opinion of the Secretary of State, may properly be taken into account.

7TH SCH.
—cont.

5. The estimated expenditure for any financial year shall be determined in the following manner, that is to say:—

(1) there shall be ascertained—

(a) the aggregate amount of the charges during the five years ending on the fifteenth day of May, nineteen hundred and thirty-five, in respect of supervision and management, repairs, unoccupied houses and irrecoverable rents, accepted by the Secretary of State for the purpose of the determination of the Exchequer contribution payable in respect of the scheme, exclusive of expenditure, if any, incurred during the said five years on repairs of an abnormal and non-recurring nature and of sums, if any, written off during the said five years in respect of arrears of rents which had occurred in exceptional circumstances:

Provided that, where in consequence of the operation of paragraph (2) (b) of Article 7 of the Local Authorities (Assisted Housing Schemes) Amendment Regulations (Scotland), 1933, no charge or a charge of less than fifteen per cent. of the gross estimated rent within the meaning of the said regulations was made in respect of repairs in any one of the said five years, a charge equal to the said fifteen per cent. shall be deemed to have been made in that year;

(b) the aggregate amount of the gross estimated rent income during the five years ending on the fifteenth day of May, nineteen hundred and thirty-five, as accepted by the Secretary of State for the purpose of the determination of the Exchequer contribution payable in respect of the scheme;

(c) the aggregate of, first, the amount which bears the same proportion to the estimated annual rent income as the amount ascertained under head (a) of this subparagraph bears to the amount ascertained under head (b) thereof, and, second, an amount equal to two per cent. of the estimated annual rent income;

(d) the aggregate amount of loan charges for the year in respect of money borrowed for the purposes of the scheme, reduced by the amount, if any, of loan charges for the year relating to expenditure not approved by the Secretary of State for the purpose of the determination of the Exchequer contribution payable in respect of the scheme;

(e) the owners' rates for the year and any other items of expenditure which, in the opinion of the Secretary of State, may properly be taken into account:

Provided that, where moneys borrowed for the purposes of the scheme are repaid by means of a reborrowing, the rate of interest by which the loan charges in respect of those moneys are to be determined for the purposes of head (d)

of this sub-paragraph shall, unless the Secretary of State otherwise directs, be the rate at which the moneys are reborrowed, or the rate which, at the date of reborrowing, was the rate fixed by the Treasury under section one of the Public Works Loans Act, 1897, in respect of loans to local authorities advanced out of the Local Loans Fund for the purposes of Part V of this Act, whichever is the less.

7TH SCH.
—cont.

- (2) The estimated expenditure for the financial year shall be the sum of the amounts ascertained under heads (c), (d) and (e) of the foregoing sub-paragraph.

6. If and to the extent to which an agreement made before the sixteenth day of May, nineteen hundred and thirty-five, by a local authority with the Secretary of State under regulations made in pursuance of subsection (2) of section thirty-three of the Housing (Scotland) Act, 1930, provides for the determination of the estimated annual loss resulting from the carrying out of a scheme under the said Act of 1919 or of any item of estimated income or expenditure, that matter shall be determined in the manner provided in the agreement and not in the manner provided in the foregoing provisions of this Schedule.

7. Where, after the fifteenth day of May, nineteen hundred and thirty-five, the number of dwellings included in a scheme under the said Act of 1919 is changed by reason of the sale of houses, closing or demolition of huts or other temporary dwellings, alterations of boundaries, or otherwise, the Secretary of State may make such adjustments of the amounts of the estimated losses in respect of periods subsequent to the date of change as he may deem equitable.

8. In relation to a scheme under the said Act of 1919, the produce of a rate of four-fifths of one penny in the pound for any financial year levied in any district shall be deemed to be that proportion of the produce of the county or burgh rate which four-fifths of one penny bears to the total amount in the pound of that rate.

For the purposes of this paragraph, the produce of the county or burgh rate for any year shall be deemed to be the amount realised in that year by the collection of that rate levied for that or any previous year, and the total amount in the pound of that rate shall be deemed to be such sum as bears to a pound the same ratio as the aggregate of the sums assessed for by that rate bears to the mean of (a) the total of the rateable values of lands and heritages in the district on which the share of rates payable by owners is assessed, and (b) the total of such values on which the share of rates payable by occupiers is assessed.

Contributions under Section 1 (3) of the Housing, &c. Act, 1923

9. Notwithstanding anything in any enactment, the amount of the Exchequer contribution for any financial year under subsection (3) of section one of the said Act of 1923 towards the expenses incurred by a local authority in carrying out a scheme to which that subsection applies shall be an amount equal to one-half of the

7TH SCH.
—cont.

estimated loss for that year incurred in carrying out the scheme, ascertained as provided by paragraphs 3 to 7 of this Schedule, subject to such modifications as the Secretary of State, with the approval of the Treasury, may determine to be necessary having regard to the date of the completion of the operations or expedient in all the circumstances.

Section 128.

EIGHTH SCHEDULE

LOCAL AUTHORITIES' CONTRIBUTIONS

1. In respect of a scheme (as defined by paragraph 1 of the Seventh Schedule to this Act) carried out by the local authority under the Housing, Town Planning, &c. (Scotland) Act, 1919, a contribution for each financial year during the remainder of the period during which loan charges in respect of money borrowed for the purposes of the scheme are payable, of an amount equal to the produce (ascertained as provided by paragraph 8 of the Seventh Schedule to this Act) of a rate of four-fifths of one penny in the pound for that year, levied in the authority's district, together with the amount of any loan charges for that year in respect of money borrowed for expenditure in connection with the scheme which was not approved by the Secretary of State for the purpose of the determination of the Exchequer contribution:

Provided that, in respect of any year during which no contributions are payable by the Secretary of State in respect of the scheme, this paragraph shall have effect with the substitution, for the reference to an amount equal to the produce of such a rate as is therein mentioned, of a reference to an amount equal to the estimated loss (ascertained as provided by paragraphs 3 to 7 of the said Seventh Schedule) for that year in respect of the scheme.

2. In respect of a house in respect of which the Secretary of State has undertaken under paragraph (b) of subsection (1) of section one of the Housing, &c. Act, 1923, as originally enacted, to pay an Exchequer contribution payable to the local authority, a contribution for each financial year during the remainder of the period of twenty years from the completion of the house, of an amount equal to the amount of the Exchequer contribution in respect of the house for that year, or of an amount equal to the average annual expenditure defrayed out of rates in respect of the house during the five financial years ending on the fifteenth day of May, nineteen hundred and thirty-five, whichever is the less.

3. In respect of a scheme in respect of which an Exchequer contribution is payable to the local authority under subsection (3) of section one of the said Act of 1923, a contribution for each financial year for which the Exchequer contribution is so payable, of an amount equal to the amount of the Exchequer contribution for that year, together with the amount of any loan charges for that year in respect of money borrowed for expenditure in connection

with the scheme which was not approved by the Secretary of State for the purpose of the determination of the Exchequer contribution.

4. In respect of a house in respect of which the Secretary of State has undertaken under paragraph (b) of subsection (1) of section one of the Housing, &c. Act, 1923 (as amended by sections one and two of the Housing (Financial Provisions) Act, 1924, but not as further amended by section one of the Housing (Financial Provisions) (Scotland) Act, 1933) to pay an Exchequer contribution payable to the local authority, a contribution for each financial year during the remainder of the period of sixty years from the completion of the house, of the annual amount, calculated by reference to a period of sixty years, equivalent to four pounds ten shillings a year payable for a period of forty years, or, in the case of a house completed after the thirtieth day of June, nineteen hundred and thirty-four, one pound ten shillings a year payable for a period of forty years:

Provided that, where immediately before the sixteenth day of May, nineteen hundred and thirty-five, the amount of the annual expenses to be borne by the local rate, as estimated for the purpose of compliance with the requirements of paragraph (e) of subsection (1) of section three of the said Act of 1924, or of subsection (7) of section one of the Housing (Rural Authorities) Act, 1931, as the case may be, was a sum less than the annual amount, calculated by reference to a period of sixty years, equivalent to four pounds ten shillings a year payable for a period of forty years, or one pound ten shillings a year payable for a period of forty years, as the case may be, the annual amount of the contribution shall be that lesser sum.

5. In respect of a house in respect of which the Secretary of State has undertaken to pay an Exchequer contribution under section twenty-three of the Housing (Scotland) Act, 1930, a contribution for each financial year during the period, or remainder of the period, as the case may be, of sixty years from the completion of the house, of the annual amount, calculated by reference to a period of sixty years, equivalent to four pounds ten shillings a year payable for a period of forty years.

6. In respect of a house in respect of which the Secretary of State has undertaken to pay an Exchequer contribution under paragraph (b) of subsection (1) of section one of the Housing, &c. Act, 1923 (as amended by sections one and two of the Housing (Financial Provisions) Act, 1924, and by section one of the Housing (Financial Provisions) (Scotland) Act, 1933), a contribution for each financial year during the period, or the remainder of the period, as the case may be, of sixty years from the completion of the house, of the annual amount, calculated by reference to a period of sixty years, equivalent to one pound ten shillings a year payable for a period of forty years.

7. The contributions payable by the local authority under section thirty-one of the Housing (Scotland) Act, 1935.

8. The contributions payable by the local authority under section thirty-six of the said Act of 1935.

8TH SCH.
—cont.

9. The contributions payable by the local authority under section two of the Housing (Agricultural Population) (Scotland) Act, 1938.

10. The contributions payable by the local authority under section five of the Housing (Financial Provisions) (Scotland) Act, 1938.

11. The contributions payable by the local authority under sections ninety-one, ninety-seven, ninety-eight, ninety-nine and one hundred and eight of this Act.

12. Where in any financial year a deficit is shown in the housing revenue account, a contribution (in this Act referred to as an additional contribution) for that financial year of an amount equal to the amount of the deficit.

13. Where—

(a) a local authority satisfy the Secretary of State that their contribution in respect of such houses as are mentioned in paragraph 2, 4, or 5 of this Schedule should, having regard to the extent to which repayment or provision for repayment of money borrowed for expenditure in connection with the provision of the houses has been made before the sixteenth day of May, nineteen hundred and thirty-five, be of an amount less than the amount specified in that paragraph ; or

(b) a local authority are of opinion that their contribution in respect of such houses as are mentioned in paragraph 4, 5, or 6 of this Schedule should, having regard to the arrangements made for repaying money borrowed for expenditure in connection with the provision of the houses, be of an amount equivalent to the amount specified in that paragraph for a less period than the period therein specified for the payment of the contribution ;

the provisions of that paragraph shall have effect in the case of that authority subject to such modifications as the Secretary of State may determine.

Section 100.

NINTH SCHEDULE

RULES AS TO APPLICATIONS FOR AND GIVING OF ASSISTANCE FOR REPLACEMENT OF UNSATISFACTORY HOUSES OCCUPIED BY AGRICULTURAL WORKERS AND OTHERS

1. The applicant for assistance shall furnish to the local authority full particulars of the house proposed to be erected, and of the house or other premises which it is to replace, together with a statement (approved by an officer of the local authority authorised in that behalf) of the estimated cost of the house, and such plans and specifications thereof as the local authority may require.

2. If the local authority approve the application they shall issue to the applicant a certificate of their approval, which shall set out the terms and conditions upon which assistance will be given.

3. On the completion of the house the applicant shall furnish the local authority with such information as they may require as to the cost of the house and shall satisfy them that it has been erected in accordance with the terms and conditions of the certificate, and the local authority shall not be liable to give assistance until they are so satisfied.

9TH SCH.
—cont.

TENTH SCHEDULE

Section 130.

PROVISIONS IN PURSUANCE OF WHICH FINANCIAL ASSISTANCE MAY BE GIVEN BY THE SECRETARY OF STATE OR BY LOCAL AUTHORITIES

1. Section sixteen of the Housing, Town Planning, &c. (Scotland) Act, 1919.
2. Section two of the Housing, &c. Act, 1923.
3. Section three of the Housing, &c. Act, 1923.
4. Sections one and two of the Housing (Rural Workers) Act, 1926.
5. Subsection (1) of section eighty-seven of this Act.
6. Section one hundred of this Act.

ELEVENTH SCHEDULE

Section 136.

PROVISIONS AS TO LOCAL BONDS

1. Local bonds shall—
 - (a) be secured upon all the rates, property and revenues of the local authority ;
 - (b) bear interest at such rate as the local authority may determine at the time of the issue of the bonds ;
 - (c) be issued in denominations of five, ten, twenty, fifty and one hundred pounds and multiples of hundred pounds ;
 - (d) be issued for periods of not less than five years.
2. Local bonds shall be exempt from stamp duty under the Stamp Act, 1891, and no duty shall be chargeable under section eight of the Finance Act, 1899, as amended by any subsequent enactment, in respect of the issue of any such bonds.
3. The provisions of section one hundred and fifteen of the Stamp Act, 1891 (which relates to composition for stamp duty) shall, with the necessary adaptations, apply in the case of any local authority by whom local bonds are issued as if those bonds were stock or funded debt of the local authority within the meaning of that section.
4. A local authority shall, in the case of any person who is the registered holder of local bonds issued by that local authority of a nominal amount not exceeding in the aggregate one hundred pounds, pay the interest on the bonds held by that person without deduction of income tax, but any such interest shall be accounted for and charged to income tax under the third case of Schedule D subject, however, to any provision of the enactments relating to income tax with respect to exemption or abatement.

11TH SCH.
—cont.

5. Local bonds issued by a local authority shall be accepted by that local authority at their nominal value in payment of the purchase price of any house erected by or on behalf of any local authority in pursuance of any operations under this Act.

6. The Secretary of State may, with the approval of the Treasury, make regulations with respect to the issue (including terms of issue), transfer and redemption of local bonds and the security therefor, and any such regulations may apply, with or without modifications, any provisions of the Local Loans Act, 1875, and the Acts amending that Act, and of Part XII of the Local Government (Scotland) Act, 1947, relating to securities created by local authorities, and of any Act relating to securities issued by any local or public body.

Section 144.

TWELFTH SCHEDULE

PROVISIONS AS TO REHOUSING

1. If in a district within the meaning of this Act the undertakers have power to take under the enabling Act dwellings occupied by thirty or more persons, the undertakers shall not enter on any such dwellings in that district until the Secretary of State has either approved of a housing scheme under this Schedule or decided that such a scheme is not necessary.

For the purpose of determining for the purposes of this Schedule the number of persons by whom any dwellings are occupied, any occupation on or after the fifteenth day of December next before the passing of the enabling Act, or, in the case of land acquired compulsorily under a general Act without the authority of an order, next before the date of the application to the Secretary of State under this Schedule, for his approval of or decision with respect to a housing scheme, shall be taken into consideration.

2. The housing scheme shall make provision for the accommodation of such number of persons as is, in the opinion of the Secretary of State, taking into account all the circumstances, required, but that number shall not exceed the aggregate number of persons displaced; and in calculating that number the Secretary of State shall take into consideration not only the persons who are occupying the dwellings which the undertakers have power to take, but also any persons who, in his opinion, have been displaced within the previous five years in view of the acquisition of land by the undertakers.

3. Provision may be made by the housing scheme for giving undertakers who are a local authority, or who have not sufficient powers for the purpose, power for the purpose of the scheme to appropriate land or to acquire land, either by agreement or compulsorily under the authority of a provisional order, and for giving any local authority power to erect dwellings on land so appropriated or acquired by them, and to sell or dispose of any such dwellings, and to raise money for the purpose of the scheme as for the purposes of Part V of this Act, and for regulating the application of any money arising from the sale or disposal of the dwellings; and any provisions so made shall have effect as if they had been enacted in an Act of Parliament.

12TH SCH.
—cont.

4. The housing scheme shall provide that any lands acquired under that scheme shall, for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings, except so far as the Secretary of State may dispense with that appropriation; and every such appropriation of lands shall be recorded as a real burden affecting such lands in the appropriate Register of Sasines; and the Secretary of State may require the insertion in the scheme of any provisions with respect to the standards of the houses that are to be erected under the scheme, or any conditions to be complied with as to the mode in which the houses are to be erected.

5. If the Secretary of State does not hold a local inquiry with reference to a housing scheme he shall, before approving the scheme send a copy of the draft scheme to every local authority, and shall consider any representation by any such local authority made within the time fixed by him.

6. The Secretary of State may, as a condition of his approval of a housing scheme, require that the new dwellings under the scheme, or some part of them, shall be completed and fit for occupation before possession is taken of any dwellings under the enabling Act.

7. Before approving any scheme the Secretary of State may, if he thinks fit, require the undertakers to give such security as he considers proper for carrying the scheme into effect.

8. If the undertakers enter on any dwellings in contravention of the provisions of this Schedule or of any conditions of approval of the housing scheme made by the Secretary of State, they shall be liable to a penalty not exceeding five hundred pounds in respect of every such dwelling; and any such penalty shall be recoverable by the Secretary of State by action in the Court of Session and shall be carried to and form part of the Consolidated Fund.

9. If the undertakers fail to carry out any provision of the housing scheme, the Secretary of State may make such order as he thinks necessary or proper for the purpose of compelling them to carry out that provision, and any such order may be enforced by order of the Court of Session on the application of the Secretary of State.

10. The Secretary of State may, on the application of the undertakers, modify any housing scheme which has been approved by him under this Schedule, and any modifications so made shall take effect as part of the scheme.

11. For the purposes of this Schedule—

the expression “dwelling” or “house” means any house or part of a house occupied as a separate dwelling;

the expression “enabling Act” means any Act of Parliament or order under which the land is acquired;

12TH SCH.
—cont.

the expression "local authority" means the local authority for the purposes of this Act in whose district in any case any houses in respect of which the rehousing scheme is made are situated ;

the expression "undertakers" means any authority, company or person who are acquiring land compulsorily or by agreement under any local Act or provisional order or order having the effect of an Act, or are acquiring land compulsorily under any general Act.

Section 187.

THIRTEENTH SCHEDULE

ENACTMENTS REPEALED

PART I

Enactments repealed as from commencement of this Act

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 5. c. 35.	The Housing (Financial Provisions) Act, 1924.	Section eight.
15 & 16 Geo. 5. c. 15.	The Housing (Scotland) Act, 1925.	The whole Act.
20 & 21 Geo. 5. c. 40.	The Housing (Scotland) Act, 1930.	The whole Act except paragraph (iv) of subsection (1) and subsection (3) of section seven, sections twenty-three and twenty-four, section forty-six, section forty-nine so far as relating to the unrepealed provisions of the Act, subsection (3) of section fifty and the Fifth Schedule so far as relating to the Housing, &c. Act, 1923, and the Housing (Financial Provisions) Act, 1924, and section fifty-two.
25 & 26 Geo. 5. c. 41.	The Housing (Scotland) Act, 1935.	The whole Act except sections thirty to thirty-two, sections thirty-four to thirty-six, section eighty-three, subsection (1) of section eighty-six so far as relating to the unrepealed provisions of the Act, section eighty-seven and the Fifth Schedule so far as relating to section twenty-three of the Housing (Scotland) Act, 1930, and section eighty-nine.

13TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 38.	The Housing (Agricultural Population) (Scotland) Act, 1938.	The whole Act except sections one and two, section twenty-one so far as relating to the said sections one and two, section twenty-two and the Second Schedule.
2 & 3 Geo. 6. c. 3.	The Housing (Financial Provisions) (Scotland) Act, 1938.	Sections four and six.
6 & 7 Geo. 6. c. 22.	The Housing (Agricultural Population) (Scotland) Act, 1943.	The whole Act.
7 & 8 Geo. 6. c. 39.	The Housing (Scotland) Act, 1944.	The whole Act.
8 & 9 Geo. 6. c. 18.	The Local Authorities Loans Act, 1945.	Section six so far as relating to section seventy-two of the Housing (Scotland) Act, 1925.
9 & 10 Geo. 6. c. 54.	The Housing (Financial Provisions) (Scotland) Act, 1946.	The whole Act except sections fifteen and twenty.
9 & 10 Geo. 6. c. 68.	The New Towns Act, 1946.	Section eight, and subsection (10) of section twenty-five.
10 & 11 Geo. 6. c. 43.	The Local Government (Scotland) Act, 1947.	Section two hundred and ninety-three.
11 & 12 Geo. 6. c. 45.	The Agriculture (Scotland) Act, 1948.	Section seventy-eight.
12 & 13 Geo. 6. c. 61.	The Housing (Scotland) Act, 1949.	The whole Act except sections thirty-eight to forty, and subsections (1) and (2) of section forty-nine.

PART II

Enactments repealed as from the appointed day

3 Edw. 7. c. 33.	The Burgh Police (Scotland) Act, 1903.	Sections sixty-seven and sixty-eight.
20 & 21 Geo. 5. c. 40.	The Housing (Scotland) Act, 1930.	In section seven, in subsection (1), paragraph (iv), and subsection (3).

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Lands Clauses Consolidation (Scotland) Act, 1845...	8 & 9 Vict. c. 19.
Railways Clauses Consolidation (Scotland) Act, 1845	8 & 9 Vict. c. 33.
Registration of Leases (Scotland) Act, 1857 ...	20 & 21 Vict. c. 26.
Improvement of Land Act, 1864	27 & 28 Vict. c. 114.
Local Loans Act, 1875	38 & 39 Vict. c. 83.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Stamp Act, 1891	54 & 55 Vict. c. 39.
Public Health (Scotland) Act, 1897	60 & 61 Vict. c. 38.
Public Works Loans Act, 1897	60 & 61 Vict. c. 51.
Finance Act, 1899	62 & 63 Vict. c. 9.
Burgh Police (Scotland) Act, 1903	3 Edw. 7. c. 33.
Entail (Scotland) Act, 1914	4 & 5 Geo. 5. c. 43.
Housing, Town Planning, &c., Act, 1919	9 & 10 Geo. 5. c. 35.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Housing, Town Planning, &c., (Scotland) Act, 1919	9 & 10 Geo. 5. c. 60.
Mines (Working Facilities and Support) Act, 1923...	13 & 14 Geo. 5. c. 20.
Housing, &c., Act, 1923	13 & 14 Geo. 5. c. 24.
Housing (Financial Provisions) Act, 1924	14 & 15 Geo. 5. c. 35.
Housing (Scotland) Act, 1925	15 & 16 Geo. 5. c. 15.
Housing (Rural Workers) Act, 1926	16 & 17 Geo. 5. c. 56.
Agricultural Credits (Scotland) Act, 1929	19 & 20 Geo. 5. c. 13.
Housing (Scotland) Act, 1930	20 & 21 Geo. 5. c. 40.
Housing (Rural Authorities) Act, 1931	21 & 22 Geo. 5. c. 39.
Hire Purchase and Small Debt (Scotland) Act, 1932	22 & 23 Geo. 5. c. 38.
Housing (Financial Provisions) (Scotland) Act, 1933	23 & 24 Geo. 5. c. 16.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Housing (Scotland) Act, 1935	25 & 26 Geo. 5. c. 41.
Private Legislation Procedure (Scotland) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 52.
Local Government Superannuation (Scotland) Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 69.
Housing (Rural Workers) Amendment Act, 1938 ...	1 & 2 Geo. 6. c. 35.
Housing (Agricultural Population) (Scotland) Act, 1938	1 & 2 Geo. 6. c. 38.
Housing (Financial Provisions) (Scotland) Act, 1938	2 & 3 Geo. 6. c. 3.
Building Societies Act, 1939	2 & 3 Geo. 6. c. 55.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Housing (Agricultural Population) (Scotland) Act, 1943	6 & 7 Geo. 6. c. 22.
Housing (Scotland) Act, 1944	7 & 8 Geo. 6. c. 39.
Local Authorities Loans Act, 1945	8 & 9 Geo. 6. c. 18.
Requisitioned Land and War Works Act, 1945 ...	8 & 9 Geo. 6. c. 43.
Statutory Orders (Special Procedure) Act, 1945 ...	9 & 10 Geo. 6. c. 18.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Housing (Financial Provisions) (Scotland) Act, 1946	9 & 10 Geo. 6. c. 54.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Hill Farming Act, 1946	9 & 10 Geo. 6. c. 73.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.

Short Title	Session and Chapter
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Town and Country Planning (Scotland) Act, 1947...	10 & 11 Geo. 6. c. 53.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Housing (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 61.
Agricultural Holdings (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 75.

CHAPTER 35

Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950

ARRANGEMENT OF SECTIONS

PART I

MILK AND DAIRIES

Milk and Dairies Regulations

Section

1. Power to make regulations to secure the purity of milk.
2. Registration of dairymen under regulations.
3. Registration of dairy farms and dairy farmers under regulations.

Ancillary provisions as to Milk and Dairies Regulations

4. Provisions as to making of Milk and Dairies Regulations.
5. Committees to review working of regulations.
6. Ancillary provisions as to contents of Milk and Dairies Regulations.
7. Enforcement of Milk and Dairies Regulations.

Prohibitions on sale of milk not in a pure and genuine condition

8. Prohibition of sale of tuberculous milk, and milk of cows suffering from tuberculosis, etc.
9. Certain additions not to be made to milk, and certain liquids not to be sold as milk.
10. Regulations as to presumptive evidence of adulteration of milk.

Establishment of milk depots

11. Establishment by certain councils of milk depots.

Veterinary Inspectors

12. Veterinary inspectors to be appointed by Minister of Agriculture.